

AMERICAN INJUSTICE

Matthew Oliver Reardon, writing as Don Matthews

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A Memoir of Constitutional Warfare

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writing as **Don Matthews**

First Edition • 2026

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American Injustice: A Memoir of Constitutional Warfare

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This is a work of nonfiction. It is written from the author's lived experience and from records identified in the manuscript and its evidentiary materials, including court filings and orders, police and public records, transcripts, recordings, correspondence, and other documents in the author's archive. Material allegations are tied to identified source material wherever the available record permits. Statements that rest only on the author's recollection, interpretation, belief, or unresolved inference are identified as such rather than presented as independently established fact.

The author's children are named in the dedication and, where necessary to the chronology, in the narrative. Unnecessary identifying information concerning children and other private persons is omitted. Certain other individuals are described without being identified.

Discussion of testimony given in a sealed hearing in the author's federal criminal case is omitted in compliance with the governing court order. Where that dispute is discussed, the book relies on the public record.

Nothing in this book is legal advice. Descriptions of court rulings, statutes, constitutional doctrines, and litigation positions are provided as part of the historical record and narrative of the author's cases.

First Edition, 2026.

DEDICATION

For **Lydia Elise, Anna Claire, McKenna Rose, Ethan Oliver, and Meri-Emmelyn** —

who lived through consequences they did not create.

This book is my attempt to leave you a record: what happened, what the documents prove, what I got wrong, and why I kept fighting.



For **Andy Arant** —

attorney, friend, and mentor,

lost to cancer.

Your place in this story remains permanent.



And for **PFC Bradley Foust** —

where this record begins.

Rest in peace.

Semper Fidelis.

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A NOTE FROM THE AUTHOR

I need to tell you how this book was built before you read a word of it, because the way it was built is the strongest reason to take it seriously.

I am Matthew Oliver Reardon. I write under the name Don Matthews. Everything in these pages is told from my lived perspective, but I am an interested narrator, and memory alone is not evidence. I was angry for much of this history, drinking during part of it, and wrong about some pieces of it for years. So I did not build this book from memory alone. I went back to the paper.

The documentary backbone of this book is made up of court filings and orders, police and public records, transcripts, recordings, correspondence, and other source material preserved in my archive. Where I quote a document, the goal is to quote the document itself rather than a summary of it. Where the only source for something is my recollection, the sentence says so. Where the record does not answer a question, I say that too. And where later records corrected something I had previously believed or said, the correction belongs in this book rather than outside it.

That distinction matters because not every sentence in a memoir can be independently proved by a court record. Some events were recorded. Some were documented only later. Some survive in the competing accounts of

the people who were there. The standard I have tried to follow is simpler and harder: never present my recollection, inference, or suspicion as though an independent record established it.

I want to be direct about the discipline that governs the rest of these pages, because it will occasionally make me look bad and that is intentional.

Two things are true in this story at the same time.

The first is that institutions in Mississippi, Texas, Utah, and Louisiana did things to me that I contend were unlawful, retaliatory, dishonest, or some combination of those things — and a substantial part of that contention is supported by documentary records, recordings, and court findings described in the chapters that follow. The second is that I made a considerable amount of my own situation worse. I was armed inside a city hall meeting and pointed at seated officials while calling them Cultural Marxists. I posted things while drunk and upset that a lawyer later put in front of a judge, and he was not wrong to say I had written them. I called a bar owner a bitch on a livestream over a tray of chicken wings and asked my viewers to boycott her business. I swore at the mother of my child on her own front step on Father's Day. I named a broadcast after an obscenity directed at the United States Marshals Service and told a federal officer he would get sprayed down, hours before marshals arrested me in a federal courthouse.

I am not going to explain those facts away, and I am not asking to be forgiven for them on the page. Context matters, but context is not an eraser. Some of those moments I would take back if I could. They remain here because a book that leaves them out is a book that can be destroyed the first time somebody produces the video — and because the constitutional question does not disappear when the person asserting a right is difficult, angry, profane, or wrong about something else.

The same rule applies to the people in these pages. I have tried to distinguish public officials and participants whose identities are necessary to understand the record from bystanders and private people who do not need to be exposed merely because they crossed my path. My children are named in the dedication and, where necessary to the chronology, in the narrative; unnecessary identifying details about them are omitted. A woman

serving a lengthy sentence under Mississippi's habitual-offender law is discussed but not identified because her case is not mine to publish. A court clerk who was kind to me on a recorded call is simply a court clerk. Bystanders stay bystanders.

Where I believe an official did something wrong, the strongest version of the book is not the loudest accusation. It is the document, recording, transcript, or ruling that lets the reader evaluate the conduct directly. Where I only suspect a motive or connection, I try to say that I only suspect it. I have removed accusations from earlier versions of this story when I could not support them.

A word about the evidence system used behind the manuscript.

I do not want the publication copy to read like a spreadsheet, so the body text does not place an evidence code after every sentence. Instead, the evidentiary weight of a claim should be visible from the way the sentence is written: a filed document is identified as a filed document; a recorded statement is identified as recorded; my own recollection is identified as mine; and an unresolved question is left unresolved. Automatic speech-recognition quotations that have not yet been checked against the audio are not treated as verbatim quotations.

Behind the publication text is a working evidence ledger tying material claims to the records used to support them. The Appendix and Evidence Index are intended to give a skeptical reader a path back into that source archive. They also identify gaps. An evidence system that hides what it does not have is worse than no evidence system at all.

At the back of this book there is also a Legal Analysis explaining the doctrines that recur throughout the story — retaliatory arrest, qualified and absolute immunity, civil commitment, spoliation, banishment, and related issues. It is included to explain the litigation record, not to provide legal advice. Several of those doctrines are also part of why cases I believed should succeed did not.

There is a list of standing corrections as well: claims I made in earlier drafts, filings, interviews, or livestreams that I no longer make in the same form. Some are factual corrections. Some are theories I once believed but

could not prove. I have chosen to preserve those corrections because a book demanding accountability from official records should be equally willing to correct its own.

There is one subject I cannot write about freely. A federal court entered an order restricting discussion of testimony given in a sealed hearing in my own criminal case. I have not asked this book to test the edges of that order. Where that dispute must be described, it is described from the public docket and public proceedings.

Finally, the thing I did not expect when this story began: in 2017 I fought for states' rights, for a state flag, and for monuments, and I believed the people I was fighting were the radicals. By 2023 I had told a federal court, in writing, that I no longer advocated for states' rights at all — and that the reason was the State itself. What happened between those points is part of this book. I am not asking the reader to share my politics, then or now. I am asking the reader to look at what changed them.

Read the documents. Read the parts that help me and the parts that do not. That is the standard I am asking to be judged by.

— *M.O.R.*

PROLOGUE — THE FIRST DOMINO

Before Oxford. Before the flag. Before any of the names in this book had reason to know mine, there was the Marine Corps.

I entered the Corps in 2008 and went through the East Coast training pipeline from Parris Island to Marine Combat Training at Camp Lejeune, North Carolina. I was twenty years old. Whatever happened to me later, I have never stopped being proud that I earned the title Marine.

In May 2008, while I was at Marine Combat Training, a young Marine named Bradley Foust died at School of Infantry East.

I did not know Foust personally. That matters. It would be easy to make the opening of this book more intimate by turning him into a friend, but he was not. We were Marines in the same training environment, moving through a place built to teach people quickly and send them onward.

My own account, repeated years later on recordings, is that I was on roving post that night and experienced the incident as a suicide involving an M16 fired on three-round burst. I have described it publicly as a gruesome suicide and as the event that stayed with me afterward. I am identifying that as my recollection because the official records I later obtained do not themselves use the word “suicide.”

There is independent corroboration for the core event from another Marine who was there. In a recorded 2025 conversation with me, Jay Andrews described hearing a three-round burst at Camp Devil Dog that night. Andrews later provided a written account stating that he was questioned by NCIS and that, the following morning, a Marine sergeant showed him the scene and told him that Foust had put the rifle on three-round burst and killed himself. Andrews's account is his own eyewitness account. It does not turn every detail of my memory into an official finding, but it matters because it exists independently of me.

The Marine Corps casualty material I later obtained identifies Foust as an active-duty, nonhostile death at School of Infantry East. Public accounts I found over the years described his death as a training accident. That mismatch — between what I experienced, what Andrews separately described, and the way the death was publicly characterized — is what kept pulling me back to the records.

I need to correct one claim from an earlier draft of this book. I previously wrote that a suicide classification would necessarily have cost Foust's family death benefits and that an accident classification preserved them. That was a theory I held and discussed on recordings; I do not have a source in this record sufficient to state it as fact. It is not necessary to the point I can document, so I am not going to use it as an explanation for why the death was characterized the way it was.

What I can document is a change in Marine Corps sentry procedure after Foust's death.

The preexisting School of Infantry East order dated December 14, 2007 allowed students to serve as armed guards or sentries at the ammunition-storage area and Camp Devil Dog. It required the armed sentry to carry an M16A2 or M9 with security ammunition and prescribed how that ammunition was to be controlled.

A later version of that same order, dated August 25, 2008, changed the rule for entry-level students. It states that student guards or sentries "may not be issued security ammunition" and requires armed permanent personnel to support the post in the immediate vicinity.

An earlier draft of this book said that change was made in May 2008, the same month Foust died. The document in my possession is dated August 25, 2008. That is the date I can prove, and that is the date this book will use.

The policy change does not contain a sentence saying, “This was changed because Bradley Foust committed suicide.” I infer a connection because the change followed his death at that training command and directly removed live security ammunition from entry-level student sentries. Jay Andrews independently drew the same inference in our recorded conversation. But an inference, even a strong one, is not the same thing as an official admission. I will not write it as one.

The incident nevertheless became part of my own life. I have repeatedly said that I began using alcohol to manage what I experienced and that the Marine Corps later discharged me early after alcohol-rehabilitation failure. I have also said, repeatedly and publicly, that I stopped drinking in 2018. Those are facts about my own conduct and my own understanding of it. I am not asking a military record to diagnose the reason I drank; I am telling the reader how I understood the connection.

Years later, in 2017, I went back to the Marine Corps through the Freedom of Information Act. One of my requests sought the School of Infantry/MCT standard operating procedures. The records I obtained gave me something memory could not: a before-and-after paper trail showing that entry-level student sentries had been allowed to carry security ammunition before Foust’s death and, by August 25, 2008, were expressly prohibited from being issued it.

That paper trail is why the episode belongs at the front of this book.

It taught me a habit that would later become obsessive: compare what people say happened with what the documents actually say; compare the first version of a record with the later version; and pay attention to the places where a rule changes after an event even when nobody explains the connection in writing.

I have reached out to Foust’s family over the years. I have tried not to treat their loss as material that belongs to me. I do not know what the Marine Corps told them privately, and I will not claim that I do. I also do not know

whether they agree with my interpretation of the records. Their grief is theirs. The part that belongs in this memoir is what I experienced, what another Marine later described independently, and what the documents I obtained show.

I also cannot prove a formal chain connecting my 2017 Marine Corps records requests to the Mississippi events that followed. I once spent more time entertaining that possibility than the evidence justified. I am not going to turn timing into coordination without proof. The fact that my conflict with Mississippi institutions intensified in the same period is chronology. It is not, by itself, evidence that the Marine Corps, the FBI, and local Mississippi officials were acting together.

That distinction — between chronology and causation — will matter again and again in the pages ahead.

The chapters that follow contain records that are much more concrete: a bill of sale with a date; police narratives; court orders; recorded calls; sworn testimony; an MBI warrant file; a federal magistrate judge's written statement that a Galveston officer "lied to Judge Tollison"; and appellate rulings that sometimes went against me and sometimes corrected what had happened below.

Those later records are stronger because they do not require the reader to accept my interpretation of a policy change from 2008. They can be read directly.

But this is where I first learned why I would spend years asking for them.

Not on the Oxford Square. Not in a Mississippi courtroom. At Marine Combat Training, after the death of a Marine I did not know personally, when what I remembered and what the surviving public record appeared to say did not line up.

What follows begins years later, with my family, a custody case, a state flag, and the first arrest that put my own name into a government file I would spend the next decade reading back to them.

CHAPTER 1 — LYDIA, AND THE FLAG PETITION

My daughter Lydia Elise Reardon was born on August 19, 2014. She was extremely premature and weighed one pound nine ounces.

Earlier versions of this manuscript described her as both “eleven weeks early” and born at “twenty-five weeks gestational age.” Those two statements do not fit together, and I do not have a medical record in the present source archive that resolves the discrepancy. Rather than choose one from memory, I am removing the gestational-week figure until it can be verified. The date of birth is reflected in the Lafayette County Chancery Court custody record; the birth-weight detail comes from my own account.

Her mother is Phyllis Marie Crowder. Whatever later happened between Crowder and me, Lydia’s birth belongs before the litigation. We were two parents dealing with a child who entered the world far too early. I am not going to invent a NICU scene or put words into either of our mouths. The fact that matters to the story is simpler: by 2016, our relationship had ended and our disagreement over Lydia had become a court case.

The custody record gives that transition a date and a case file. On August 3, 2016, Crowder and I filed a Joint Complaint to Establish Paternity, Child Custody, and Child Support in Lafayette County Chancery Court. A later agreed order identifies Lydia's date of birth, finds me to be her natural father, and records that both parents were then considered fit and proper to care for her.

The lawyers matter because two names that recur throughout this book were already present before the 2017 flag dispute. Crowder was represented by J. Rhea Tannehill Jr. I was represented by Andy Arant. At that point, there was nothing inherently remarkable about the pairing. Tannehill was opposing counsel in a family case. Arant was my lawyer.

That is where I want the record to begin. I am not going to retroactively turn a 2016 custody representation into proof of a later political or law-enforcement conspiracy. The later intersections involving Rhea Tannehill are documented where they occur. In 2016, the paper says what it says: he represented Crowder; Arant represented me.

By September 2016, another part of my life had become public.

I started a Change.org petition titled "Cut off State Funding to MS City/Municipalities/Schools who refuse to fly MS State Flag." The petition was directed toward then-Governor Phil Bryant and then-State Senator Chris McDaniel. My archived count for the petition is 4,486 signatures.

The position I was advocating is not the position Mississippi ultimately chose. The state later replaced the 1894 flag. I am not rewriting my politics to make them easier to defend now. In 2016, I supported the existing Mississippi flag and believed state and local institutions should display it. I organized around that belief publicly and aggressively.

The important point for this chronology is the method I chose at the beginning: a petition. I put my name on a political demand, identified officials I wanted to influence, and asked other people to sign it. No criminal case arose from the petition itself.

The flag dispute did, however, move me into increasingly public confrontations with local government.

In April 2017, before the first Oxford arrest, I had a confrontation at Five Flags Speedway in Escambia County, Florida, over carrying the Mississippi flag in the grandstand area. I later recorded a call with Sergeant Palmer at the Escambia County Sheriff's Office. Palmer's position on that call was that the dispute involved obstruction of other patrons' view and a request from management rather than the political content of the flag. My position was that I had been threatened with arrest for protected conduct. We disagreed. I include that episode because it is relevant context for my state of mind going into May 2017, not because it proves anything about Lafayette County.

I had also taken the flag argument to public meetings. In Biloxi, I spoke before the city council and invoked my Marine Corps oath and the vote that had retained the Mississippi flag. I later claimed that the advocacy campaign generated roughly ten thousand calls to Biloxi City Hall. I do not have a municipal call log in the current archive proving that number, so it remains my own estimate rather than a verified statistic.

Oxford became the next focal point.

On May 16, 2017, I attended a meeting of the Oxford Board of Aldermen expecting to speak about the state flag. I had not been placed on that meeting's agenda. Mayor Pat Patterson told me that I was not on the agenda and that I could speak at the June 6 meeting if I got on it. I did. The published June 6 agenda later listed "Matt Reardon to address the board regarding the state flag."

That detail is important because it cuts against the easiest version of the story. Patterson did not, in that specific exchange, tell me I could never speak. He told me the procedural requirement and pointed me to the next meeting. I was more confrontational than he was. Outside the meeting, I asked him whether he was a "cultural Marxist." His recorded response remained focused on the agenda requirement.

By then I was also talking publicly about Robyn and Rhea Tannehill. I called Robyn Tannehill a "cultural Marxist" and said on livestream that I intended to publish a phone number so people could contact her. I also voiced a belief that Rhea Tannehill and other local figures were trying to silence me. At that time, the claim of a coordinated effort was my belief,

not a fact I could document. That distinction matters now because later chapters contain actual documents involving the Tannehills; those later records should not be used retroactively to prove what I only suspected in advance.

I was also speaking publicly in armed, embattled terms. On a surviving recording from that period, I described having a .45 and a .40 and being ready in response to threats I said I was receiving. A fair account of what followed has to include that language. It does not prove that every later accusation against me was true, but it is part of the environment law enforcement and other people were seeing online.

The same is true of hostile online coverage about me. A YouTube channel called Reardon Watch archived and mocked portions of my public activity. The existence of the channel and its videos can be documented. What I cannot establish merely from the channel's existence is which particular public officials watched it, whether it influenced any individual officer, or whether it caused an official decision. Earlier drafts crossed that line by treating those inferences as facts. I will not do that here.

The baseline going into May 2017 is therefore mixed and fairly easy to state. I was a father already involved in a contentious custody case. Rhea Tannehill had represented the mother of my daughter in that case. I was publicly advocating for the Mississippi state flag. I had gathered thousands of signatures on an online petition. I was confrontational with public officials and increasingly combative on social media. I also believed I was being threatened and targeted, although the extent and source of those threats were not always independently documented.

None of that, by itself, explains the arrest that came next.

On May 1, 2017, before the May 16 board meeting and before the later Lynch dispute, I stood on the Oxford Square holding the Mississippi flag. Deputy Timmy Pruitt approached me. The encounter was recorded. That recording, rather than any retrospective description of my politics, is where the first Mississippi arrest can be judged.

The next chapter stays with that video.

CHAPTER 2 — MAY 1, 2017

On May 1, 2017, I stood near the Confederate monument on the Lafayette County Courthouse Square in Oxford holding the Mississippi state flag. I was armed with a holstered sidearm. I was also recording.

The encounter that followed does not depend on my memory. My recording survives, and Captain Timmy Pruitt wrote his own report about the arrest.

Pruitt's report says Chief Deputy Scott Mills directed him to the courthouse because someone was protesting on county property without a permit. Pruitt wrote that Mills had checked with County Administrator Lisa Carwyle and had been told no permit had been issued.

Pruitt wrote that he recognized me from previous encounters and from Lafayette High School. He also wrote that when he approached, I pulled out my phone, told him I was recording, and that he said recording was fine.

The recording captures the rest.

"You know I am audio and video recording, Mr. Pruitt," I said.

"I don't care. Do you have a permit to be here?"

“Um, the First Amendment actually—”

“Do you have a permit to be here?”

“No.”

“All right, you’ve got to leave.”

I asked why.

“‘Cause you’re going to jail if you don’t.”

I asked whether he was telling me I would go to jail for standing there holding the flag and demonstrating.

He repeated that I had to leave.

I asked whether I could ask him a question.

“I’m going to ask you one more time to leave. If not, I’m gonna take you to jail. Disorderly conduct.”

I told him I would leave and take the matter to my attorney. Then, while walking away, I cursed about the city. I turned back and asked for his badge number.

“You’re under arrest,” Pruitt said.

“I’m not — I’m leaving. I was asking you — I was leaving.”

That is the exchange.

Pruitt’s written report describes the same sequence from his perspective. He wrote that he told me repeatedly to leave; that at the count of two I began walking away while cursing loudly; that I made it about fifteen yards; and that I then started back toward him asking for his badge number. He wrote that he arrested me for “DISORDERLY CONDUCT/FAILURE TO COMPLY.”

The report also says he handcuffed and disarmed me, that Investigator Nathan Noe arrived to assist, and that Deputy Justin Wilson arrived to transport me. Those details matter because they are better evidence than later retellings about who was present.

I have long focused on the timing of my badge-number question because the arrest followed it immediately on the recording. Pruitt's report frames the arrest differently: as the culmination of repeated orders to leave and my return toward him after initially walking away. Both records belong in the book. A reader should not have to choose between my edited summary and his. The video and the report can be compared directly.

I also need to own what the recording shows about me. I was profane. I was openly challenging Pruitt's authority. I was carrying a sidearm. I believed the permit demand was unconstitutional and said so. None of those facts should be edited out to make the First Amendment question cleaner.

My legal position has always been that I was engaged in protected expression on public property and that asking an officer for identifying information is protected speech. Pruitt's stated basis was failure to obey the order to leave. Whether the county could lawfully require a permit for the particular activity I was conducting, and whether that order could lawfully support the arrest, are legal questions. The factual sequence itself is not hard to reconstruct because both sides preserved it.

I was taken to the Lafayette County Detention Center and later released on a \$250 bond. Contemporary reporting identified the charge as disorderly conduct. Some later timeline material also describes resisting arrest, but the May 1 Pruitt narrative in the Sheriff's Office file identifies the incident as disorderly conduct/failure to comply. Until I have a charging document establishing a separate resisting count for this May 1 incident, I am not going to add one simply because it appears in a later summary.

The arrest video spread online. I later said that Pruitt took administrative leave after the video went viral. I have not located a personnel record establishing the formal classification of that time away. My own 2020 messages describe it variously as leave and, more sarcastically, as a "fishing vacation." The publication copy should not turn that into an established disciplinary finding.

The same day also matters in my family case.

Court records show that Crowder, through attorney Mona Pittman, filed emergency custody-related papers on May 1, 2017. A summons connected to those proceedings was served on me that day. In a later sworn filing, I stated that the family-court filing and my arrest occurred not only on the same date but during the same hour.

That “same hour” assertion is my sworn account, not something the current docket material independently timestamps closely enough to prove. I cannot prove that Pruitt’s arrest and Crowder’s filing were coordinated, and I will not say that they were. The documented point is that the two legal events occurred on the same date. My later belief about the timing and significance of that overlap belongs to me.

There was another thing I believed in those early May days. Crowder told me, according to my recollection, that she had knowledge of a threat against my life. I do not have a recording of that conversation or an independent document establishing who made such a threat. I believed the warning, and it affected how I behaved in the weeks that followed. That is the limit of what I can responsibly state from the current record.

The May 1 arrest was not the aggravated-stalking case. That came later in the month, after the Frank & Marlee’s dispute, after a series of public posts and videos, and after Investigator Jared Bundren reviewed material that he described as threatening.

That distinction is critical because an earlier version of this chapter jumped ahead and described the later aggravated-stalking arrest as though the May 8 date in the Criminal Information had already been sworn into the May 26 arrest warrant by the officers who arrested me. The available record does not establish that. The Criminal Information containing the “on or before May 8, 2017” allegation was filed later. The May 26 initiating material and the later charging instrument have to be treated as separate records.

The twelve-day rifle problem is real, but it belongs where the documents actually place it. I bought the AR-15 on May 20. The later Criminal Information alleged conduct involving an AR-15 “on or before May 8.” That is a chronological contradiction inside the formal prosecution record. It is not proof, without the missing initiating affidavit, that the May 26 arrest warrant itself contained that exact May 8 allegation.

For May 1, the evidence is simpler: a flag, a permit demand, a recorded order to leave, my profanity, my request for a badge number, Pruitt's arrest decision, and his written report explaining why he made it.

Seven days later, other reports began accumulating. By the end of the month, the stakes would be a felony and a \$150,000 bond.

CHAPTER 3 — THE AGENDA

On May 16, 2017, I went to a meeting of the Oxford Board of Aldermen wanting to speak about the Mississippi state flag. I had not put my name on that night's agenda.

Mayor Pat Patterson told me that I was not on the agenda and that I could speak at the next meeting if I followed the procedure. His recorded response was straightforward: "You weren't on the agenda, Matt... You're welcome to come speak June 6th."

I was more confrontational. Outside the building I asked him whether he was a "cultural Marxist." I also objected when another citizen was not allowed to speak, calling City Hall "the taxpayers' house." Looking back at the recording, the cleanest description of that particular dispute is not that Patterson barred me permanently from speaking. He enforced the agenda rule and told me how to get on the next agenda.

I followed that instruction. The published agenda for the June 6 Board of Aldermen meeting later listed item 7: "Matt Reardon to address the board regarding the state flag."

That paper trail matters because events would prevent me from appearing at that meeting. But the May 16 interaction itself should not be rewritten into something the record does not show.

Three days later, on May 19, the conflict moved away from City Hall and into Frank & Marlee's, a piano bar on the Oxford Square owned by Todd and Ashley Lynch.

The encounter inside the bar is disputed. My account has consistently been that Ashley Lynch discarded food I had purchased after refusing to engage with me. The Lynches' account, relayed later in messages and a recorded telephone call, was that my own conduct toward Ashley was abusive and that I was told to leave. I do not have neutral video of every second of the interaction inside the bar that resolves those competing descriptions.

What happened after I left is much easier to establish because I broadcast it.

I went outside and used Facebook Live to complain about the business and call for a boycott. I described the discarded food, urged people not to patronize Frank & Marlee's, and later acknowledged on camera that I had called Ashley Lynch a "bitch." That language is mine. I am not sanitizing it now.

Todd Lynch also contacted me. A recorded call from the period captures an argument in which he defended his wife and business and I made clear that I intended to continue speaking publicly. Whatever constitutional protection attaches to peaceful criticism and boycott advocacy, the relevant factual point is that this was no longer a quiet consumer complaint. It had become a public, personal conflict playing out across livestreams, messages, and phone calls.

On May 20, the day after the bar incident, I bought an AR-15-style Del-Ton rifle from Larry D. Watkins in a private sale. The handwritten bill of sale identifies the rifle by serial number S086662, lists extra parts and ammunition, states a price of \$550, and is dated May 20, 2017.

That piece of paper later became important because the formal Criminal Information filed in my aggravated-stalking case alleged that, “on or before May 8, 2017,” I committed stalking while displaying “an AR15 rifle” with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury.

I have now inspected the charging instrument itself. The typed date on the form was struck through by hand. Above it is handwritten: “or before May 8, 2017.” The document was filed July 6, 2017.

That means the formal charging instrument alleged AR-15 conduct at least twelve days before the dated bill of sale says I acquired this particular rifle.

The strength of that contradiction should not be diluted by overstating what it proves. The Watkins bill of sale is a private handwritten record, not a notarized government record. It is evidence of when I acquired the identified Del-Ton rifle. It does not prove that I had never possessed any AR-15 before May 20. The Criminal Information, however, does not identify a serial number. So the most precise claim is that the State’s later charging theory alleged use of “an AR15 rifle” by May 8, while the rifle that became central to my own defense and public account is documented as acquired May 20.

The initiating police narrative is different from that later charging document, and this book previously blurred the two.

Investigator Jarrett Bundren’s reporting narrative, Complaint No. L17-05138, describes events beginning May 24. Bundren wrote that he was advised there were “a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee’s and Todd Lynch.” He wrote that he reviewed my Facebook page and saw “several videos and posts of Matt with guns verbally making threats toward Todd and his business.” He further wrote that Todd Lynch wanted to file charges and, after Bundren looked further into the threats and harassment, Todd filed charges.

That report is damaging evidence from the State’s side, and it belongs in the book exactly because it complicates my argument. The initiating complaint was not described by Bundren as a single peaceful boycott video. He said he saw multiple posts and videos involving guns and what he characterized as verbal threats.

I dispute the criminal characterization of much of my speech, and the recordings themselves are the best evidence for deciding what I actually said. But I cannot honestly write that law enforcement had before it nothing except a customer standing on a sidewalk asking people to boycott a bar. Bundren's own report says he was looking at a wider body of material.

At the same time, Bundren's May 24 narrative does not contain the later specific allegation that I displayed an AR-15 on or before May 8. It does not identify the Watkins rifle. It does not explain how the prosecution later arrived at the handwritten May 8 date in the Criminal Information.

Those are two separate evidentiary questions:

First, what did Bundren and Todd Lynch rely on when the complaint was initiated on May 24?

Second, why did the formal Criminal Information filed July 6 allege AR-15 conduct "on or before May 8, 2017"?

The first question has a surviving sheriff's narrative. The second is where the twelve-day problem lives.

The online attention surrounding me also intensified during this period. A YouTube channel called Reardon Watch reposted and mocked my broadcasts, including material concerning Frank & Marlee's. The existence of that archive is documented. I do not know who operated it, and I do not have evidence establishing that any named law-enforcement officer or public official controlled the channel or made a decision because of it. It is evidence that the dispute had become public spectacle, not proof of official coordination.

The same discipline applies to the rifle purchase. I have said that I bought the rifle because I believed threats had been made against me. That explanation is my account of my motive. The dated bill of sale proves the transaction date, not why I made the purchase.

By May 24, therefore, several things were simultaneously true. I had publicly fought with the Lynches. I had used ugly language toward Ashley Lynch. I had called for a boycott. I had bought an AR-15-style rifle. I had

made public videos in which firearms appeared. Bundren wrote that he regarded some of my statements as threats. Todd Lynch asked to pursue charges.

None of those facts should be erased.

Neither should the charging instrument that came later.

The next chapter is about the difference between those two records — the May 24 sheriff's narrative and the July 6 Criminal Information — and about what can actually be proved from the twelve days between the handwritten date on the charge and the handwritten date on the bill of sale.

CHAPTER 4 — THE SETUP: TWELVE DAYS

The twelve-day problem does not begin with the May 26 arrest warrant. It begins with a later charging document.

That distinction is important enough to put in the first paragraph because I blurred it in earlier versions of this story.

The surviving Lafayette County Sheriff's Office narrative says Investigator Jared Bundren began examining the Lynch complaint on May 24, 2017. He wrote that he had been told there were "a lot of threats on facebook" directed toward Frank & Marlee's and Todd Lynch, that he reviewed my Facebook page, and that he saw "several videos and posts of Matt with guns verbally making threats toward Todd and his business." He wrote that Todd Lynch wanted charges pursued.

That is the initiating police record I currently have.

It does not say that I displayed an AR-15 on May 8. It does not identify the Del-Ton rifle I bought from Larry Watkins. It does not contain the specific date that later became the center of my post-conviction argument.

On the same date, May 24, a hair-follicle test connected to my custody case came back positive for marijuana and alcohol. I am not hiding that result. It was part of the factual environment in which people around me were assessing my conduct. What it does not establish is that any particular Facebook statement satisfied the elements of aggravated stalking.

On May 25, I met with FBI personnel in Oxford. I have spent years trying to reconstruct exactly what the Bureau retained from that meeting. I have referred to an FBI 302 in later filings and broadcasts, but I do not presently have the 302 itself. I therefore treat the meeting as documented through my own contemporaneous and later records while treating the missing 302 as exactly that: a missing source, not a document I can quote.

Later that evening I sent a final legal demand to the Marine Corps concerning my pending FOIA request for Marine Combat Training records. I gave the Corps twenty-four hours. The next morning, May 26, at 9:13 a.m., the FOIA request identified in my records as DON-USMC-2017-005333 received a final disposition marked “Full Grant.”

Those Marine Corps records are part of the prologue. I cannot prove that the timing of the FOIA response had anything to do with what happened later on May 26 in Oxford. It belongs in the chronology because it occurred that day, not because I can establish coordination between federal and local agencies.

By Friday evening, I was under arrest for aggravated stalking.

Contemporary reporting from the Oxford Eagle confirms that Lafayette County charged me with aggravated stalking on May 26 and quoted Chief Investigator Alan Wilburn saying I was then charged with one count. The article also reported that, because of the Memorial Day weekend, I would not go before a judge for a bond hearing until Tuesday.

My own account of the arrest is more specific. I was inside my vehicle and opening the door when it was pulled open from outside. Officers put hands on me and took me into custody. No weapons were drawn. I have previously described the arrest with more cinematic details — being lured, thrown face-first onto scorching asphalt, a knee driven into my spine,

assigned tactical roles for each official, and dialogue I cannot source to a recording. I am removing those details because I cannot support them to the standard this book requires.

The officials I remember at the arrest were Lafayette County command personnel Scott Mills, Alan Wilburn, and Jared Bundren, with Oxford Police Chief Joey East present. The point is not to assign each man a role I cannot prove. It is that senior local law-enforcement figures were present for the arrest.

I also need to draw a line around what I know about Phyllis Crowder. Crowder was involved in a separate custody fight with me, and filings in that case were occurring during the same period. But I do not know that she had any involvement in Todd Lynch's accusation or in the decision to arrest me on May 26. Earlier narrative theories sometimes placed her inside that mechanism. I cannot prove that, and I am not going to write it as fact.

Todd Lynch's role is different because the sheriff's report identifies him. Bundren wrote that Todd wanted to file charges and did so after the investigator reviewed the online material. My understanding is that Lynch signed the initiating accusation. Whatever one thinks of the merits, that is the documented connection between the Lynch dispute and the criminal case.

The arrest then produced a procedural problem of its own. I was taken into custody on Friday, May 26, and did not receive my initial appearance until Tuesday, May 30 — roughly four days later. In later filings I argued that this violated Mississippi's forty-eight-hour rule for a person taken into custody. The legal consequence of that delay has been litigated and argued in different ways over the years; the underlying dates are the important point here.

At the May 30 appearance, the court set bond at \$150,000. I tried to present what I believed was exculpatory evidence. The court advised me about my right to remain silent rather than turning the initial appearance into an evidentiary hearing. I spent the weeks that followed in custody.

The Sheriff's Office narrative that now survives was itself created May 30, four days after the arrest. That does not make it false. It does mean that it is a post-arrest narrative describing the investigative events of May 24 rather than a contemporaneous affidavit I can identify as the paper shown to a judge before I was arrested.

And that is where the missing-document problem begins.

I have repeatedly requested the original affidavit, complaint, or warrant application that supplied probable cause for the May 26 arrest. The record set I have does not contain an initiating document that reproduces the later "on or before May 8" AR-15 allegation. Without that document, I cannot honestly say that the officers arrested me on May 26 because they had sworn that I used an AR-15 on May 8. That was a claim made too strongly in earlier drafts.

What I can prove is what the prosecution formally charged later.

The Criminal Information in Cause No. LK17-295 is captioned "Aggravated Stalking" under Mississippi Code § 97-3-107(2). On the face of the document, a typed date was crossed out. The handwritten replacement reads: "or before May 8, 2017." The charging paragraph says that I committed stalking while displaying a deadly weapon, "to wit: an AR15 rifle," with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury.

The document was filed July 6, 2017.

The bill of sale for the Del-Ton AR-15 I rely on is dated May 20, 2017. It identifies Larry D. Watkins as seller, me as buyer, serial number S086662, and a \$550 purchase price.

May 8 to May 20 is twelve days.

That is the contradiction the documents establish.

It still needs to be stated carefully. The bill of sale proves a May 20 transaction for a particular Del-Ton rifle. The Criminal Information says only "an AR15 rifle" and does not list a serial number. The bill of sale therefore does not, by itself, prove that no AR-15 of any kind could have been available to me before May 20. My position has always been that this

was the rifle at issue and that I did not possess the alleged weapon on May 8. But the document itself proves the purchase date of the identified rifle, not the nonexistence of every possible AR-pattern rifle before that date.

That narrower description is still significant. If the prosecution's weapon theory concerned the Watkins rifle, the dates cannot both be right. If it concerned some other AR-15, the charging papers do not identify it. Either way, the formal Information leaves a factual question that should have been tested with evidence rather than buried under a plea.

There is also an important distinction between Bundren's May 24 narrative and the July 6 Information. Bundren described multiple Facebook videos and posts involving guns and statements he characterized as threats. The Information distilled the case into a statutory allegation involving an AR-15 and a handwritten date. The later document is not simply a verbatim copy of the earlier report.

That distinction makes the case harder to summarize in a slogan, but it makes the record stronger. I do not have to claim the entire complaint was invented from nothing. I can acknowledge that I made abrasive public statements, that firearms appeared in some videos, that Todd Lynch wanted charges pursued, and that Bundren described some of what he saw as threats. Then I can ask the narrower question the paper itself raises: how did that body of material become a formal AR-15 allegation dated "on or before May 8"?

I still do not have a satisfactory documentary answer.

The other disputes surrounding late May belong where their records place them. The Tannehills had obtained a separate civil restraining order against me. I made threatening-sounding statements about Rhea Tannehill on livestream that I regret and do not excuse.

The Sheriff's Office also contains a May 30 report written by Major John Hill about what happened after the Tannehill hearing that day. Hill wrote that Chief Deputy Scott Mills and he escorted me from the courtroom and seated me in the back hallway while paperwork was completed. According to Hill, I told Rhea Tannehill, "FUCK YOU. YOU ARE A FUCKING LIAR." Hill then wrote that Rhea started walking toward me with a water bottle in his hand and said, "I'LL BASH YOUR HEAD IN." Hill stepped

in front of Rhea, told him to leave, and Rhea walked away. When I said something else that Hill could not hear, Rhea briefly came back around the corner; Hill again told him to leave, and he did.

That report is more precise than the version I told for years. It documents Rhea's threat and Hill's intervention. It does **not** say Hill physically restrained Rhea, pinned him against a wall, or prevented an assault already in progress. It also records my own profanity immediately before Rhea approached. Those details stay in because the report is stronger evidence than my later reconstruction.

That hallway confrontation and the Tannehill civil proceeding help explain the volatility of the period, but they are not the Lynch charging instrument and should not be merged into it.

Likewise, Crowder's family-court litigation added pressure and instability to my life, but I do not know that she caused the Lynch arrest. The temptation to make every contemporaneous conflict part of one coordinated machine is exactly the temptation this edition is trying to resist unless a document actually supplies the connection.

The May 26 arrest left me in the Lafayette County Detention Center until July 6, 2017. That date is independently reflected in my later contemporaneous communications and in the plea paperwork that follows.

July 6 is also the date the Criminal Information carrying the handwritten "or before May 8, 2017" language was filed and the date I entered the plea that ended the immediate prosecution.

The next chapter is about the pressure surrounding that plea: the \$150,000 bond, the weeks in custody, attorney Brennan Horan, the Tannehill civil order, and what I agreed to in exchange for getting out.

CHAPTER 5 — \$150,000, AND AN ORDER SIGNED UNDER DURESS

My initial appearance on the aggravated-stalking charge was held May 30, 2017, before Lafayette County Justice Court Judge Carolyn Bell. I had been arrested on Friday, May 26. The Memorial Day weekend passed with me in custody before I was brought before the court on Tuesday.

The bond set at that appearance was \$150,000. That amount appears not only in later litigation but in the separate habeas proceeding filed while I was still jailed. The June 8 motion in Cause No. L17-233 states that I was confined in the Lafayette County Detention Center with bail in the amount of \$150,000 and alleges that the amount was “excessive, oppressive and beyond the financial means” of me or my family and loved ones.

I argued then, and still believe, that the bond was excessive for the charge and circumstances. The legal merits of that claim belong in the Legal Analysis. The practical effect does not require a legal conclusion: I could not post \$150,000, so I stayed in jail.

My memory of the May 30 initial appearance includes two things I have repeated for years but cannot prove from a transcript because I do not have one. First, I remember Judge Bell meeting with sheriff’s investigators

before the hearing. Second, I remember trying to raise the dated rifle bill of sale and being stopped rather than having the document examined. Those remain my recollections. I am not converting them into an independently established ex parte violation or placing quotation marks around words I cannot reproduce from a record.

The bill of sale mattered to me because I had bought the identified Del-Ton AR-15 from Larry Watkins on May 20. I believed the accusation against me involved that rifle. The later Criminal Information would allege AR-15 conduct “on or before May 8, 2017.” But I still do not have the original May 26 probable-cause instrument showing that the May 8 allegation was before Judge Bell at the initial appearance. I can say I tried to raise the purchase date. I cannot say the judge was looking at the July 6 Criminal Information six weeks before it existed.

May 30 did not end with the bond hearing.

The same day, Chief Deputy Scott Mills and Major John Hill transported me from the detention center to Chancery Court for the restraining-order proceeding filed by Robyn and Rhea Tannehill. Hill’s later Sheriff’s Office narrative, Complaint No. 1.17-05125, is unusually useful because it records the sequence from the perspective of the officer assigned to escort me.

Hill wrote that the hearing was continued so I could obtain an attorney. Chancellor Glenn Alderson reset the matter for June 15 and extended the restraining order until the new hearing date.

Then the June 6 Board of Aldermen meeting came up in open court.

According to Hill, Rhea Tannehill told Judge Alderson that I was on the June agenda of the City of Oxford Board of Aldermen and that he did not want me there while the restraining order was in place. Hill recorded my response too: I said I should be allowed to attend because I had been placed on the agenda before the restraining order existed. Hill wrote that Judge Alderson instructed me to stay away and said that if I showed up, I was to be arrested.

That detail matters because the Board record survives independently.

The official minutes for the June 6, 2017 regular meeting list item seven as: “Matt Reardon to address the board regarding the state flag.” The minutes then record what happened when the item was reached: “Mr. Reardon was not present to address the board.”

I was not absent because I had abandoned the flag issue. I was in the Lafayette County Detention Center on the \$150,000 bond, and Hill’s report says that four days earlier the Chancery judge had specifically instructed me not to attend.

I do not need to infer a hidden motive from that chronology. The paper is enough. On May 16 I had been told to return and get on the agenda. The June 6 minutes show that I did. The May 30 Sheriff’s report shows the restraining-order issue being raised while I was in custody. And the June 6 minutes show the empty agenda slot where I would have spoken.

The May 30 Chancery hearing also produced the hallway confrontation with Rhea Tannehill.

Hill wrote that after court he seated me in a chair in the southeast back hallway while Mills went back inside to check on paperwork I had to sign. Rhea came out through the courtroom door near the judge’s chambers. Hill recorded me saying, “FUCK YOU. YOU ARE A FUCKING LIAR.” He then wrote that Rhea started walking toward me with a water bottle in his hand and said, “I’LL BASH YOUR HEAD IN.” Hill stepped in front of Rhea and told him to leave. Rhea walked away, came back briefly after I said something Hill could not hear, and then left when Hill again told him to go.

That report is stronger than the version I told from memory for years. It documents the threat and Hill’s intervention. It does not say Hill pinned Rhea against a wall, physically restrained him, or stopped an assault already underway. It also records my profanity immediately before Rhea approached me. Both sides of the exchange remain in this edition because the contemporaneous report is the better source.

The Tannehills’ May 22 petition is equally important because it preserves what they were asking the court to consider.

Rhea's sworn filing recounted my political attacks on Oxford officials, "Southern Fury is coming" language, discussion of obtaining a bulletproof vest, firearm-related posts, statements about "havoc and carnage," and videos he characterized as threatening. Robyn's affidavit stated that she supported my right to advocate for the Mississippi flag but believed the combination of my words and conduct made her fear violence against herself or her family.

I dispute portions of their interpretation of my speech. I also cannot write the petition off as though it contained nothing but disagreement over a flag. Some of my own words were aggressive. A fair account has to allow the reader to see why the Tannehills presented those statements to a judge as evidence of fear, while separately examining what legal restrictions could constitutionally follow from them.

The petition also confirms a preexisting connection that matters later without proving a conspiracy: Rhea Tannehill stated under oath that he had represented "Lizzie Crowder" in a 2016 domestic matter arising from an affidavit I had filed. That relationship is documented. It does not establish that Crowder caused Todd Lynch's criminal complaint or participated in the May 26 arrest decision. I do not know that she did.

By early June I remained in jail, and the bond itself became the subject of a separate case.

On June 8, attorney Kristian A. McCray of the Trout Law Firm filed a Motion for Writ of Habeas Corpus Seeking Bail Reduction in Lafayette County Circuit Court, Cause No. L17-233. The motion did not speak in abstractions. It identified the detention center, the \$150,000 bond, and my inability to pay. It alleged that the confinement was illegal because the bail was excessive and beyond my financial means, invoking the Eighth and Fourteenth Amendments and provisions of the Mississippi Constitution. It asked the Circuit Court either to discharge me from what the motion called illegal confinement or reduce the bail to a reasonable amount.

The same file contains my in-forma-pauperis affidavit. Through counsel, I stated that because of poverty I could not pay the fees and costs of the proceeding and believed I was entitled to relief. The court entered an order allowing the habeas action to proceed in forma pauperis on June 8.

The docket matters because it corrects another piece of my own later understanding. For years I described learning only afterward that a habeas petition had somehow been filed and approved while I sat in jail. The surviving file shows exactly what existed: a separate Circuit Court cause, L17-233, with McCray as counsel; a June 8 motion specifically attacking the \$150,000 bail; and a June 8 order permitting the case to proceed without prepayment of fees.

What the file does not show is an order reducing my bond.

The habeas case remained on the docket long after I was released and was eventually dismissed as a stale case on November 30, 2018 because no step had been taken to prosecute it for more than a year. That later dismissal does not erase the importance of the June 2017 filing. It demonstrates that while I was jailed, an attorney had already put the bond issue before the Circuit Court in a formal proceeding.

Meanwhile, the Tannehill case continued toward the June 15 setting.

Attorney Brennan Horan became involved in my defense during this period. My account—and I want the sourcing level stated plainly—is that Horan advised me that agreeing to make the Tannehill restraining order permanent would help move me toward release. I signed because I wanted out of jail. I have consistently described that decision as being made under duress created by detention, the unaffordable bond, the family-court pressure outside the jail, and the belief that remaining in custody was making it harder to protect my relationship with my daughter.

That is what I mean when I use the word duress in the narrative sense.

It is not the same thing as proving legal duress. The signed plea documents that come later contain sworn statements in which I denied being threatened, intimidated, coerced, or forced. Those statements are part of the record and cannot be written around. My later position is that the practical pressure of incarceration drove my decisions. The contemporaneous plea record says I formally represented the plea as voluntary. The tension between those two things is one of the central evidentiary problems in any later challenge.

In an unfiled draft motion prepared years afterward, I alleged something more specific: that Horan told me signing the permanent Tannehill order would result in dismissal of the Lynch aggravated-stalking case. I still remember the advice that way. But the witness affidavit referenced in that draft has not been located, and I have no recording of the conversation. The specific promise therefore remains my account, not a documented admission by Horan.

The Lynch case was not dismissed after I signed the civil order.

It continued while I remained incarcerated.

I have also described Brennan Horan's family relationship to then-state legislator Kevin Horan as a conflict of interest. The family relationship appears in my own files. What I do not have is evidence that Kevin Horan participated in my criminal case or influenced Brennan Horan's representation. The publication text therefore does not turn kinship into a proven conflict.

The same correction applies to another claim I repeated for years: that Brennan Horan and Rhea Tannehill attended law school together. A June 27, 2020 message from attorney Christi McCoy contradicts that account. After checking bar information, she told me Brennan had graduated roughly ten years before Rhea and that they had not been in law school together. I do not have evidence overriding that correction, so the law-school claim is withdrawn.

By the second half of June, the pressure was no longer just the original \$150,000 number.

The official Oxford minutes now contained a public record that I had been scheduled to address the Board and had not appeared. The separate habeas action was on file but had not produced my release. The Tannehill order was still part of my legal landscape. The Lynch felony charge remained pending. My family litigation continued outside the walls of the detention center. Every day I remained jailed made those proceedings harder for me to participate in directly.

That practical reality is why the chronology matters more than generalized language about jail “breaking” a defendant. I do not need to speculate about what detention centers are designed to do. I can identify what the documents show happened while I was there.

May 26: arrest.

May 30: initial appearance, \$150,000 bond, Chancery hearing, continuation of the restraining-order case, and a judicial instruction that I not attend the June 6 Board meeting.

June 6: the Board minutes called my agenda item and recorded that I was not present.

June 8: the habeas case formally challenged the bond and was allowed to proceed in forma pauperis.

June 15: the continued restraining-order date arrived while I remained in custody.

June 22: the criminal-case record later reflected Brennan Horan’s formal involvement in my defense.

And then came July 6.

By that date I had been detained for more than forty days. The State had not taken the Lynch accusation to a grand jury. Instead, the case would be resolved through a waiver of indictment, a Criminal Information, a guilty-plea petition, a time-served sentence, banishment from Lafayette County, no-contact conditions, and a civil covenant not to sue the local governments and people tied to the prosecution.

Those are not later recollections. Those papers survive.

The next chapter follows them in the order they were signed.

CHAPTER 6 — SIX WEEKS AND THE PLEA

By July 6, 2017, I had been in the Lafayette County Detention Center for more than forty days.

The June 8 habeas case had put the \$150,000 bond before the Circuit Court but had not produced my release. The Lynch aggravated-stalking case was still pending. The Tannehill restraining order remained in place. I had missed the June 6 Board of Aldermen meeting where the official minutes recorded my agenda item and my absence.

Then the criminal case moved very quickly.

The file for Cause No. LK17-295 contains a cluster of documents all generated around the same resolution: a waiver of indictment, a Criminal Information, a petition to plead guilty, a time-served sentencing order, a criminal-disposition form, and a Covenant Not To Sue. Years later, Chief Deputy Scott Mills requested the court reporter's transcript of the guilty-plea hearing. That transcript was filed in August 2020 and now provides the best record of what happened in the courtroom on July 6.

The hearing was before Circuit Judge John Kelly Luther. Assistant District Attorney Mickey Mallette appeared for the State. Brennan Horan represented me. Court reporter Dana R. Rakestraw took down the proceeding.

Judge Luther began by putting me under oath and explaining why he was going to ask questions. He said he did not want anyone pleading guilty to a crime the person had not committed and wanted to be satisfied that I understood the charge, the rights I was giving up, and the consequences of the plea.

That warning matters because what follows is not a record of a silent defendant being processed without questions. It is a record of me answering the court under oath.

The first major right I gave up was indictment by a grand jury.

The judge explained that a grand jury would ordinarily hear enough of the State's evidence to decide whether probable cause existed to charge me. He explained that by signing the waiver I was asking the State to skip that stage and proceed immediately by Criminal Information. When he asked whether I understood that right, I answered, "Yes, Your Honor." When he asked whether I wanted to waive indictment and proceed, I again answered yes.

The court approved the waiver.

That procedural choice is important because the Lynch case was not resolved after a grand jury returned an indictment. The State proceeded by information with my consent. The waiver form itself says that, after consulting counsel, I relinquished grand-jury presentment and requested immediate prosecution by information.

Then the charging date changed in open court.

Judge Luther began reading the Criminal Information as alleging that in June 2016 I committed stalking while displaying an AR-15 rifle with intent to place Todd or Ashley Lynch in reasonable fear of great bodily injury.

Horan interrupted: "It would have been May, Your Honor."

Mallette asked what he had written. Horan answered, “June.” Mallette asked the court for permission to amend the document. Judge Luther allowed him to strike June and write May. Horan stated that he had no objection. Mallette said the change would be made in blue ink and called the original month his error.

There was a brief pause while Horan said he was deciding one more issue.

When the hearing resumed, Judge Luther did not merely say “May.” He stated the amended allegation more precisely: the Criminal Information alleged that the acts occurred “on or before May 8th, 2017.”

I asked him to repeat the date.

He did: “On or before May 8th, 2017?”

I answered, “Yes, Your Honor.”

The judge asked whether I understood the charge as amended. I said yes. He asked whether I committed the crime. I said yes.

That exchange is one of the hardest pieces of evidence in this book for me because it cuts both ways.

The same archive contains the May 20 bill of sale for the identified Del-Ton AR-15. I have spent years arguing that the State’s May 8 weapon allegation cannot be reconciled with my acquisition of that rifle twelve days later. But the plea transcript shows that the May 8 date was stated directly to me in open court, that I asked for the date to be repeated, and that after hearing it again I pleaded guilty.

A publication that quoted the May 8 date without also reporting my sworn response would be incomplete.

The transcript does not show me producing the May 20 bill of sale at the guilty-plea hearing. It does not show me telling Judge Luther that the date was impossible. It does not show Horan objecting to May 8. Horan corrected the month from June to May, said he had no objection to the amendment, took a brief pause, and then told the court the defense was ready to proceed.

That record does not resolve why the charging date and rifle purchase date conflict. It does establish that the conflict was embedded in the charge I admitted under oath.

The court then asked the standard voluntariness questions.

Judge Luther asked whether I was under the influence of drugs or alcohol or anything that could affect my ability to understand the proceeding. I answered no. He asked whether I suffered from any physical, emotional, mental, or other disability affecting my understanding. I answered no.

Then he asked the question that any later coercion argument has to confront directly: whether anyone had beaten, threatened, coerced, or done anything to force me to plead guilty.

I answered, “No, Your Honor.”

He asked whether anyone had promised money, a reward, a lighter sentence, or any other inducement to persuade me to plead guilty.

Again I answered no.

The written guilty-plea petition says the same thing in more formal language. In that document I swore that I had not been beaten, threatened, mentally or physically forced, intimidated, or coerced; that I offered the plea freely and voluntarily; that I understood the rights I was waiving; that I believed Horan was competent and had done all anyone could do to counsel and assist me; and that I was satisfied with his advice.

Those sworn statements are not erased because I later described the plea as coerced.

My later account is different in an important way. I have said that after more than forty days in jail on a bond I could not make, with the custody and restraining-order proceedings continuing outside, I believed pleading guilty was the only realistic way to get out and return to my family responsibilities. I have also said Horan’s advice made the alternatives sound substantially worse.

Both records have to remain visible.

In July 2017 I told the court under oath that nobody had coerced me and that I was pleading voluntarily.

Within months, I was telling a court-referred psychologist that I had been “coerced under stress to get out and see” my daughter.

Years later I challenged the plea on that basis and on alleged failures of counsel and discovery.

The legal question whether those circumstances could overcome the sworn plea colloquy is different from the historical question of what I said at each point in time. This book answers the historical question by keeping both.

The plea paperwork also makes clear what I received in exchange for the guilty plea.

The Time Served Order imposed a five-year sentence in the custody of the Mississippi Department of Corrections, then reduced the sentence to time served and suspended the balance. I was placed on supervised probation for the balance of the sentence subject to a list of standard and special conditions.

Among the standard conditions were requirements that I commit no new offense, avoid controlled substances and prohibited intoxicants, report as directed, work at suitable employment, remain within approved geographic limits, support dependents where applicable, submit to testing, and waive extradition if Mississippi lawfully required my return.

The special conditions were more consequential to the rest of this story.

The order states that I was to have no contact with Todd and Ashley Lynch. It also states, in capital letters, that I was “BANISHED FROM LAFAYETTE COUNTY MS EXCEPT FOR MANDATORY CHANCERY COURT APPEARANCE.”

That sentence would follow me for years.

Banishment was not simply an instruction to avoid the Lynches. It removed me from the entire county except for the family-court appearances the order specifically preserved. Oxford was inside that county. The courthouse, City Hall, the Board of Aldermen, the Sheriff’s Department,

the places where the events of May had occurred—all were inside the territory from which the criminal judgment now excluded me unless an exception applied.

The disposition record identifies the result as a guilty plea to aggravated stalking under Mississippi Code § 97-3-107(2), with supervised probation for the balance of the sentence and the special conditions of no contact and banishment.

Then there was the civil-release component.

The Covenant Not To Sue is one page, but its scope is broad.

It begins by stating that the covenant is “a specific condition to the guilty plea entered in LK17-295.” It then says that I agreed not to bring civil claims against four groups: Lafayette County and its elected officials or employees; the Lafayette County Sheriff, identified in the document as Buddy East, and authorized deputies or representatives; the City of Oxford and its elected officials or employees; and Todd or Ashley Lynch.

The release language extends to conduct occurring before the covenant in connection with my charges, my social-media conduct, or conduct undertaken in furtherance of personally held political causes.

That last phrase is unusually expansive. The criminal resolution did not merely dispose of a stalking prosecution. It also required me, as a specific plea condition, to surrender civil claims against the county, the city, their officials and employees, the sheriff’s operation, and the two complaining witnesses for a defined body of past conduct that expressly included my political activity.

I signed it.

The Legal Analysis addresses the law governing release-dismissal agreements and why a signed covenant is not automatically invalid simply because it accompanied a criminal disposition. In the narrative, the factual point is enough: my release from six weeks of confinement was tied to a package that included a felony guilty plea, a suspended five-year sentence, supervision, no contact, countywide banishment, and a covenant relinquishing civil claims against many of the institutions and people I had been confronting.

That package also complicates my own later shorthand that I “signed something to get out.” I signed several things.

I waived indictment.

I signed a guilty-plea petition.

I admitted the amended May 8 charge in open court.

I accepted the sentencing conditions.

I signed the covenant not to sue.

And the court reduced the prison sentence to time served.

My later records place my release on July 6. The clerk’s appeal index lists the Time Served Order, Covenant Not To Sue, and criminal disposition as filed on July 7. That one-day difference reflects the distinction between what occurred in court and release on the plea date and when some of the resulting papers were entered into the file.

The criminal case did not disappear after I walked out.

The docket eventually showed \$630.50 in court costs. In January 2018 the district attorney moved for a contempt citation alleging that the balance had not been paid. The court later amended the sentencing paperwork to specify the \$630.50 cost and a \$50-per-month payment schedule. Those later events belong chronologically to the next phase of the story, but the obligation originated in this disposition.

The banishment also changed where I could live. By August 2017 I had moved to Water Valley. In November I married. My family life continued, but the county containing Oxford and the litigation that had consumed the previous months was now a place the criminal judgment told me to avoid except when Chancery Court required me there.

On September 11, 2017, another record was created that later became important to my account of the plea.

Licensed psychologist Dr. Joe Edward Morris evaluated me after a referral from Lafayette Chancery Court. His stated purpose was to determine whether I was psychologically and emotionally able to have unsupervised visitation with Lydia.

Morris described me as cooperative, appropriately dressed, maintaining good eye contact, motivated, and “a reliable informant.” He administered testing that included the MMPI-2, the 16 Personality Factor Test, Beck anxiety and depression inventories, and a parenting-discipline measure.

His mental-status observations were direct. He wrote that I was oriented in all spheres; that my affect was congruent; that I denied suicidal and homicidal ideation; that no psychotic signs or symptoms were indicated; that my thoughts were connected and logical; and that I “presented psychologically as stable.”

His testing produced mild elevations on the lie and paranoid scales of the MMPI-2, which he wrote were typical in the context of my legal circumstances, while the other results fell within normal or typical ranges. His conclusion was that I presented with “no significant psychological deficits” and that the scores reflected “an emotionally stable individual who would be an effective and caring parent” to my daughter. He wrote that no red flags surfaced indicating otherwise.

The report also contains the line I later relied on when describing the plea as coercive.

But the wording has to be kept straight.

Morris recorded that I told him I had been incarcerated for more than forty days and “was coerced under stress to get out and see his daughter.” That statement appears in the history I gave the psychologist. Morris did not independently adjudicate the plea as involuntary, diagnose legal coercion, or make a forensic finding that the court proceeding was invalid.

Its significance is temporal, not magical.

By September 2017—only about two months after the plea—I was already describing the jail experience to a court-referred psychologist as coercive. That makes the account contemporaneous enough to matter. It does not override the sworn answers I gave Judge Luther in July.

The two records sit beside each other.

July 6: under oath in Circuit Court, I said nobody had coerced me.

September 11: in the history I gave a psychologist, I described the incarceration and plea decision as coercive stress tied to getting out and seeing my daughter.

That tension would become the foundation of years of post-conviction argument.

One more document remained unresolved from the beginning of the case: the federal interview record from May 25.

I met with FBI personnel the day before the arrest and later spent years seeking what I expected would be an interview memorandum. I often referred to it as an “FBI 302.” I still do not possess an FBI-created memorandum that establishes every subject discussed at that meeting, and I cannot prove from the present archive that an FD-302 was created and then destroyed or disappeared. The meeting belongs in the chronology; the missing federal record belongs in the source-gap list.

That distinction now matters more, not less, because the state-court plea record is so complete.

For July 6, I have the paper and the transcript. I know what the judge asked. I know what Horan corrected. I know what the prosecutor amended. I know what date was repeated back to me. I know what I admitted. I know what rights I waived. I know what sentence was imposed. I know the banishment language. I know the covenant’s scope.

The strongest argument about 2017 has to begin there.

I left jail with a felony conviction, a suspended five-year sentence, supervision, a countywide banishment with a Chancery exception, no-contact conditions, court costs, and a signed civil release.

The next phase of the story begins after I left Lafayette County—and with a different accusation, one that an outside police investigator would eventually test against the contents of my phone.

CHAPTER 7 — A FALSE ACCUSATION WEAPONIZED

Phyllis Marie Crowder is the mother of my oldest daughter, Lydia. By late 2018, Crowder and I had already spent years fighting over custody, visitation, and trust. I was not blameless in the hostility between us. The record from those years contains my anger as well as hers.

What happened in November 2018 is different because an outside investigator reconstructed it from records that still survive.

On November 25, 2018, Crowder and I had a sexual encounter at my residence in Olive Branch. Four days later, on November 29, Olive Branch police were dispatched to Methodist Hospital after Crowder reported that I had sexually assaulted her during that encounter.

The police file preserves both accounts.

Crowder told police the sexual contact was not consensual. In a November 30 interview with Detective Ashley Holladay, she described the encounter in detail and continued to characterize it as sexual assault. The report also records circumstances surrounding the encounter, including that she

voluntarily removed her clothing, performed oral sex, later left my residence by herself, drove to McDonald's, and returned to my residence afterward.

Those facts do not, by themselves, legally decide consent. A person can leave and return, or perform one sexual act voluntarily, without consenting to every other act. The reason this investigation ended differently is the digital evidence Holladay obtained later.

On December 13, 2018, Holladay interviewed me after reading me my Miranda rights. I told him that Crowder and I had texted and planned for her to come to my residence to have sex and that the encounter was consensual. I gave him printed screenshots of the text conversations.

On December 18, I brought my phone to the Olive Branch Police Department. Holladay obtained a search warrant for it and had the device downloaded.

His written conclusion is the most important sentence in this chapter:

“The downloaded information matched the printed texts Reardon had previously provided and supported Reardon’s claims that this was a consensual sexual encounter. Based on the evidence, I found the allegation of rape to be a false report intentionally filed by Crowder.”

That is not my characterization of the detective’s work. It is Holladay’s own conclusion in the police narrative.

It also corrects an overstatement from earlier versions of this book. The text messages did not somehow make me the sole legal decision-maker on whether a rape occurred. Holladay was the investigator. He compared my screenshots with the downloaded contents of my phone, considered the competing accounts, and concluded that the evidence supported my claim of a consensual encounter and that Crowder intentionally filed a false rape report.

The false-reporting case was formally opened on February 13, 2019. Earlier drafts sometimes placed the charge in January. The police record gives the better date: February 13, 2019, report number 2019004743, nature of incident “False Report Of Crime,” summary “False Report of Rape.”

The general affidavit supporting warrant number 31808 likewise states that Crowder knowingly reported a crime she knew to be false and incorporates Holladay's investigation, including the phone download and his conclusion.

The warrant was not served immediately.

On January 25, 2020 — more than eleven months after the false-reporting case was opened — Olive Branch Patrol Officer S. George met Lafayette County officers on Highway 7 near the Marshall County line and took custody of Crowder on warrant 31808. The arrest report says she was processed at Olive Branch Police Department, bonded out through No Limit Bail Bonds, and given a February 11 municipal-court date. Her bond was \$2,500.

Those dates are important because they replace a vague story with an actual chronology:

November 25, 2018: the sexual encounter.

November 29: Crowder reported sexual assault.

November 30: Holladay interviewed Crowder.

December 13: Holladay interviewed me and received the printed text screenshots.

December 18: my phone was surrendered under warrant and downloaded.

February 13, 2019: the false-reporting case and warrant were generated from Holladay's investigation.

January 25, 2020: Crowder was arrested on that warrant.

I have other accusations and theories about what happened around this period — about Crowder's husband, recurring CPS reports, and what I believed were relationships between Crowder and people in Oxford. Some of those claims appear in sworn filings I later made. Some appear on recordings. They are not necessary to establish the false-reporting case, and mixing them into this chapter only weakens the record Holladay created.

The police file is enough.

It is also important to give Olive Branch Police credit where the record supports it. Holladay did not simply choose my story over Crowder's because I insisted I was innocent. He obtained the phone, compared the downloaded data with the screenshots I had supplied, and wrote the conclusion quoted above. In a book largely about records that I believe were distorted or ignored, this is an example of a record being built through actual evidence comparison.

That does not mean every later decision in the case was clean. It means the investigation itself produced a clear documentary finding.

Nearly two years after the original rape report, Crowder would enter a no-contest plea in Olive Branch Municipal Court to false reporting of a crime. The sentence, appeal, and remand became another long procedural fight — and earlier versions of this manuscript got several of those details wrong.

The next chapter corrects them from the municipal and county-court records.

CHAPTER 8 — CONVICTION AND CONTEMPT

By September 2020, the false-reporting case that Detective Ashley Holladay had built from the 2018 rape allegation had reached judgment. On September 22, 2020, Phyllis Crowder entered a no-contest plea in Olive Branch Municipal Court to false reporting of a crime. The later DeSoto County order dismissing her appeal identifies that September 22 disposition as a conviction.

The municipal-court paperwork matters because an earlier version of this book got the money wrong. The signed court order lists a \$1,000 fine and \$149.25 in assessments, for a total of \$1,149.25. It also records thirty days of jail time. The order suspended execution of the jail time and fine for thirty days to allow an appeal. That is the record I should have used from the beginning; the \$129.25 figure printed in an earlier draft was wrong.

The significance of the conviction was not simply that a court had entered a judgment against Crowder. It was what the underlying police file said. Holladay's false-reporting affidavit states that Crowder reported that our November 25, 2018 sexual encounter was nonconsensual. I told Holladay that Crowder and I had planned the encounter through text messages and that the sex was consensual. I gave him printed screenshots and later

surrendered my phone for examination. Holladay obtained a search warrant for the phone. He wrote that the downloaded contents matched the messages I had provided and supported my account that the encounter was consensual. He concluded that the rape allegation had been intentionally reported falsely.

That distinction is important. I am not claiming that no encounter occurred. An earlier version of my story sometimes compressed the episode too far. The police record says an encounter occurred; the dispute was consent. The detective's examination of the messages is what led him to conclude that the rape report was false.

The chronology between the September 22 judgment and the November appeal is unusually well documented because the court clerks and Crowder's attorney communicated by email.

On October 5, attorney Christi McCoy wrote to Olive Branch court personnel asking for a copy of Judge Shumake's order and specifically said she wanted to make sure she did not miss any appeal dates. Court employee Carla Johnson responded that she had reminded Judge Shumake and would forward the order when he provided it. The order was then transmitted by email on October 6.

That date later became important because Crowder argued that she did not actually receive the written judgment until October 6.

On October 26, Olive Branch court clerk Samantha Brock emailed McCoy after receiving a notice of appeal in the mail. Brock noted that Crowder was on the municipal docket the next morning and asked McCoy to contact her. McCoy responded: "Yes. We appealed the decision. Judge Shumake gave us 30 days to do so."

The exchange continued minutes later.

Brock asked whether the appeal had already been filed in County Court and said she had not understood that it could be done without a cost bill. She explained that Judge Shumake had just signed the cost bill that day and attached a copy. McCoy replied that they had been waiting for it and would submit the required money that week.

Those emails are significant for two reasons.

First, they show that appeal-related activity was underway in October. It would therefore be misleading to write that Crowder and her attorney simply did nothing until November 19.

Second, the legal filing date still controlled.

The formal de novo appeal in the County Court of DeSoto County was not filed until November 19, 2020. The county case was State of Mississippi/ City of Olive Branch v. Phyllis Crowder, Cause No. S2020-0024(CD). The fee bill shows a \$1,319.25 payment received that day for the appeal.

Four days later, on November 23, DeSoto County Court employee Allison Pannell emailed Brock that the Notice of Appeal had been filed on November 19 and that she would forward a copy after processing. In a second email that morning, marked important, Pannell wrote: “This appeal is out of time, I will keep you advised if we need the court records and how our Judge moves forward.”

The judge moved forward that same day.

The County Court’s November 23 Order of Dismissal did not treat the timing as a close question. The court acknowledged the correspondence showing that Crowder said she did not receive the municipal judgment until October 6. It then gave her the benefit of using October 6 as the operative date and calculated that the thirty-day appeal period expired on November 5.

The order states: “Defendant’s appeal is two weeks late.”

The court cited Mississippi Rule of Criminal Procedure 29.1 and concluded that the untimely notice deprived it of jurisdiction to entertain the de novo appeal. It dismissed the appeal and returned the matter to the Olive Branch Municipal Court so execution of the municipal judgment could proceed.

That wording corrects two mistakes from earlier versions of this manuscript.

The reviewing court was the **County Court of DeSoto County**, not the Circuit Court.

And the County Court did not hear the false-reporting case on its merits and then remand it. It dismissed the appeal as untimely because it lacked jurisdiction and returned the case so the municipal judgment could be executed.

The paper trail after the dismissal continues.

At 2:02 p.m. on November 23, Brock emailed McCoy that Olive Branch had received the County Court's dismissal and needed to put Crowder's case back on the municipal docket. Brock offered December 1, December 8, or December 15, morning or afternoon.

A week later, on November 30, McCoy asked Brock to set the matter for December 8 in the afternoon "and get this done as quickly as possible." Brock set it for December 8 at 2:00 p.m.

Those emails eliminate any basis for saying the remand simply disappeared into silence. The municipal court received the dismissal, contacted defense counsel the same day, and put the case back on the calendar.

What they do not answer is what ultimately happened to the suspended thirty-day jail sentence.

That is where my own account and the surviving record diverge.

I spent the period after the remand pressing for information about enforcement. I expected a late appeal that had been dismissed for lack of jurisdiction to result in execution of the original municipal judgment. I became convinced that Crowder was receiving treatment I would not have received in the same position.

The documents currently in the publication archive do not contain an order stating that Judge Shumake refused to execute his own sentence. They also do not contain a later order explaining that the thirty days were formally eliminated. Without one of those records, I cannot responsibly convert my frustration into a finding about the judge's motive or intent.

The strongest statement is narrower: the municipal judgment imposed thirty days and \$1,149.25; execution was suspended for the appeal period; the formal County Court appeal was untimely and dismissed; the County Court returned the case for execution of the municipal judgment; Olive

Branch promptly reset the matter for December 8; and the record presently before me does not explain why Crowder did not ultimately serve the thirty-day term in the manner I expected.

The money figures also need to remain separated.

The September 22 municipal judgment lists a \$1,000 fine plus \$149.25 in assessments, totaling \$1,149.25.

The later appeal cost bill is different. It reflects a \$1,000 fine, \$209.25 in assessments, and \$110 in County Court costs, for an appeal-related total of \$1,319.25. The receipt in the DeSoto County file shows the \$1,319.25 payment on November 19.

Those are not competing versions of a single sentence. They are figures generated at different procedural stages.

The appeal correspondence contains one other revealing detail—not about the merits, but about the atmosphere surrounding the case.

On November 23, Pannell wrote to Brock that Crowder’s attorney had told her “the other Party involved in this case records your conversations and puts them on Social Media!??” followed by “Wow.”

I was that other party.

By then recording public officials and publishing government interactions had become part of how I preserved evidence and applied public pressure. The email is not proof that anyone treated Crowder differently because I recorded people. It is evidence that the practice was known inside the court communications surrounding her appeal.

That matters because I was becoming more aggressive about records at the same time.

On November 19—the same date Crowder’s County Court appeal was formally filed—I completed an Olive Branch public-records request seeking records associated with the false-reporting matter. I wanted the underlying reports, court documents, and evidence surrounding the prosecution. The fact that Holladay’s investigation had supported me did not reduce my interest in the record. It increased it. For once, I had a police

file in which the investigator had checked the electronic evidence and reached a conclusion favorable to me, and I wanted the paper trail preserved.

My approach to government records during this period was not subtle. I called. I emailed. I recorded. I accused officials of misconduct when I believed records were being withheld. I published parts of those confrontations. Sometimes that pressure produced documents. Sometimes it made the relationship with officials more adversarial. Both consequences became part of what followed.

The Crowder conviction also overlapped with my own family-court litigation. In late August and September 2020, new Chancery filings were being prepared and filed in the custody case. I believed some notarized material was being reused improperly and began developing what I later called a notary-fraud theory. As Chapter 9 explains, I do not have a disciplinary or judicial finding establishing notary fraud. What I had were documents I thought did not line up, and I started treating every unexplained irregularity as something that needed to be preserved and challenged.

That mindset was reinforced by the contrast in the false-reporting case.

Holladay had collected evidence rather than simply choosing a story. He compared the screenshots I supplied against the downloaded contents of my phone. His written finding followed that comparison. The municipal court entered a conviction. The County Court enforced its filing deadline against Crowder. The clerks documented what happened in emails with dates and times.

That was what I increasingly wanted from every dispute: a record capable of being checked later.

I did not leave the Olive Branch matter alone. My records demands became confrontational. A courtroom dispute eventually produced a contempt proceeding against me and a \$500 bond. I later filed a pro se federal lawsuit against the City of Olive Branch seeking \$10 million.

Those decisions belong in this book without pretending that escalating every conflict was strategically wise. By late 2020 I had begun responding to institutional resistance by increasing the pressure—more records demands, more recordings, more public accusations, and more litigation. Some of what I was documenting was real and important. Some of the legal theories I attached to it were weak. The difference would take years for me to learn.

The false-reporting case remains one of the clearest examples of why the distinction matters.

The documented record is substantial enough on its own:

Crowder reported rape.

Holladay investigated.

The phone download supported my account.

He concluded the rape report was intentionally false.

Crowder was charged.

She entered a no-contest plea and was convicted.

The municipal court imposed thirty days and \$1,149.25.

Her appeal-related communications began in October, but the formal County Court appeal was not filed until November 19.

The County Court held it was two weeks late, dismissed it for lack of jurisdiction, and returned the matter for execution of judgment.

Olive Branch put it back on the docket.

What happened after that point is less completely documented, so that is where the certainty stops.

At the same time, I was reopening my own 2017 conviction and demanding the records I believed had never been produced before I pleaded guilty.

That fight is where the next chapter begins.

CHAPTER 9 — THE BATTLE FOR EVIDENCE

By 2020, I was no longer trying only to explain why I believed the 2017 conviction was wrong. I was trying to reopen it.

The first problem was evidence.

On May 20, 2020, I submitted a public-records request to the Lafayette County Sheriff's Department seeking the original affidavit or police report underlying the May 2017 aggravated-stalking case involving Todd and Ashley Lynch. On May 22, I received what I regarded as the wrong document: Bundren's May 30 reporting narrative, created after the May 26 arrest. I followed up on May 28 asking again for the initiating record.

That exchange is the origin of one of the most important source gaps in this book. I have the May 30 narrative. I have the later July 6 Criminal Information. I have the July 6 plea transcript. I do not have the original initiating affidavit, complaint, or warrant application that would let me compare, word for word, what was presented before the arrest with what the State formally charged later.

The distinction sounds technical until the dates are placed beside one another.

The later Criminal Information alleged AR-15 conduct “on or before May 8, 2017.” My surviving bill of sale identifies the Del-Ton rifle I associated with the case as purchased May 20. If the pre-arrest instrument used the same allegation and the same rifle, that would be important. But the document that could establish that connection is exactly the one I was asking the Sheriff’s Department to produce.

I did not understand all of those evidentiary limits in 2020. At the time I treated the date conflict as proof that the entire arrest had been fabricated around an impossible allegation. The records I now have support a narrower proposition: the later formal charge contained the May 8 date; the identified Del-Ton rifle was purchased May 20; and the initiating May 26 probable-cause document remains missing from my archive.

On June 1, 2020, I emailed Kathy Sturdivant, the court administrator for Circuit Judge John Kelly Luther, describing the problems I believed I had found in the 2017 case and asking how to obtain judicial review. Sturdivant responded the next day that Judge Luther had reviewed my emails and advised me to follow Mississippi’s post-conviction procedures if I wanted to challenge the guilty plea.

I began preparing to do exactly that.

One of the useful things about the 2020 archive is that it preserves my thinking before I filed the post-conviction motion. I was corresponding with attorney Christi McCoy, who was involved in Crowder’s separate Olive Branch case. Those messages are not privileged advice to me in the ordinary attorney-client sense; McCoy repeatedly made clear that she was not my lawyer. They are valuable because she was a lawyer looking at pieces of my story while I was assembling it, and she sometimes told me directly when my theories were getting ahead of my proof.

On June 27, I told McCoy that the 2017 Criminal Information alleged that “on or before May 8” I had put the Lynches in fear with an AR-15 and that I did not purchase the rifle until May 20. I also told her that I had pleaded under duress, that I had not been indicted, and that I believed discovery had never been properly pursued.

McCoy did not simply endorse my theory.

She asked what information I had relied on when entering the plea and whether I had proceeded by information rather than indictment. When I described the covenant not to sue, she called it “a little unusual” in her experience and asked whether it had been part of a bargain in which the State would recommend no jail time if I signed the covenant. She also told me she was not sure the covenant or banishment was valid. Those were her contemporaneous impressions, not judicial rulings.

Her most useful advice came when I began treating every irregularity as part of the same conspiracy.

On June 30, McCoy told me she had no desire to argue with me but wanted to correct one point: based on what she knew, this was not a §1983 case she would file under her own name. She said I might have a decent post-conviction claim but advised me that my best chance was to “stick with the facts and don’t muddy the waters.”

That sentence reads differently to me now than it did then.

At the time, I was frustrated by it. I believed I had finally assembled enough interconnected material to explain what had happened in 2017. I was talking about Sheriff Joey East, the old Pruitt arrest, the Lynches, the Tannehills, Crowder, court records, the FBI, the missing Sheriff’s call, and the covenant as pieces of one design.

McCoy was telling me that even if some pieces were important, joining all of them together could make the claim weaker rather than stronger.

The advice became even more pointed in early July.

When I told her I expected an evidentiary hearing on my PCR, she warned me that trial courts often rule on post-conviction petitions without one. She asked what evidence I had that could not have been known on the day of the plea and told me to identify that clearly.

Then she addressed the May 8 date.

Her response was not what I wanted to hear. She told me the date issue could be treated as a nonissue because **I knew when I bought the gun at the time of the plea**. Her question was straightforward: why had I not brought it up then? She contrasted that problem with two issues she

thought were more favorable to me—the claimed lack of access to discovery and the very limited contact I said I had with counsel while I was in custody. She told me to document the number of days in custody, the number and duration of attorney visits, and the lack of discovery review.

That exchange belongs in this edition because it exposes the weakness in the argument before a judge ever ruled on it.

The July 6 plea transcript now makes McCoy's point sharper. Judge Luther stated the May 8 date to me. I asked him to repeat it. He repeated it. I admitted the charge. The transcript does not show me raising the May 20 receipt in response.

That does not explain the date discrepancy. It does explain why a post-conviction court could view the discrepancy differently from the way I did. Evidence can be powerful and still be procedurally difficult if the defendant knew the underlying fact before pleading guilty.

I filed the post-conviction motion on July 7, 2020, in the Circuit Court of Lafayette County. The new proceeding was Cause No. L20-316.

That number needs to remain distinct from LK17-295, the underlying criminal case, and L17-233, the 2017 habeas matter. Earlier timelines sometimes blurred those files together. They were different proceedings with different procedural purposes.

L20-316 attacked the guilty plea. I raised the missing initiating records, the rifle-purchase chronology, the circumstances of the detention and plea, alleged deficiencies in counsel's representation, and constitutional arguments challenging the judgment.

On July 30, Judge Luther entered an order summarily denying post-conviction relief under Mississippi Code § 99-39-11(2). He did not grant the evidentiary hearing I expected.

I filed for rehearing. I sought recusal. I tried to compel records. Later orders denied reconsideration and recusal and treated the motion to compel as moot.

Those are the procedural facts.

The judge-assignment dispute is less clean.

In my 2020 filings I asserted that L20-316 had originally shown Judge Kent Smith and questioned why Judge Luther was deciding it. I later recorded public-docket information that I interpreted as showing an assignment change. I treated that as proof of manipulation.

The present archive does not contain a certified administrative assignment history showing when the assignment changed, who changed it, or why. A docket field that changes does not tell me who made the change or whether it was improper. Multi-judge courts reassign cases for ordinary reasons. The fact that Luther signed the orders is established. My claim that someone fraudulently changed the assignment remains an allegation unless the administrative record proves it.

That was not how I spoke about it at the time.

The contemporary messages show me escalating quickly from discrepancy to accusation. I told people the judge had been changed “fraudulently.” I interpreted difficulty accessing the electronic case as evidence that the cause was being hidden. I connected the assignment to officials I was already accusing of misconduct.

In hindsight, the evidentiary problem is obvious: a system display can show that something changed without showing why.

The same problem affected my records fight with the Sheriff’s Department.

I made calls and sent demands trying to identify the source of the May 24, 2017 information that caused Investigator Jared Bundren to review my Facebook material. I wanted call logs, recordings, affidavits, notes, and the actual pre-arrest probable-cause paper. I accused county attorney David O’Donnell and Sheriff’s officials of obstructing disclosure when the records I expected did not arrive.

Those communications prove I was demanding the records. They do not prove O’Donnell ordered anyone to destroy or suppress them.

The difference between those propositions is now one of the rules of this manuscript.

A missing document is a missing document.

A refusal or incomplete response can be documented if the correspondence shows it.

A deliberate cover-up requires evidence of intent.

I did not always maintain that distinction in 2020.

The evidence fight also spilled into the Crowder custody litigation. I began comparing affidavits and Chancery filings and concluded that notarized material had been duplicated or reused improperly. The document at the center of that theory was notarized August 26, 2020. Other filings followed in September and October.

I called the pattern notary fraud.

No court, notary authority, or disciplinary body in the present record has made that finding. What I can prove is that I compared the filings, believed the jurats or sworn material were being reused, and raised the issue repeatedly. The documents themselves belong in the evidence archive where the reader can compare them. My conclusion about criminal intent does not become evidence merely because I wrote it in a motion.

Another theory I developed was that new Chancery litigation had been timed to help Crowder in the false-reporting prosecution. The chronology fueled that suspicion: her municipal case was approaching judgment while the custody litigation became active again. But the correspondence I have reviewed does not contain a statement from Crowder, Pittman, McCoy, or a court official saying that the Chancery filings were designed to alter the criminal result. That causal allegation therefore cannot be printed as fact.

By late 2020 my relationship with McCoy illustrates the larger problem.

She was willing to point me toward potentially useful issues. She questioned the unusual covenant. She recognized that limited attorney contact and lack of discovery could matter. She also repeatedly told me that post-conviction relief was difficult and that I was weakening myself when I mixed stronger issues with sweeping theories.

I did not always take the advice.

I was convinced that if I could simply collect enough documents, the whole system would resolve into one explanation. Every new discrepancy seemed to validate the larger picture. That made me persistent. It also made me vulnerable to overclaiming.

The present manuscript has the advantage I did not have in 2020: six more years of records.

Some things I suspected turned out to have documentary support. Some did not. Some remain unresolved. Some of my own factual descriptions were wrong.

That is why the absence of the May 2017 initiating affidavit remains so important. It is not proof that the affidavit was destroyed. It is not proof that it contained the later May 8 allegation. It is not proof that the arrest was fabricated.

It is the missing record that would answer one of those questions.

What I can prove about the post-conviction fight is already substantial:

I requested the original initiating record on May 20, 2020.

The Sheriff's Department produced the May 30 narrative instead.

I followed up.

I contacted Judge Luther's administrator and was directed to use the post-conviction process.

I consulted informally with an attorney who warned me to separate facts from theories and identified discovery and attorney access as stronger issues than I wanted to admit.

I filed L20-316 on July 7.

Judge Luther denied it without an evidentiary hearing on July 30.

I sought rehearing, recusal, and additional evidence.

And the underlying pre-arrest document remained outside the archive.

That was the environment in which the rest of 2020 unfolded: one criminal conviction I was trying to reopen, another criminal case in which the police had concluded that Crowder falsely accused me, renewed family litigation, and an increasing habit of recording and preserving every government interaction I could.

The next chapter turns to the family reports that were occurring at the same time—and to the difference between a documented allegation, an unsubstantiated report, and a proven false report.

CHAPTER 10 — THREE YEARS RUNNING

By July 2020, Madelyn and I had begun describing what was happening around our family as a pattern.

I want to be careful about what that means, because an earlier version of this chapter turned our description into more proof than the records support.

During a Child Protective Services home visit in July 2020, which we recorded, Madelyn and I told the caseworker that allegations involving Crowder had recurred “three years in a row.” We also described what we believed was a recurring timing pattern around pregnancies and miscarriages in Crowder’s life. Those statements are valuable because they show what we were saying in real time, before this book existed. They do not prove that every allegation came through the same CPS hotline, that the timing caused the reports, or that Crowder acted from any particular psychological motive.

The underlying events were not all the same kind of report.

One was a child-welfare allegation I later described under oath as having occurred around 2017. One was the November 2018 rape allegation that Olive Branch police investigated and that Detective Holladay ultimately concluded was an intentionally false report. Another involved Lydia and Madelyn in January 2020 and generated both a CPS contact and a Lafayette County Sheriff's Office report.

That January 2020 report survives.

On January 24, Deputy Brian Howell spoke with Crowder at the Sheriff's Office. His report, Complaint No. L20-000381, is classified as "CHILD ABUSE." Howell wrote that Crowder told him Lydia had been with me from January 17 through January 23 and, after getting into Crowder's car, said: "mommy Maddy hit me really hard because I didn't eat all my sandwich."

Crowder also told Howell that she had contacted a CPS worker identified in the report as Mercedes and that Mercedes had advised her to make a report with the Sheriff's Office.

Howell then called me. His report does not make me look calm. It says I "started going off on Phyllis," told him, "thank you for your time and tell her to kick fucking rocks," and hung up.

That is part of the record too.

The next day, January 25, I called Deputy Joe Quarles and told him Crowder had an outstanding Olive Branch warrant for filing a false police report. Quarles's supplemental report says he checked with Olive Branch, dispatch received a hard copy of the warrant, and the information was passed through supervisors. Crowder was then taken into Olive Branch custody on the false-reporting warrant discussed in Chapter 7.

Those two events — a fresh child-abuse report involving my household and the service of Crowder's older false-reporting warrant — occurred within about a day of each other. That timing intensified my belief that the family conflict and the criminal accusations were feeding each other. It does not, by itself, prove that one caused the other.

On February 14, 2020, Crowder made another report to the Sheriff's Office. Deputy Ethan Tidwell wrote that Crowder said I was harassing her on Facebook, that DHS had an active investigation involving me and my wife, and that she had not allowed me to see Lydia because of that investigation. The same report says Crowder was worried I had "begun stalking her again," but that "she does not have any proof." Tidwell advised her to take the court paperwork and proof of any violation to her lawyer and to consider seeking a protection order through Justice Court.

The phrase "she does not have any proof" is Tidwell's report, not my paraphrase.

A separate Sheriff's Office record from this general period also preserves Crowder telling a deputy: "C.P.S. (Child Protective Services) has told me to end all visitation for him." I disputed that assertion at the time and said CPS personnel had told me otherwise. I have referred on recordings to conversations with CPS that I said disproved Crowder's claim. Until the specific CPS recordings or written agency determination are placed directly into the evidence set, this edition will state the conflict accurately rather than declare the agency's side from a recording I have not yet re-verified.

That is an example of why the phrase "three years running" needs care.

The records do show repeated allegations and reports involving Crowder, me, Madelyn, and Lydia over multiple years. They do not currently establish three identical, malicious CPS reports from the same source on the same schedule. In July 2020, Madelyn and I believed we were seeing a recurring pattern and told the caseworker so. That contemporaneous belief belongs in the memoir. The causal theory we attached to it belongs in the memoir only as our theory.

We also used language during that recorded visit speculating about Crowder's mental health. I am not repeating a lay psychiatric diagnosis as though it were a medical fact. Neither Madelyn nor I was qualified to diagnose Crowder, and I do not have a clinical record doing so. The relevant point is not what label we used under stress. It is that we were trying to persuade a state investigator that the new allegation should be evaluated in the context of a longer history rather than as an isolated event.

That distinction matters for Crowder as much as it does for me. A report that is not substantiated does not automatically prove the reporter knowingly lied. Child-protection systems are supposed to accept reports that may turn out to be mistaken. The November 2018 rape allegation is different because Detective Holladay affirmatively concluded, after examining the phone evidence, that the report was intentionally false. The January 2020 child-abuse report does not carry an equivalent finding in the records I have reviewed for this chapter.

By the end of 2020, I had become consumed with preserving evidence from every direction: police reports, CPS contacts, phone calls, court filings, screenshots, and docket entries. Part of that habit was rational. Some records later proved things I had been unable to prove at the time. Part of it also fed my tendency to interpret separate events as one coordinated system before I had evidence of coordination.

That tension runs through the rest of this book.

I was not imagining every discrepancy. Holladay's false-reporting file existed. The missing 2017 initiating affidavit was a real records gap. The January 2020 Sheriff's reports say exactly what they say. But a collection of real discrepancies does not automatically validate every theory I built around them.

As 2020 became 2021, the focus shifted from family reports and records requests to a traffic stop on an ice-covered Mississippi road.

On February 21, 2021, Deputy Kandi Beavers pulled me over. The charge that followed would eventually become one of the convictions I appealed all the way to the Mississippi Court of Appeals.

CHAPTER 11 — THE FEBRUARY 2021 DUI SETUP

On February 21, 2021, at approximately 1:54 a.m., Deputies Jacob Williford and Kandis Beavers saw my 2013 Kia traveling east on Jackson Avenue with one headlight illuminated.

That is the reason for the stop in Williford's report. He did not write that I was weaving, speeding, or driving erratically. He turned around, followed me onto Hathorn Road near the Ole Miss softball fields, and initiated the traffic stop because of the headlight.

My wife was in the vehicle with me.

Williford wrote that when he approached the driver's side, he smelled what he believed, based on training and experience, to be burned marijuana. He asked whether there was anything illegal inside. I said there was not. After I stepped out, he had my wife step out as well and searched the vehicle. His report says he found no contraband.

That part of the officer's report is important because my own recording of the stop substantially tracks it. I did not deny that I had smoked marijuana earlier in the evening. Beavers's report says I told her I had smoked before

11:00 p.m., that my wife had contacted me because she had left medication at home, and that I had taken “one hit out of a one hitter” before leaving to bring the medication to her.

I also told the deputies I did not believe I was impaired.

Beavers wrote that she could smell marijuana from the vehicle but not from me once we were standing away from it. Because I admitted smoking earlier, she told me she wanted to administer tests to determine whether I was safe to drive.

The weather complicated that plan. Both reports describe below-freezing temperatures and snow or ice on the ground. Rather than conduct the tests roadside, Beavers said I would be transported to the Lafayette County Detention Center’s garage, commonly called the sallyport, for the testing.

I objected. Beavers’s own report says I became upset and told her I did not consent to being transported for the tests. I asked for a supervisor. Lieutenant John Dukes arrived. According to Beavers, Dukes told me I would have to go to the detention center to perform the tests. Beavers then told me that, if she concluded I was able to drive after the tests, I would be returned to my vehicle. Her report says I agreed to go after that explanation.

I was handcuffed for transport. My wife was allowed to leave with the Kia.

At the sallyport, Beavers removed the handcuffs and administered field-sobriety testing. Her report is more detailed than the simplified version I told for years.

On horizontal gaze nystagmus, she recorded no clues.

On a modified Romberg balance test, she wrote that I estimated thirty seconds in thirty-five seconds and displayed eyelid and body tremors and swaying.

On lack of convergence, she wrote that my left eye did not converge as expected.

On the walk-and-turn, she recorded four of eight clues, including difficulty maintaining balance during instructions, missing heel-to-toe, stepping off line, and making an improper turn.

On the one-leg stand, she recorded two clues: using my arms for balance and swaying.

After the tests, Beavers asked me to rate myself from zero to ten, with zero sober and ten the highest I had ever been. Her report says I answered zero.

She concluded I was not safe to drive and arrested me for DUI first offense. Williford also cited me for the expired tag and improper equipment.

The Sheriff's report lists no physical evidence recovered from the vehicle. Williford expressly wrote that he found no contraband. Beavers's report lists "EVIDENCE: n/a." I was not charged with possession of marijuana or paraphernalia from this stop.

That is the factual core of the case. It is more complicated than saying the deputies simply invented an odor, and it is also more complicated than saying the officers had objective proof of impairment. I admitted recent marijuana use. No contraband was found. Beavers recorded some clues on some tests and none on HGN. I rated myself sober. The central question became whether the observations were enough to prove DUI beyond a reasonable doubt.

The reason the word "setup" remains in the title is not because the report itself proves the stop was staged. It does not. The title reflects how I came to view the case after the evidence-preservation dispute that followed. That distinction needs to stay visible.

Neither deputy had a dash camera or body camera recording the roadside encounter. The actual field-sobriety tests were performed inside the detention-center sallyport, an area covered by the Sheriff's Department's fixed camera system. When the case reached trial, that footage had not been preserved.

I requested video evidence before trial. In later testimony, Sheriff Joey East described the detention-center system as ordinarily retaining footage for about seven days unless it was preserved. He also acknowledged that other Sheriff's Department footage from a different incident involving me had been affirmatively preserved. Chapter 14 deals with that testimony in

detail, because earlier versions of this book incorrectly put the phrase “gone forever” in East’s mouth. He did not use those exact words in the trial audio I later reviewed.

What the missing sallyport video would have shown cannot now be known. I believe it would have supported my account of how I performed on the tests. Beavers’s written report says otherwise on several components. The absence of the recording leaves the disagreement unresolved rather than automatically proving either side.

The Justice Court ultimately convicted me of DUI first offense, improper equipment, and expired/no tag. The certified abstracts identify the offense date as February 21, 2021, the trial date as November 4, 2021, and the judgment date as November 24, 2021. The DUI abstract lists a \$400 fine plus \$404 in assessments. The improper-equipment abstract lists a \$30 fine plus \$116 in assessments.

I appealed those convictions.

The DUI stop was only one thread in what became a difficult 2021.

On March 23, 2021, Crowder and I entered another agreed order in the Chancery custody case. The order adjusted the litigation between us, maintained child support at \$400 per month, dismissed the guardian ad litem, and contained restrictions intended to reduce the cycle of public and CPS accusations. Whatever the order was intended to accomplish, the relationship deteriorated again. In later Chancery pleadings I stated that communication and visitation with Lydia stopped around June 5. A June 19 Sheriff’s report records me going to Crowder’s property around Father’s Day seeking my daughter, being told to leave, and telling Crowder to “fuck off.” I told the deputies I had recorded the encounter.

That is another fact I will not clean up for publication. I was angry and profane. The custody conflict was escalating again.

There was also a separate crisis in my household during 2021. After an argument with Madelyn, police became involved and I was arrested on a disturbance matter. During that episode officers reported finding a marijuana pipe in a vehicle. I was later sent for a short stay at the Tupelo Crisis Center.

I have previously placed that incident confidently in July 2021 and described the stay as roughly two weeks. The event itself is real, but the exact date has not yet been verified from an arrest report, docket entry, or discharge record in the source set. I am therefore not fixing a specific date to it in this edition until the underlying record is located. I also remember the disturbance and paraphernalia matters being retired to the file rather than prosecuted to conviction, but that procedural status should be tied to the Calhoun County record before publication.

The Calhoun County matter later entered the Chancery case anyway.

On September 14, 2021, Chancellor Robert Q. Whitwell entered an order requiring me to submit to a nail-bed drug test and suspending visitation pending further order. The written order acknowledged that the paraphernalia charge had been “retired to the file pending Mr. Reardon’s good behavior in Calhoun County” and stated that the drug test was not being ordered to prove or incriminate me on that charge.

I objected on constitutional grounds and sought recusal and appellate review. I argued that the court was using an inactive criminal matter as a basis to compel testing in the custody case. Whitwell rejected my recusal position. The Mississippi Supreme Court later denied the mandamus relief I sought and denied my request to proceed in forma pauperis. My underlying Fourth and Fifth Amendment theory about the drug test did not produce a merits ruling in my favor.

Earlier versions of this chapter described the Supreme Court episode too selectively. Part of my appeal ultimately failed over costs, but the recusal issue was actually addressed and decided against me. That belongs in the record just as plainly as the issues I believe the courts never reached.

By September 2021 I was litigating simultaneously against criminal convictions, custody restrictions, and evidence-preservation problems. I had also begun identifying myself publicly as a journalist and recording government encounters with increasing frequency.

The next confrontation moved to a federal building in Oxford, where I went looking for a federal audience for the complaints I believed local institutions would not address.

CHAPTER 12 — THE OXFORD U.S. ATTORNEY’S OFFICE CONFRONTATION

By the spring and summer of 2021, I was no longer limiting my complaints to Lafayette County officials. I was calling state investigators, the Mississippi Attorney General’s Office, and federal officials because I believed local law enforcement and courts were not addressing the records I kept putting in front of them.

One recording from May 3, 2021 captures how far that frustration had gone.

I called the Mississippi Bureau of Investigation for the fifth time. Earlier manuscript work misidentified that call as an FBI call because an automatic transcription was “corrected” in the wrong direction. The recording itself and the staffer’s reference to the Mississippi Attorney General’s Office make clear that the agency was MBI.

I told the staff member:

“I’ve called five times, this is the fifth time now... I’ve described the scandal to the T. I’ve produced unsurpassed amounts of evidence. At this point, the only explanation for [them] not getting in touch with me, like

I've been told every time, is that they are complicit in the scandal, and I'm making the direct accusation of [the bureau] being complicit in everything going on for the simple fact of they have neglected their own duties."

She apologized that nobody had called me back and told me that complaints about the agency could be reported to the Attorney General's Office. I answered that I had already contacted that office too.

The recording matters for two reasons, and neither cancels the other. First, it preserves me saying that I had repeatedly sought contact from the state's investigative bureau and had not received the response I expected. Second, it preserves me converting the absence of a callback into an accusation of complicity. The recording proves I made that accusation. It does not prove MBI was actually part of a conspiracy.

That distinction is important because by then I had begun treating silence as evidence. Sometimes silence did accompany a real records problem. It did not automatically establish motive.

During July 2021, I also filmed around the Oxford office of the United States Attorney for the Northern District of Mississippi. By then I was regularly recording public officials and government facilities as a journalist and activist. I have sometimes accepted the label "First Amendment auditor" when others used it, but that label does not fully describe how I identify my work. What matters here is what I was doing: standing outside a government office with a camera and trying to engage officials about my complaints.

The encounter was recorded.

Oxford Police Chief Jeff McCutchen became involved. I have consistently credited McCutchen for the way he handled that specific event. My records from the period reflect that I was able to obtain the incident report promptly rather than having to fight for it through the same kind of prolonged records dispute I had experienced elsewhere.

That does not make McCutchen a permanent ally in this story. In 2022 he would contact MBI regarding the City Hall encounter that led to my second aggravated-stalking case. But the point of a documentary memoir is not to

sort people into permanent heroes and villains. On this occasion, I regarded his handling as professional and transparent, and I am keeping that credit in the record.

The recording also captured McCutchen referring to Assistant U.S. Attorney Bob Norman as “blowhard Bob.” I have preserved that line because it is on the recording, but I should not make it carry more weight than it can.

It does not prove Norman was corrupt. It does not prove Norman caused the FBI record from my May 25, 2017 meeting to disappear. It does not prove McCutchen believed Norman had committed misconduct. It is a candid remark by a local police chief about a federal prosecutor. That is all the recording establishes.

Norman was already a familiar name to me. I had communicated with him while trying to obtain federal attention for my allegations. I have also said that he was involved in arranging the May 25, 2017 FBI meeting discussed earlier in this book. I do not have an FBI-created record from that day establishing every step of how the meeting was arranged, so that detail remains tied to my own records and recollection.

The July 2021 encounter with Norman outside the federal office was more direct. I was filming. Norman came outside and engaged with me. We argued.

Earlier versions of this chapter tried to turn the fact that a federal prosecutor came outside into evidence that my recording had “rattled” federal officials or that Norman violated some standard federal protocol by engaging with me personally. I do not have a policy establishing that, and I do not know his motive. He came outside and confronted or engaged me on camera. The recording can show the tone and words. The reader does not need me to invent what was going through his head.

The episode also should not be used as a supposed “dry run” for what happened four years later in Louisiana. The two events share some surface facts — federal facilities, cameras, conflict with federal personnel — but similarity is not proof of coordination. The Lafayette, Louisiana events stand on their own records and are addressed later in the book.

What the Oxford confrontation does establish is a change in how I was operating by 2021. I was no longer making complaints quietly and waiting. I was filming government buildings, recording officials, publishing the interactions, and confronting agencies that I believed were ignoring me.

That approach created evidence. It also created friction.

I had reached a point where I distrusted almost every institution that told me to wait, submit another form, call another office, or accept that a record was unavailable. My answer increasingly was to show up with a camera and make the refusal public.

Sometimes that exposed useful information. Sometimes it made an already adversarial relationship worse. Both are true.

The next chapter returns to Lafayette County and to an incident that looked almost trivial compared with a federal confrontation: I crashed a small drone into the Justice Court building while trying to film. The resulting encounter produced another Sheriff's Office report and another example of how quickly ordinary mistakes had begun turning into government confrontations around me.

CHAPTER 13 — THE DRONE AND GROWING TENSIONS

On September 29, 2021, I flew a small drone outside the Lafayette County Justice Court complex. I lost control of it and hit the Justice Court building.

That is not an inference drawn from somebody else's complaint. It is what I told Deputy Courtney Dixon when he investigated the incident. His supplemental report records me saying I was working on a documentary, wanted aerial footage that included the United States flag, pressed the wrong control, and lost control of the drone. According to Dixon's report, I told him the drone struck the building beneath the Lafayette County lettering, fell to the concrete, and, after I got it airborne again, traveled toward another county building without striking it.

I am putting my own statement first because this is one of the easiest incidents in the book to distort by arguing over everybody else's version. I flew the drone. I lost control of it. It hit the building. There is no reason to make the event smaller than the record makes it.

The sheriff's report also records facts that make the episode more serious than a harmless equipment mishap. One witness told Dixon that the drone had been roughly forty feet above the ground and directly over people

walking into the Justice Court building. Another witness reported seeing it strike the building. A witness said I retrieved it and attempted to fly again, after which it went over a fence and crashed to the ground. The report says I then retrieved it and returned to my vehicle, where my stepdaughter was present.

Those are witness accounts collected by law enforcement, not judicial findings, and I distinguish them from my own admission for that reason. But they are part of the contemporaneous record and they belong in the narrative. A reader assessing my judgment during this period should have them.

The law-enforcement response is documented too. Dixon's report says that when he arrived, Chief Deputy Scott Mills was already speaking with me, along with two Oxford Police officers. Investigators Micah East, Brad McDonald, and Nathan Noe later arrived. Dixon and Investigator East asked what had happened, and I identified myself as a member of the press and explained the documentary footage I was trying to obtain.

Mills then asked whether I had a commercial license to fly the drone. I said I had documentation on my phone. The report says the material I produced was not a commercial license and that whatever document I showed was expired. Investigator McDonald photographed it. The report further says I asked whether they were going to write me a citation for flying without a license, and Mills told me that question was up to the U.S. Attorney's Office. I was told to leave after providing a valid physical address and the requested documentation.

No arrest followed. The report itself closes the incident with three plain entries: **ARREST: N/A. BOOKING: N/A. MEDICAL TREATMENT: N/A.** That matters because it prevents this episode from becoming something it was not. The deputies investigated. They spoke with witnesses. They questioned me about licensing. They documented what I said and what the witnesses said. They did not arrest me that day.

The report contains another useful limit on the evidence. Dixon went inside the Justice Court and the neighboring building to ask whether clerks or employees had seen the flight. According to his report, none of them had. The three outside witnesses agreed to provide written statements. In other

words, the contemporaneous file contains both corroboration and limitation: outside witnesses described the drone and the impact; employees inside the buildings did not report seeing it.

There is no need to build a constitutional argument around this incident. I was operating a drone around a government building, lost control, hit the building, retrieved it, and tried to fly again. A child was with me. Whatever dispute I later had with the Sheriff's Department about whether the flight was recreational or commercial, the basic safety problem does not depend on resolving the licensing question.

That point matters to the credibility of the larger book. There are places in this story where the documentary record sharply contradicts what government officials said about me. This is not one of them. Here, the record largely confirms that I made a poor decision and then compounded it by putting the drone back in the air after the first impact.

What this incident does become later is evidence in somebody else's description of me. The December 2021 commitment material discussed in Chapter 16 refers to reported conduct involving public recording and a minor child. In a later recorded call, Communicare supervisor Rachel Alcorn described receiving reports of what she called "concerning behavior" and referred to conduct involving recording in public and provoking people while a child was present. I disputed that characterization because the drone collision was accidental and because accident is not the same thing as provocation. But the September 29 sheriff's report makes one part of the context undeniable: I had, in fact, been involved in a highly visible law-enforcement encounter outside the Justice Court while operating a drone with my stepdaughter present.

That does not prove the later psychiatric characterization was medically justified. It does mean the later description did not materialize from an entirely empty factual record. A fair account has to preserve that distinction.

By late September 2021, the pattern of my own conduct was becoming more confrontational and more public. Some of that conduct was protected speech. Some of it was legitimate records work. Some of it was me

pushing officials because I believed the record justified pushing them. And some of it, like this drone incident, was simply bad judgment that gave the people already watching me another documented event to point to.

The next major confrontation came in Justice Court in November. That proceeding would decide the DUI, improper-equipment, disorderly-conduct, and resisting-arrest charges that had accumulated over the prior year. Unlike the drone encounter, it did produce convictions. And unlike some earlier versions of this book, the chapter that follows does not rely on a remembered phrase about missing video or on an assumed five-to-four verdict split. It starts with what the later court record actually confirms.

CHAPTER 14 — THE NOVEMBER 2021 TRIAL

On November 4, 2021, I appeared in Lafayette County Justice Court for a bench trial covering a collection of charges that had accumulated from separate events.

In a later federal pleading, I described that day as “nine separate charges” arising from three events and said the charges included the February 2021 DUI episode, the December 2020 disorderly-conduct and resisting-arrest case, and charges brought separately by Phyllis Crowder. I also said I was acquitted on the charges Crowder brought.

That is my filed account of the full trial day. The later official court record independently establishes something narrower and important: on November 24, 2021, the Justice Court entered judgments finding me guilty of four offenses — **Driving Under the Influence, First Offense; Improper Equipment; Disorderly Conduct; and Resisting Arrest.** A later Circuit Court order identifies those four convictions expressly, and the corrected notice of appeal filed by appointed counsel in 2022 identifies the same four judgments.

That later record matters because earlier versions of this manuscript treated the entire day's disposition as though every piece of it had already been independently verified. It has not. The four convictions are established by court records. My description of nine total charges and the disposition of the other charges comes from my filed account unless and until the complete Justice Court disposition sheets for all nine are placed beside it.

The four convictions arose from two encounters with very different evidence records.

The first was the **December 28, 2020 Sheriff's Department parking-lot arrest.**

Deputy Courtney Dixon's report places the start of the encounter at 5:08 p.m. in the Lafayette County Sheriff's Department parking lot. Dixon wrote that he and Deputy Ethan Tidwell approached me because my black 2013 Kia Soul was double parked across two spaces reserved for Sheriff's Department vehicles.

Dixon's version is blunt. He wrote that he ordered me to move the Kia; that I said "no" because I needed to speak with Sheriff Joey East; that he repeated the command; and that I again refused. According to Dixon, after a final warning I still said I needed to speak with East, so Dixon told me to put my hands behind my back.

The report says I began backing away, turned, and tried to run sideways. Dixon and Tidwell chased me. Dixon tackled me. Both deputies then struggled to get my arms behind my back while I continued saying I needed to speak with the sheriff.

Tidwell wrote his own supplemental narrative the following morning. His account substantially tracks Dixon's: the reserved spaces, the repeated commands to move, my refusal until I could speak with East, the order to put my hands behind my back, my attempt to move away, the tackle, and the struggle to handcuff me.

Those reports are the officers' accounts, not findings by a jury. But they are contemporaneous primary records, and they are substantially more detailed than the version I usually told afterward.

The reports continue after the parking lot.

Dixon wrote that I cursed and kicked doors while being escorted through the jail and that staff decided to use a restraint chair because I would not calm down. He said I “chest pumped” him, pulled away when he reached for my arm, fell over the chair, and caused Dixon to fall with me. Dixon photographed injuries to his hands that he attributed to the struggle. The report says no medical treatment was provided to me.

Tidwell separately wrote that by the time he brought my property inside, Dixon and Lieutenant Omar Ahmed had placed me in the restraint chair.

The booking record lists disorderly conduct and resisting arrest. It shows a \$700 bond associated with disorderly conduct, no separate bond amount beside resisting arrest, and my release on December 30 at 1:53 p.m.

I recorded at least part of the parking-lot encounter. That recording is why I dispute a specific part of the reports: the repeated quoted refusals to move the car. I have argued that the audio does not contain the series of “no” statements attributed to me in the officers’ narratives.

That is a testable claim, and the publication standard should be to test it line by line against the recording before turning it into an accusation that the reports were falsified. Until that comparison is completed against the original audio, the honest presentation is that Dixon and Tidwell gave mutually reinforcing written accounts of repeated refusals and I possess a contemporaneous recording I believe conflicts with their wording.

The reports also correct an old naming error. Earlier manuscript versions identified another deputy as “Omar Ahmed” at the beginning of the parking-lot arrest. The primary reports identify **Courtney Dixon and Ethan Tidwell** as the two deputies who approached me outside. Ahmed appears later, inside the jail, in Dixon’s description of the restraint chair.

That distinction matters because one of the easiest ways to undermine a book like this is to get the people at the scene wrong.

The second major group of charges came from the **February 21, 2021 DUI stop** described in Chapter 11.

Deputy Jacob Williford testified about the stop. The contemporaneous report says the reason he turned around and stopped my Kia was the equipment violation—one functioning headlight—not weaving, speeding,

or erratic driving. He reported smelling burned marijuana at the vehicle. I admitted smoking earlier that night. The deputies searched the Kia and found **no contraband**.

The weather was freezing, with snow and ice on the ground, so the field-sobriety exercises were not conducted roadside. Deputy Kandis Beavers transported me to the Lafayette County Detention Center's sallyport and administered the exercises there.

Her written report records a mixed set of observations: no clues on horizontal gaze nystagmus, but other claimed clues on the modified Romberg, lack-of-convergence, walk-and-turn, and one-leg-stand exercises. I told her I considered myself sober. She concluded otherwise and arrested me for DUI first offense.

That made the sallyport video important.

The field-sobriety exercises occurred inside a fixed-camera area. By trial, the footage had not been preserved.

Earlier versions of this book repeatedly put a dramatic phrase in Sheriff East's mouth, saying he testified that the video was "gone forever." After reviewing the audio, I cannot support that quotation, so it is gone from the publication text.

What the trial record supports is better because it does not depend on rhetoric.

The questioning established that the sobriety exercises took place where fixed cameras operated. The officer acknowledged that he had not asked for that video to be preserved. The questioning also established that video associated with another Sheriff's Department incident involving me had been affirmatively preserved. Defense counsel then put the comparison directly to the witness: if one recording could be preserved, the sallyport recording could have been preserved as well. The answer was yes.

That is the evidentiary issue.

An objective recording existed in a location where the most disputed physical testing occurred. It was not preserved for trial. The absence does not prove that I passed the tests, and it does not erase Beavers's written observations. It means the court had no video by which to compare those written observations with my physical performance.

That missing record matters more because the roadside portion was not captured on deputy body cameras or dash cameras either. The case therefore depended heavily on officer observations and written reports where an objective fixed-camera record could have provided another perspective.

The trial itself was a bench trial. I did not receive a jury verdict on those misdemeanor charges in Justice Court.

That procedural point later became one of the recurring issues in my appeal. Mississippi's justice-court system permits de novo appellate review in a higher court when an appeal is properly perfected. My later fight was over whether I had done enough, and done it on time, to invoke that review.

Sheriff Joey East testified too.

His testimony matters beyond the individual misdemeanor elements because it captures how the county's chief law-enforcement officer viewed me by late 2021. The surviving audio records East describing me as unpredictable and worsening over time and expressing the view that I posed a threat to people who disagreed with me.

I dispute that assessment. But it is evidence of East's state of mind in the limited sense that it records what he said under oath. It becomes relevant to the chronology because only weeks later I would confront him outside the courthouse, and Communicare would receive information from local law enforcement concerning behavior at the court.

I have to resist the temptation to write causation into that sequence. East's November testimony shows what he said about me. The December Communicare recording shows that local law enforcement later supplied information. It does not, by itself, prove East was the specific source of the commitment affidavit.

The November trial also reflects a broader feature of my litigation by then: I was trying to make evidentiary preservation itself part of the case.

I had learned in 2017 what it meant to search years later for a document I wished I had possessed before pleading guilty. By 2021, every missing camera file looked to me like a warning. I asked about video. I recorded my own encounters. I challenged police narratives against audio when I had it. I wanted the government to preserve the evidence it controlled.

Sometimes that instinct was justified. Sometimes I went too far and treated the mere absence of evidence as proof that the evidence had been intentionally destroyed because it favored me.

Those are not the same proposition.

The sallyport video is a good example. I can prove the field testing occurred in the camera-covered area. I can prove the footage was not available at trial. I can point to testimony that footage could be preserved. Without a preservation log, destruction directive, retention-policy violation established in the record, or testimony showing bad faith, I cannot prove why the footage was not retained.

The court convicted me anyway.

The official abstracts identify the February offense date, the November 4 trial date, and November 24 judgment date. The DUI abstract lists a \$400 fine plus \$404 in assessments. The improper-equipment judgment lists a \$30 fine plus \$116 in assessments. The later appellate record identifies the disorderly-conduct and resisting-arrest convictions from the December parking-lot case as part of the same appeal.

The convictions did not become final in my mind on November 24 because I intended to appeal them.

On **December 2**, Justice Court entered an order finding me indigent, permitting appeal without a supersedeas bond, staying execution of the judgments, and giving additional time to file. That order matters because it shows the lower court itself was contemplating an appeal and preserving the status quo while I pursued it.

On **December 3**, acting without counsel, I filed in Circuit Court a document styled as a motion to alter, amend, or vacate the judgments. In its final paragraph I stated that the filing was intended to serve as notice of my intent to appeal. A civil cover sheet likewise characterized the matter as a Justice Court appeal.

That filing was procedurally awkward. Years later, the Circuit Court would treat the defects as fatal and dismiss the appeal. In February 2026, the Mississippi Court of Appeals would reverse that dismissal and send the matter back. The appellate court did not acquit me or reverse the four underlying convictions; it held that the Circuit Court had erred in disposing of the appeal the way it did.

But none of that was known on December 3, 2021.

What I knew then was that I had been convicted, I wanted higher-court review, and courthouse staff told me that the new Circuit Court matter had been assigned to Judge Kent Smith.

Three days later, I checked again and saw Judge John Kelly Luther associated with the case.

I had already litigated against Luther in the 2020 post-conviction proceeding. The change immediately triggered my suspicion.

I went to the courthouse to ask what had happened.

That encounter was recorded.

The next chapter begins there.

CHAPTER 15 — CIRCUIT COURT CHESS GAME

On December 3, 2021, I carried my Justice Court challenge into Lafayette County Circuit Court.

I was representing myself. The filing was imperfect — later courts would make that point central to the appeal — but my purpose was explicit. In the final paragraph of the motion I told the court to treat it as notice of my intent to appeal the November judgments. A civil cover sheet filed with it likewise identified the matter as an appeal from Justice Court.

The detail that drove me back to the courthouse three days later was the assigned judge.

In a later sworn filing, I stated that clerk Chyna Sinervo told me on December 3 that the case had been assigned by a random algorithm to Judge Kent Smith. I recorded that interaction. By December 6, when I checked the case again, the assigned judge displayed in the system was John Kelly Luther.

That mattered to me because I had already fought with Luther over my 2020 post-conviction case. It did not, by itself, prove that anyone had manipulated the assignment. Multi-judge circuit courts reassign cases for ordinary administrative reasons. But I wanted to know what had happened to this one, and I went to the Circuit Clerk's office to ask.

An earlier draft of this book said the clerk's-office confrontation was not recorded. That was wrong. The encounter exists on video, and the correction changes how this chapter should be written.

The recording shows me questioning courthouse staff about the assignment. My later court filing says Circuit Clerk Jeff Busby became defensive and instructed staff not to answer further questions. That is my characterization in the filing; the recording itself is the source that should control any word-for-word account of what was said at the counter. The important point is that this was not a scene reconstructed years later from memory. There is contemporaneous video of me trying to get an answer about why the name associated with the case had changed.

What happened outside is recorded too.

Sheriff Joey East arrived and opened the exchange by telling me he had received a call that I was at the courthouse "harassing people." The recording does not establish who made that call. I have alleged in later filings that Busby contacted East, but East's statement on the video does not identify the caller, and I will not turn my inference into the recording's fact.

I answered that I had been petitioning the government. East drew a distinction that is important to preserve accurately. Filing paperwork, he said, was fine. What he told me not to do was go back inside and harass people or cause problems. I disputed that I had harassed anyone and insisted I had only been asking a question.

The exchange deteriorated quickly.

East told me to calm down "before something happens" and repeated that I should not go back into the courthouse to cause a problem. I called the instruction tyrannical. I challenged him about other matters. At the end of the encounter, I told him, in profanity, to go fuck himself.

That last part belongs in the record as much as anything East said. Whatever the legitimacy of my question about the judicial assignment, by the end of the confrontation I was no longer speaking like a citizen calmly requesting an administrative explanation. I was angry, confrontational, and profane directly to the county sheriff. Any account that omits that would falsely sanitize my side of the event.

It is equally important not to stretch East's words beyond what the recording says. He did not tell me that I could never enter a courthouse again. He expressly said filing paperwork was permitted. His direction was that I not return to harass people or cause issues. I disagreed with his premise that my questioning constituted harassment, but the distinction is there on the tape and should not be erased.

The unresolved issue was the one I had come to ask about: why a case I had been told was randomly assigned to Smith now displayed Luther.

I also made a recorded call to court administration about the assignment. The existence of that call matters because it shows the judge-assignment complaint was being raised contemporaneously, not invented later after the commitment proceedings.

The commitment file adds a timing detail that earlier drafts had wrong. The Uniform Civil Commitment Affidavit in Cause No. 2021-691(L) is dated and filed **December 6, 2021** — the same date as the clerk's-office and East encounters — not December 7. The record presently before me does not establish whether Alcorn signed the affidavit before or after the specific recorded confrontation with East. I therefore cannot truthfully write that the East encounter caused the affidavit merely because both occurred on the same date.

The next day, December 7, deputies came to take me into custody on the commitment writ. That seizure is separately captured on a contemporaneous recording.

The defensible chronology is therefore narrower than the version I told for years:

December 3: I filed the Justice Court challenge and was told, according to my sworn account and recording, that the case was assigned to Kent Smith by a random process.

December 6: I returned after seeing John Kelly Luther associated with the case, questioned courthouse staff on video, and was confronted outside by Sheriff East, who said he had received a call that I was harassing people. The commitment file also shows Rachel Alcorn's Uniform Civil Commitment Affidavit was filed that day.

December 7: deputies executed the commitment process and took me into custody.

The inference I drew from that sequence — that the commitment process was retaliation for my courthouse questions — is mine. The record does not permit me to collapse chronology and motive into the same fact.

That distinction became much clearer when I later spoke directly with Alcorn. For years I summarized that conversation as though she had identified Joey East personally as the source of the information behind the commitment. The recording does not support that. She said **local law enforcement** contacted Communicare about what she described as concerning behavior. Later in the call, she also referred to information from “law enforcement and community members.” When I supplied East's name, she did not confirm it.

She also gave context I had often left out when telling the story: I was already subject to an outpatient commitment order originating in Calhoun County, and Communicare said its treatment teams had previously tried to engage me. That pre-existing order matters to any fair assessment of why Communicare was involved at all.

Those corrections do not make the timing disappear. They make the question narrower and more defensible.

The next chapter is therefore not the story of a sheriff personally signing a psychiatric affidavit because I asked about a judge. The record does not show that. It is the story of a Communicare supervisor filing a commitment affidavit on the same date as a recorded courthouse confrontation, after

Communicare had been engaged by local law enforcement, against the backdrop of an already-existing outpatient commitment order — followed by deputies taking me into custody the next day.

That is what the documents and recordings establish. Anything beyond it has to remain identified as my allegation.

CHAPTER 16 — COMMITMENT

The first document in this chapter is dated December 6, 2021.

That matters because I told this story incorrectly for years. I said the commitment process began the day after my confrontation with Sheriff Joey East outside the Circuit Clerk’s office. The actual commitment file says otherwise. Rachel Alcorn’s Uniform Civil Commitment Affidavit in Lafayette County Chancery Court, Cause No. 2021-691(L), was filed on **December 6** — the same date as the recorded clerk’s-office and East encounters described in the previous chapter.

The record I have does not establish which happened first that day. I therefore cannot say, as fact, that my confrontation with East caused Alcorn to file the affidavit. What I can say is that both events occurred on the same date and that, in a later recorded call, Alcorn said Communicare had been engaged by local law enforcement about what she described as concerning behavior involving me at the court.

The affidavit itself did not say simply that I had asked questions about a judicial assignment. In a later filed motion challenging the commitment, I reproduced its factual description this way: I “go[] into public places recording people,” was “paranoid and delusional,” was “provoking people with [a] minor child,” was “not taking meds,” and was “not getting medical

help.” The form also invoked statutory grounds concerning danger and care or safety. Those were allegations used to initiate the process. They were not findings already proved in an adversarial hearing.

Some of the underlying conduct was real even where I disputed the characterization. I was going into public places and recording. By then I was doing it regularly. The September drone incident had occurred with my stepdaughter present, and the Sheriff’s Department had generated a report about it. Chapter 13 sets out the facts that report actually contains: I lost control of a drone outside Justice Court, struck the building, relaunched it, and witnesses said the drone had been over people walking into the courthouse. Describing that event as me “provoking people with [a] minor child” was a characterization I rejected, but the presence of a child during a highly visible law-enforcement encounter was not invented from nothing.

There was another piece of context I did not understand clearly when I first began accusing Communicare of fabricating the entire process. I was already connected to an outpatient commitment order originating in Calhoun County.

Alcorn explained that directly when I spoke with her later. The call is recorded, and it is worth slowing down over because it contains both evidence helpful to me and evidence that complicates my theory.

Alcorn told me she supervised Communicare’s assisted-outpatient-treatment and related teams responsible for supervising treatment under commitment orders. She said I was already on an outpatient commitment order from Calhoun County and that Communicare had attempted to engage me in treatment.

She referred to a September communication to the Calhoun County Chancery Clerk documenting that the treatment teams had not been able to engage me. She explained that Communicare had reached a point where it would not keep attempting contact indefinitely; in her description, further crisis involvement would occur if I reached out, or at the request of law enforcement or a chancery court.

Then she explained how Lafayette County entered the picture.

Alcorn said **local law enforcement** engaged Communicare about concerning behavior involving me at the court. In her role supervising the outpatient-commitment programs, she then signed the affidavit that began the new process.

That statement is significant because it confirms that her action was not based solely on something she personally saw me do. She was receiving information from others.

It is equally significant because she did not identify Joey East.

I did.

On the recording, I told her I had assumed the information came from East. I tried repeatedly to connect what had happened to my confrontation with him. Alcorn did not adopt that identification. Later, when I challenged the affidavit's assertion that I had been "provoking people with my minor child," she said the information had been reported by **law enforcement and community members**.

That is the source description I can prove.

For years I told the story as though Alcorn had confessed that Sheriff East personally fed her the allegations. The recording does not say that. Any edition that keeps the stronger claim after listening to the call would be knowingly inaccurate.

The call also preserves my response to the "paranoid and delusional" language.

I told Alcorn that I recorded precisely because I was tired of being accused of inventing things. I argued that the evidence I was publishing about court records and government encounters was the opposite of delusion because I was trying to corroborate what I said. I described myself as an investigative reporter and credentialed member of the press and insisted that recording in public places was lawful activity.

That is my side of the call.

Alcorn did not agree that the public-records disputes were the issue she was trying to resolve. She repeatedly redirected the conversation to the outpatient order and Communicare's inability to document my progress because, in her account, I had not participated in treatment.

At one point she told me that if I had been engaged, Communicare would have had a treatment history showing whether I was doing well, taking medication if prescribed, or functioning without medication while participating in therapy. Because I had not engaged with the teams, she said, they lacked that information.

I pushed back that my distrust of Communicare and the county was exactly why I had not wanted to participate. That exchange is important because it reveals a feedback loop without requiring me to speculate about anyone's motive.

I distrusted the system because I believed it had been used against me.

Communicare viewed my failure to participate as a reason it lacked reassuring treatment information.

That lack of information then made new reports of concerning behavior more consequential inside the commitment process.

Alcorn also corrected me on Communicare's institutional identity. She told me Communicare was **not a county agency** and said its programs were certified through the Mississippi Department of Mental Health. That does not conclusively answer whether a particular Communicare actor can be treated as a state actor under federal civil-rights law. It does mean I cannot simply label Communicare a county department because it participated in county commitment proceedings. The Legal Analysis leaves the state-action issue where the present evidence leaves it: unresolved.

The call gives still more context to the affidavit process.

Alcorn emphasized that she was only one person in a multi-step procedure. After she signed the affidavit, she said, a certified pre-evaluation screener had to assess me and make a recommendation; then two doctors would perform additional assessments and agree before hospitalization continued.

I challenged the independence and selection of those professionals. But her explanation is part of the record and prevents me from writing as though her signature alone constituted the final commitment decision.

That does not resolve my challenge to the process. It defines the steps I was challenging.

On December 7, deputies came to take me into custody under the commitment writ. That encounter is itself recorded. I challenged the paperwork and the basis for taking me, but the operative fact is not disputed: the deputies had a court-issued writ and I was taken into custody.

The service itself produced another narrower records issue.

I asked for the affidavit that supposedly contained the factual allegations against me. The deputy serving the writ did not have it in the papers he handed me. I later treated that as proof that no affidavit existed. That was too broad. The later Chancery file shows that Alcorn's affidavit did exist and had been filed December 6. The accurate complaint is that the service packet available to me when I was taken into custody did not include the affidavit I wanted to inspect.

That difference is important legally and historically. A missing document at the moment of service is not the same thing as a document never having existed.

The commitment file then records a pre-evaluation process on December 8. On December 9, the court entered an Order of Commitment. The court file records that I was present at the hearing.

That is another correction to the broadest version of the story I later told. I have challenged what process I was actually afforded, the quality of the evaluations, the evidence supporting the order, and whether I was meaningfully able to confront the allegations. But the December file itself does not support saying there was simply no hearing at all. My later motion to vacate attacked the fairness and legality of that process; the court record records a hearing and my presence.

I was then held at the North Mississippi State Hospital's Tupelo Crisis Unit. In the Rule 60 motion I filed in June 2022 challenging the commitment, I stated that I remained there until December 23, 2021. I use that date here as the date reflected in my filed account of the confinement.

The sequence is therefore materially different from the version I once carried in my head.

I was not a man with no mental-health process in his recent history who asked one question about a judge and was suddenly declared insane the next day. I had a pre-existing outpatient commitment order from Calhoun County. Communicare says its teams had attempted to engage me. I had accumulated a record of increasingly confrontational public encounters. The drone incident had occurred. I was regularly recording public employees and arguing with officials. And on December 6, local law enforcement contacted Communicare about what Alcorn later called concerning behavior at the court.

All of that belongs in the book.

So does the other side of the record.

The commitment affidavit used broad, judgmental descriptions such as "paranoid and delusional" and "provoking people with his minor child." Alcorn was not describing a courthouse event she personally witnessed. The affidavit was filed on the same date I was on video questioning a judicial-assignment change and then arguing with the sheriff outside the courthouse. Alcorn later acknowledged that information had come from local law enforcement and community members. When I supplied East's name, she did not validate that specific accusation.

The call also shows that I was not passive or measured in my response. I accused Lafayette County of covering up 2017. I told Alcorn I believed the county knew my conviction would be reversed. I connected the commitment to the judicial-assignment dispute and to other grievances. I asked her to provide whatever information had been supplied so I could hold the Sheriff's Department accountable. My certainty about the larger theory was much stronger than the evidence I actually possessed at that moment.

That is part of why the recording is so useful now. It captures both the institutional explanation and my own state of argument contemporaneously.

There is also an uncomfortable fact on the other side of my interpretation. A Lafayette County Sheriff's lieutenant later spoke with me when I tried to report the commitment as a crime. His report records that he told me he believed I was misconstruing what had happened and that, if East genuinely believed I needed mental-health treatment, requesting help would not itself be criminal. He told me he did not believe there had been malicious intent and thought the sheriff was concerned about me. That was the lieutenant's assessment, not an adjudication, but it belongs here because it shows that even inside the Sheriff's Department the event was being framed as concern rather than retaliation.

By the end of December, then, the documentary record did not give me the clean answer I wanted. It gave me a same-day sequence, a law-enforcement referral whose individual source remained unidentified on the recording, a pre-existing outpatient order I had to account for, an affidavit containing characterizations I disputed, a court file recording a hearing and commitment, and roughly two weeks of lost liberty.

It also left a question that would matter later in federal court: when a private or quasi-private mental-health provider participates in a state-created commitment procedure alongside law enforcement and a Chancery Court, which acts, if any, are attributable to the State for purposes of federal civil-rights liability? I did not understand that doctrine in December 2021. I understood only that a Communicare employee had signed the affidavit and deputies had taken me away. The legal distinction would become one of the reasons my later federal case was harder than I expected.

I came out of the confinement convinced that the process had been abused. Instead of letting the issue die, I escalated my challenge. I filed an affidavit accusing East. I pressed Communicare for answers. I challenged the commitment legally. And in February 2022, after a formal grievance to Communicare, a second commitment proceeding began.

The second one is harder to write about because its documentary record contains facts that cut sharply both ways — including my own conduct when deputies executed the writ. Those facts come next.

CHAPTER 17 — A SON BORN IN CONFINEMENT

On February 7, 2022, I sent a formal grievance to Communicare's executive director, Dr. Sandy Rogers, and copied the chancery court. I challenged the December commitment, accused Communicare and Lafayette County officials of violating my rights, demanded preservation of the records surrounding that proceeding, and made clear that I did not trust the treatment process that had produced it.

Two days later, Communicare counselor Susan Beard signed an **Affidavit of Non-Compliance with Outpatient Commitment for Mental Illness** in the same Lafayette County commitment case, Cause No. 2021-691(L). The document was electronically signed at 3:10 p.m. on February 9 and filed with the Lafayette County Chancery Clerk on February 10 at 2:32 p.m.

Unlike the first affidavit, this one is in the record clearly enough to read without reconstructing its basis from later allegations.

Beard wrote that I had been scheduled for an intake appointment on January 6; that I called the day before and asked to reschedule; that she left me a voicemail January 6; that I called January 7 and rescheduled for January 12; and that on January 11 I canceled again and requested a day on

which she was in all-day training. She wrote that she offered options for January 20 and 21, that I said I would talk with my wife and call back, and that I did not call back to reschedule. She further wrote that on January 31 I called asking for the executive director and declined, at that time, to reschedule the intake. On February 2 she left me a voicemail saying the request to the executive director needed to be specific and in writing. As of the affidavit, she wrote, I still had not contacted her to reschedule.

That account is important because it does not support the simplest version I once told: that Communicare invented a missed appointment I had never addressed. The document records a chain of calls and rescheduling attempts. My position was different. I later argued that I had not abandoned treatment casually; I was withholding further participation while waiting for a response to the formal grievance I had sent on February 7. That explanation appears in my later court filings. Beard's affidavit, however, records the conduct as noncompliance with an existing outpatient order.

The accompanying Uniform Commitment Affidavit marked the treatment-history ground for further commitment and stated: "See attached summary. No treatment due to Mr. Reardon's failure to schedule and attend follow up with Communicare." Beard recommended commitment to a Mississippi state hospital. The court then entered an order finding that I had failed to comply with outpatient treatment ordered December 9, 2021 and directed that I be committed to the Mississippi State Hospital or another Department of Mental Health program for observation, diagnosis, and treatment for no more than ninety days unless terminated earlier.

I believed the timing was retaliatory because the affidavit followed immediately after my grievance. I said so in later filings. The chronology is indisputable; the motive is not. Beard's affidavit gives a facially stated treatment-based reason for the action, supported by a dated sequence of missed or rescheduled intake appointments. My grievance gives the context for why I was refusing to proceed as Communicare wanted. Those two documents sit against each other and the reader should see both.

The Sheriff's Department executed the writ shortly after midnight on February 11.

The contemporaneous sheriff's report is specific. At 12:52 a.m., Deputy Dustin Black notified Sergeant Joe Quarles that my vehicle had returned to the residence. Quarles responded with the writ. According to his report, I was recording and arguing that the order was illegal. He told me it was a court order and that they had to take me in. The report says I told them I was not going, after which Black handcuffed me and allowed my wife to collect my phones and recording equipment. Black transported me to the Lafayette County Detention Center.

There is no reason to clean up what the officers say happened next.

A second sheriff's narrative says detention-center staff would not allow me to keep a fleece jacket. According to the report, I cursed at staff, said they would have to fight me for it, and threatened to "whoop y'all's ass" if they took it. The report says Sergeant Quarles, Deputy Kandi Beavers, correctional officer Jametric Judson, and Deputy Black eventually put me on the ground and removed the jacket after I pushed away, backed up, and tried to pull my arms free. It says I stopped resisting once I was on the floor. The report records no medical treatment.

That is law enforcement's account of the jail incident, not a judicial finding, but it is a contemporaneous primary record and it is adverse to me. It belongs in this book. Whatever I believed about the legality of the commitment, threatening staff and physically resisting the removal of a jacket, if the report is accurate, did nothing to make my position stronger. It gave the same institutions I was accusing of mischaracterizing me a fresh written account of confrontational behavior on the night they took me into custody.

The confinement did not end at the county jail. My later federal complaint states that I remained there for roughly six days and was transferred on February 16 to East Mississippi State Hospital in Meridian. The commitment file itself identifies East Mississippi State Hospital as the treating facility and contains later hospital paperwork, including a March 8 Notice of Need for Continuing Hospitalization that listed the anticipated discharge date as "undetermined" at that time.

I challenged the second commitment on due-process grounds. In a June 2022 motion to vacate, I alleged that I repeatedly requested a hearing after being taken into custody and was told I was not entitled to one, even though I maintained that paperwork later indicated an in-person hearing had occurred. That is my filed allegation. I have not located a transcript or independent record proving that an actual hearing took place or proving the repeated denials I described. I therefore cannot convert that dispute into a settled fact. What the record does show is that the second commitment proceeded under the December outpatient order, Beard's noncompliance affidavit, and the court's recommitment order.

While I was confined, my son was born on February 17, 2022.

I am deliberately keeping his medical details out of this account beyond what is necessary to explain the event. My later filings state that the birth was an emergency and that I was unable to be present because I was confined at the state hospital. That is the human fact that matters here: whatever the legal merits of the commitment, I was in state custody when my son entered the world, and I was not there with my family.

I later alleged that I tried to obtain permission to leave for the family emergency and was denied. I have not located a facility record documenting those requests or the response, so I preserve that point as my account rather than as an institutional record.

There is another theory I have often attached to this commitment that does not belong in the factual narrative unless I can prove it better. I have said that immediately before the February confinement I requested financial information concerning the Lafayette County Law Enforcement Officers Association and that the request explains the retaliation. Earlier drafts went further, reciting an EIN, IRS filing classifications, supposed founders, and theories about what the association's finances might conceal. The materials presently verified for this book do not justify turning that suspicion into a factual corruption narrative. An AI-generated research memorandum in the archive repeats those claims, but an AI memorandum is not a primary source. Unless the underlying incorporation papers, IRS filings, request itself, and responsive records are placed in the evidence file and verified, that theory stays out of the publication narrative.

What does survive source review is already consequential enough.

Within roughly two months, the same commitment cause produced a December inpatient commitment and a February recommitment for outpatient noncompliance. The first began after Communicare was engaged by local law enforcement and community reports; the second followed a documented series of postponed intake appointments and my written grievance attacking Communicare's earlier conduct. I believed both were retaliatory. Communicare's records present them as mental-health and treatment-compliance actions. The sheriff's report from the second arrest records conduct by me that, if accurately described, was hostile and resistant. None of those facts erases the others.

When I eventually came out of the second confinement, I did not abandon the fight. I put the dispute into federal court.

On April 6, 2022, I filed a civil-rights complaint in the United States District Court for the Northern District of Mississippi. The case would become the first full federal test of the theory I had been developing for years: that Lafayette County officials, court actors, and mental-health personnel had not merely made isolated bad decisions, but had violated federal law in the process.

The federal court did not accept that theory. The next chapter has to explain why.

CHAPTER 18 — THE FEDERAL LAWSUIT

On April 6, 2022, I filed a federal civil-rights action in the United States District Court for the Northern District of Mississippi: **Reardon v. Lafayette County, Mississippi, et al., No. 3:22-cv-00050-SA-JMV**. I filed it pro se.

The lawsuit was the first time I tried to place the December and February commitment proceedings, the courthouse dispute, the Sheriff's Department, Communicare, and the associated county officials into one federal case. It was also the first time a federal judge would have to decide not merely whether I believed the events were connected, but whether my pleading stated claims federal law would recognize against the people and entities I had sued.

On June 13, 2022, I filed a First Amended Complaint. It was seventy-four pages long.

The caption named the State of Mississippi; Lafayette County; the Lafayette County Chancery Court; Communicare; the Mississippi Department of Mental Health; the Lafayette County Sheriff's Department; Sheriff Joseph B. East; Dr. Sandy Rogers; Rachel Alcorn; Susan Beard;

Chancery Clerk Sherry Wall; Circuit Clerk Jeff Busby; and county attorney David O'Donnell. I invoked 42 U.S.C. §§ 1983, 1985, 1986 and 1988, along with state-law claims. I alleged violations of the First, Fourth, Fifth, and Fourteenth Amendments and argued that Mississippi's mental-health commitment framework had been exploited to deprive me of liberty and retaliate against protected speech and petitioning activity.

The amended complaint is useful evidence of what I believed and what I was alleging in June 2022. It is not evidence that a court had found those allegations true. That distinction became important when the court later summarized the case. Judge Sharion Aycock's memorandum opinion repeatedly framed the factual background as what was alleged **"according to his Amended Complaint."** The court was recounting my pleading, not certifying my narrative as judicial fact.

The complaint also shows a weakness that would become central to the outcome: I tried to litigate almost the entire institutional history at once.

I had years of events, different legal actors, multiple courts, two commitment proceedings, several constitutional theories, state-law tort claims, and an attack on the statutory commitment framework itself. Instead of separating those claims into the narrowest possible legal units, I put them together in a sprawling pro se pleading. The district court later described the seventy-four-page complaint as **"undeniably convoluted and difficult to follow."** That is the court's language, and there is no value in hiding it.

The court also noted that I repeated substantially the same constitutional counts against groups of defendants rather than tying every theory cleanly to the conduct and legal status of each person. What felt to me like documenting a pattern looked, in federal pleading terms, like an overbroad complaint that made it difficult to determine which claim belonged to which defendant and why.

The defendants then raised the defenses federal civil-rights plaintiffs routinely have to overcome, and the court ruled against me on them.

The State of Mississippi and the Mississippi Department of Mental Health obtained dismissal under the Eleventh Amendment. That meant the federal claims against those state defendants could not proceed in the form I had pleaded them.

The individual defendants asserted qualified immunity. Judge Aycock's opinion explained that once they did so, the burden shifted to me to identify clearly established law showing that the particular conduct I alleged violated a constitutional right under sufficiently established precedent. The court concluded I had not carried that burden.

That ruling matters because it is more precise than saying the court simply decided none of the underlying events happened. It did not. The qualified-immunity analysis asked whether my complaint and legal authorities were sufficient to overcome immunity as to the individual defendants. The court said they were not.

The opinion also addressed my theory that the commitment itself constituted an unconstitutional seizure. In analyzing that claim, the court pointed to something my own amended complaint acknowledged: I had been taken into custody pursuant to a writ signed through the chancery commitment process. The existence of that judicial process mattered to the Fourth Amendment analysis. The court did not accept my position that the surrounding allegations were enough to turn the resulting custody into a cognizable federal false-arrest claim against the individual defendants I had named.

The court was equally direct about the larger theory behind the case. Near the end of the opinion, Judge Aycock wrote that my grievance appeared to rest, in significant part, on my belief that Mississippi's statutory involuntary-commitment scheme was unconstitutional. I had indeed made that argument. The First Amended Complaint expressly asked the federal court to treat the state's mental-health laws as constitutionally defective and to overhaul or invalidate them. The district court did not accept that theory as I presented it.

My state-law claims failed for a separate procedural reason. The opinion held that I had not satisfied the Mississippi Tort Claims Act's pre-suit notice requirement. Whatever factual merit I believed those tort theories had, the federal court concluded I had not completed a statutory prerequisite to bringing them against the governmental defendants.

The result was a decisive loss. On June 28, 2023, Judge Aycock entered the memorandum opinion and order disposing of the case against me. The federal action ended without a trial on the factual theory I had wanted a jury to hear.

That outcome has to be stated without qualification before I say what I think it means.

I lost the case.

I did not lose because a jury heard testimony from Alcorn, Beard, East, Busby, the deputies, and me and decided whose account was true. I lost at the legal stage where the court evaluated immunity, pleading sufficiency, the existence of the chancery writ, sovereign immunity, the structure of the constitutional claims, and state-law notice requirements. That distinction does not make the judgment less real. It defines what the judgment actually decided.

The opinion also forces an admission about my own lawyering. The complaint was too broad. It mixed allegations with legal conclusions. It treated repeated events as though identifying a pattern automatically solved defendant-specific pleading problems. It assumed that if I could show enough troubling facts, a federal court would necessarily let me conduct discovery into all of them. Federal civil-rights litigation does not work that way, and Judge Aycock's description of the complaint as convoluted was not invented by an adversary; it was the assessment of the judge deciding the case.

None of that means the source documents underlying the lawsuit cease to exist. Alcorn's recorded statement that local law enforcement engaged Communicare still exists. Beard's February noncompliance affidavit still exists. The December commitment file still exists. The recorded December 6 encounter with East still exists. But the federal judgment means I cannot

responsibly describe the 2022 lawsuit as a judicial vindication of my interpretation of those documents. It was the opposite: an adverse judgment rejecting the federal case I built from them.

The timing of the lawsuit also matters to the chronology that follows. The federal case was still new when another Mississippi criminal investigation began.

On **June 20, 2022**, I went into Oxford City Hall with a camera. The video later relied upon by investigators showed me entering the building, going upstairs, approaching the mayor's office, and attempting the office doorknob.

On **June 23**, Oxford Police referred the matter to the Mississippi Bureau of Investigation.

On **June 27**, MBI Lieutenant Joey Mauney prepared an aggravated-stalking warrant, swore to it by FaceTime, and Circuit Judge Kent Smith signed it.

On **June 28**, deputies served that already-existing MBI warrant when I arrived at Lafayette County Chancery Court for a family-court matter.

That is the order. The Chancery Court visit was where I was arrested. It was not the conduct that generated the warrant.

The federal lawsuit and the new criminal case were now moving at the same time. The next chapter turns to the second aggravated-stalking prosecution and the evidence MBI actually used to obtain the warrant.

CHAPTER 19 — THE JUNE 2022 ARREST: CASE B

On the morning of June 28, 2022, I went to the Lafayette County Chancery Court because I had a scheduled family-court matter. I did not walk into that building and commit a new felony. By the time I arrived, the felony arrest warrant already existed.

That is the first correction this chapter requires.

The Lafayette County Sheriff's Office report written by Deputy Hoby James records the sequence from the officers' side. At approximately 8:00 that morning, James received a call advising him that the Mississippi Bureau of Investigation had issued a warrant for me. He was told to meet officers at Chancery Court at 9:00 "because Matt had court today." James wrote that he served the MBI arrest warrant at approximately 9:32 a.m., that I was arrested without incident, and that I was transported to the Lafayette County Detention Center.

The MBI file now gives a much fuller account of how the warrant reached that point.

The case is M22-00000897. Its internal table of contents identifies the matter as a stalking/aggravated-stalking investigation and lists the supporting records MBI assembled: the arrest affidavit and warrant, the existing restraining order, an Oxford Police report, a written statement from Ashley Atkinson, criminal-history material, and other investigative documents. The file expressly says that it contains neither MBI's recommendation nor conclusions. That disclaimer matters. The file is an investigative packet, not a judicial finding that every allegation in it was true.

MBI's first dated supplement is June 23.

At approximately 9:00 that morning, Lieutenant Joey Mauney wrote that Oxford Police Chief Jeff McCutchen contacted him seeking MBI assistance with an aggravated-stalking investigation involving Oxford's mayor. After the conversation, McCutchen requested guidance through MBI headquarters and Mauney's chain of command about further investigative action.

Four days later, on Monday, June 27, Mauney was told to assist Oxford Police "in any way possible." He met Detective Shane Fortner at approximately 9:00 a.m. to discuss the case. Around noon, Mauney and Master Sergeant Jason Roe gathered the investigative information from Fortner. The supplement identifies me as the person of interest. An arrest warrant was then prepared and emailed to Third Circuit Judge Kent E. Smith.

At approximately 3:00 p.m., Judge Smith contacted Mauney by FaceTime. Mauney wrote that Smith placed him under oath concerning the information in the warrant and then signed and issued it.

So before I went to Chancery Court the following morning, the investigative sequence was already complete enough to produce a judicially signed arrest warrant.

The conduct MBI relied upon was not my June 28 arrival at Chancery Court. It centered on my **June 20 visit to Oxford City Hall** and on earlier social-media posts.

Mauney's affidavit describes him reviewing Fortner's report and then going to my public Facebook page, where he found a link to a YouTube video. He wrote that the City Hall video ran twenty-three minutes and thirty-five seconds.

The affidavit then gives timestamps.

At approximately 3:53 in the video, I entered City Hall. I looked at a directory identifying departments and walked around the first floor recording. At roughly five minutes, I returned to the directory. I then went upstairs and approached the doors Mauney associated with the mayor's office.

The affidavit says I stood there briefly, walked away, and returned. At approximately 7:49, Mauney wrote that I "attempt[ed] to enter the door by using the doorknob but was unsuccessful."

I dispute that characterization. My position has been that the video does not show an attempted unlawful entry into the mayor's office. The video itself, rather than either my description or Mauney's, is the best evidence of what my hand did at that door.

Mauney's affidavit also records what happened immediately afterward. It says I walked away until I encountered a woman on the second floor and told her that I remembered the mayor's office being on the first floor when the prior mayor was in office.

That detail is important because it shows the affidavit was not based on the door moment alone. Investigators were building a broader course-of-conduct theory.

The affidavit says I had "continually violated parts" of the restraining order both in person and through social-media outlets including Twitter and YouTube. It listed dates of tweets—May 23, 2021; August 3, 2021; August 11; August 12; August 17; August 23; and September 1—as examples rather than reproducing every post in the affidavit itself.

That is the State's actual investigative theory.

An earlier version of this book described three automatic legal “gears”: a prior stalking conviction, an active protective order, and my physical presence, which supposedly combined mechanically to create aggravated stalking. That was wrong.

The MBI affidavit alleges a **course of conduct**. It cites the June 20 City Hall video, the restraining order, and earlier online activity. My prior 2017 aggravated-stalking conviction was legally important to the felony charging theory, but the State still alleged new stalking conduct. The June 28 Chancery appearance was not the final gear that completed the crime. It was where officers knew they could find me to serve a warrant already signed the day before.

The affidavit is also revealing for what it says about its own source base. Mauney wrote that it was based on his personal knowledge, information from other state and local law-enforcement officers, other sources he considered reliable, and his training and experience. That means not every factual assertion originated in something Mauney personally witnessed.

On June 28, after the arrest, MBI also generated an Advice of Rights form. The form explains the right to remain silent, the right to counsel, the right to appointed counsel if indigent, and the right to stop answering questions. It contains a waiver section stating that the signer understands the rights and is willing to answer questions without a lawyer. That document is part of the case file and is another reason the chronology should be written from the record rather than reduced to the arrest itself.

The warrant page contains a handwritten bond notation that appears to read **\$12,000**. Whatever that notation initially meant, it did not determine the ultimate pretrial custody decision. The MBI file records what happened next.

On **Wednesday, July 6, 2022**, at approximately 1:00 p.m., Mauney and Roe attended my preliminary hearing at the main courthouse in Oxford. Judge Kent Smith presided. Mauney’s July 7 supplement says the hearing lasted several hours. After the hearing, Smith found sufficient evidence for the case to be presented to the Lafayette County grand jury during its August session.

The supplement then records the consequence that mattered most to me: Judge Smith considered me a threat to the community and ordered me held **without bond** at the Lafayette County Detention Center pending the grand-jury date.

That corrects another date that had drifted in earlier versions of my timeline. The MBI file says the preliminary hearing was **July 6**, not July 5.

The distinction between the initial warrant notation and the preliminary-hearing order is important. The paper trail may show a bond figure on the warrant, but after several hours of hearing the Circuit Court ordered me held without bond. The book should not collapse those separate procedural moments into one number.

By then this was no longer simply a dispute about access to City Hall.

I was back in the same county jail where I had spent more than forty days in 2017. I was again facing an aggravated-stalking felony. The prior 2017 conviction—the case I had been trying to reopen through post-conviction litigation—was now part of the legal landscape of the second case. The standing Chancery restraining order also remained part of the file.

But the two criminal cases were distinct and have to stay distinct in this book.

The **2017 case** concerned Todd and Ashley Lynch. Its later Criminal Information alleged AR-15 conduct “on or before May 8, 2017.” It ended in the July 6, 2017 guilty plea, banishment, probation, and covenant not to sue.

The **2022 case** concerned Mayor Robyn Tannehill. Its investigative record cited the June 20 City Hall visit, the standing protection order, earlier social-media posts, and the prior conviction. The MBI warrant was obtained June 27 and served June 28.

The fact that both cases used the aggravated-stalking statute and both occurred in Lafayette County does not make them the same prosecution or allow evidence from one to be silently imported into the other.

The constitutional argument is stronger when the factual theory is stated correctly.

City Hall was a government building open to the public. I entered with a camera. Much of the older material investigators cited consisted of political expression about an elected official. Political speech receives powerful First Amendment protection. At the same time, constitutionally protected speech does not immunize otherwise criminal conduct, and a stalking statute can reach conduct satisfying its elements even where expression is involved.

The question therefore is not whether every tweet was automatically protected or whether every approach toward a mayor's office was automatically stalking. It is whether the particular conduct assembled by Oxford Police and MBI lawfully satisfied the statute without treating protected petitioning, recording, or political criticism as criminal merely because it was unwanted.

That is a legal dispute. The investigative facts come first.

June 20: I recorded inside Oxford City Hall.

June 23: McCutchen asked MBI to become involved.

June 27: Mauney and Roe met with Fortner; MBI reviewed the video and other material; an affidavit and arrest warrant were prepared; Judge Smith swore Mauney by FaceTime and signed the warrant around 3:00 p.m.

June 28: deputies knew I had Chancery Court, waited there, arrested me without incident at approximately 9:32 a.m., and transported me to jail.

July 6: after a several-hour preliminary hearing, Judge Smith found sufficient evidence to send the case toward the grand jury and ordered me held without bond as a perceived threat to the community.

Those dates now come directly from the MBI and Sheriff's records.

The case later produced an indictment and a second guilty plea. The indictment itself would cite the 2017 conviction and identify the earlier offense date as May 8, 2017—showing how the disputed date from Case A became embedded in the charging architecture of Case B.

That is where the next chapter begins: not with a new arrest, but with the pressure of fighting the second case from jail while the first conviction was being used as part of the State's theory against me.

CHAPTER 20 — THE GUILTY PLEA AND BANISHMENT

The second aggravated-stalking case moved from the July 6 preliminary hearing to the grand jury.

The indictment is now in the source set, and its wording adds detail that earlier versions of this chapter did not have.

The Lafayette County grand jury returned the indictment in Cause No. **LK22-358**, and the document was filed on **September 6, 2022**. It charged aggravated stalking under Mississippi Code § 97-3-107(2).

The charging paragraph alleged that, “**on or about June 24, 2022,**” I purposefully engaged in a course of conduct directed at **Robyn Tannehill**, knew or should have known the conduct would cause a reasonable person to fear for her safety, and did so after having been convicted within the preceding seven years of aggravated stalking.

The indictment then identified the earlier case by cause number: **LK17-295**, the 2017 aggravated-stalking conviction. It stated that I had been convicted on July 6, 2017 and identified the earlier offense as having occurred on **May 8, 2017**.

That is another way the disputed May 8 date from the first case became embedded in the architecture of the second prosecution.

The indictment listed **Shane Fortner** and **Joey Mauney** as witnesses.

There is also a date discrepancy that I will not smooth over.

The MBI warrant affidavit discussed in Chapter 19 centers the new investigation on my **June 20** visit to Oxford City Hall and earlier online activity. The indictment alleges the aggravated-stalking offense occurred **“on or about June 24.”** Those are different dates in two official records. The phrase “on or about” is not necessarily limited to a single twenty-four-hour period, but the documents still do not use the same date, and this edition preserves that fact.

The certified November revocation transcript later summarized the procedural sequence on the record: indictment on September 6 and guilty plea on **September 30** before Circuit Judge Kent E. Smith.

That means the case did proceed beyond the MBI warrant stage. Judge Smith had found sufficient evidence at the July preliminary hearing; the matter went to the grand jury; an indictment followed; and the case ended by plea rather than trial.

The September 30 sentencing order is direct.

Judge Smith imposed **five years** in the custody of the Mississippi Department of Corrections, suspended all five years, ordered **zero years to serve immediately**, and placed me on **five years of unsupervised probation**.

The money portion also needs precision.

An earlier version of this chapter called **\$842.50** “court costs.” The signed order breaks the figure down differently: **\$592.50 in court costs** plus a **\$250.00 fine**, for a **total of \$842.50**.

The total was right. The description was not.

The special restrictions were what made the sentence unusual in my life.

I was **banished from Lafayette County for five years**.

I was prohibited from contacting the Tannehill family.

The court retained a **365-day right of review**.

And because I was still residing at an address inside Lafayette County, the order allowed time for me to relocate.

The word **banish** is not my characterization. It appears in the sentencing record itself. A separate Notice of Criminal Disposition likewise records a five-year banishment, five years of unsupervised probation, forty-five days to move from the current Lafayette County address, and no contact with the victim.

But the relocation period needs to be described accurately.

An earlier version of this chapter treated the forty-five days as though Judge Smith had given me forty-five days of unrestricted movement throughout Lafayette County while I packed, worked, visited agencies, and wound down my affairs. The State's later revocation motion described the conditions much more narrowly.

According to the State's recitation, the sentence allowed me to **enter and exit Lafayette County and travel directly to the residence where I was then staying until November 15, 2022**. It separately allowed me to enter for **court proceedings or scheduled court business**, provided I gave the Lafayette County Sheriff's Department one day's notice.

Those were the exceptions the revocation court later applied.

That means the forty-five-day relocation window was not a temporary suspension of banishment. It was an exception structured around the residence, plus another exception for court business.

The difference became clear almost immediately.

At the November 3 revocation hearing, Judge Tollison read from the State's allegations that I had violated the terms on the **same day I was sentenced, September 30**, and again on **October 3**. According to the motion, Assistant District Attorney Tiffany Kilpatrick contacted defense counsel after those incidents and asked that we return while Circuit Court was still in term so the court could remind me that I was not permitted unauthorized movement around Oxford or Lafayette County.

The State expressly told the revocation court that **no revocation proceeding was initiated over those first two incidents.**

That fact matters because it shows the later October 28 and October 31 allegations were not the first time the State believed I had misunderstood or exceeded the geographic restriction. Before the revocation motion was filed, the prosecutor's office says counsel had already been contacted and the restriction had already been reiterated.

That earlier warning complicates the account I later gave of October 28. I was not operating against a blank slate. By the State's account, I had already been reminded that the relocation period did not authorize general movement through the county.

The plea itself is also part of the record in a way I cannot write around.

The sentencing order states that Judge Smith found me competent and found the plea voluntary, knowing, deliberate, and intelligent. When I later tried to withdraw the plea, Smith's November 14 order described the colloquy in more detail. He wrote that I told the court I had discussed the plea petition with counsel; understood the petition; had discussed the facts and possible defenses; was not forced or coerced; was satisfied with counsel; and was in fact guilty of aggravated stalking. The order also referenced a mental evaluation in the case and stated that counsel had stipulated to the competency findings.

My later position was the opposite.

I believed appointed counsel had not represented me adequately. I believed months of incarceration had put me under enormous pressure to accept a deal. I continued to dispute the underlying stalking theory and the use of political speech and the City Hall encounter to support it.

Those beliefs explain why I filed what I did next. They do not erase the sworn plea record.

On **October 31, 2022**, I filed a pro se Motion to Withdraw Guilty Plea. I alleged ineffective assistance by the appointed attorneys, asserted innocence, attacked the plea circumstances, and asked the Circuit Court to set the conviction aside.

The timing immediately became part of my own theory about what followed. The State filed its revocation motion on **November 1**, one day after my motion to withdraw the plea. At the November 3 hearing I pointed that out directly. Judge Tollison acknowledged that the plea-withdrawal motion was in the file but told me it would be processed separately and was not the matter before him that day.

That distinction was procedurally correct even though I regarded the timing as suspicious. The revocation court was deciding whether I had violated probation. Judge Smith later decided whether the guilty plea itself could be withdrawn.

On **November 14**, Smith denied the withdrawal motion.

Applying the ineffective-assistance framework from *Strickland v. Washington*, he concluded that I had not shown deficient performance by counsel or resulting prejudice. He also relied heavily on the plea colloquy. My later assertions that I was innocent and had been pressured, he wrote, contradicted the answers I gave under oath when the plea was accepted.

The signed order states that immediately before the plea hearing the court had found me legally competent based on the mental-evaluation findings and that defense counsel stipulated to those findings.

That creates a documentary conflict that stays visible throughout the book.

My later account is that the plea was the product of confinement, inadequate representation, and pressure to get back to my family and out of the jail.

The court record says that when Judge Smith accepted the plea I denied coercion, expressed satisfaction with counsel, acknowledged discussing defenses, and admitted guilt.

A memoir may explain why I believe those sworn answers did not reflect the reality I felt. It cannot pretend the answers were never given.

The sentencing structure also created a legal vulnerability that I did not fully appreciate on September 30.

The five-year prison term was suspended, not erased. That meant a later probation violation could expose me to incarceration under the suspended sentence. I walked out with no immediate years to serve, but with five years hanging over the case.

The banishment condition was the first place where that vulnerability became concrete.

On **October 28**, before the relocation period expired, I wanted to go to the FBI office in Oxford to report what I believed was law-enforcement misconduct.

I knew enough about the restriction to make calls first.

The FBI call survives.

I told the person who answered that I needed to provide evidence, explained that I was banished from Oxford, and said I needed some kind of time or permission structure so I could notify local authorities before entering the city. I asked, in substance, whether an appointment could be set.

The staffer explained that the office handled **walk-ins rather than appointments** and told me that coming before noon would be preferable.

I then called the Lafayette County Sheriff's Department.

That call survives too.

I told Deputy Kandace Beavers that I needed to come into Oxford to meet with the FBI and that I was calling because of the court restriction. I gave her the expected timing and destination. When she later called back asking what time my "appointment" was, I explicitly told her there was **not really an appointment** because the FBI did not handle visits that way; I had tried to set one and had instead been told to come before lunch.

That recording is one of the cleanest pieces of evidence in this entire chronology because it captures what I told law enforcement **before** the disputed conduct rather than my recollection afterward.

It establishes three things.

I was not hiding the trip.

I had tried to get a defined time from the FBI precisely because of the banishment condition.

And I told Beavers the truth that there was no formal appointment.

It does **not** establish a fourth proposition that I used to treat as automatic: that because I gave notice, the FBI visit was authorized by the sentencing order.

The State's later description says the one-day-notice exception applied to **court proceedings or scheduled court business**. An FBI walk-in does not fit that language on its face. The relocation exception likewise concerned direct travel to and from the residence where I was still permitted to stay.

I believed reporting allegations to the FBI was legitimate public business and should have been allowed. But that is not the same as the written sentence expressly permitting it.

That difference is the heart of the October 28 dispute.

The State's November 1 motion alleged another event on **October 31**. A witness said she saw me in a residential neighborhood identified in the transcript as Shelby's Place. I denied it outright. I told the revocation court I had no idea what the witness was talking about and emphasized that there was no photograph or recorded license plate establishing that the vehicle was mine.

The witness would later testify that she believed she saw me driving slowly through the neighborhood with the interior light on and that her stepmother tried unsuccessfully to obtain the tag number.

The court credited that testimony under a **preponderance-of-the-evidence** standard, not the beyond-a-reasonable-doubt standard of a criminal trial.

That distinction matters because probation revocation is not a new criminal prosecution of the alleged conduct. Judge Tollison told me the State would have to show that it was more probable than not that I had violated the probation terms.

The November 1 motion therefore put two October events before the court:

October 28: the FBI visit, which I admitted making but argued was authorized because I had notified the Sheriff's Department and attempted to coordinate with the FBI.

October 31: the Shelby's Place allegation, which I denied occurred at all.

The State's theory was that both were unauthorized presence in the county.

My theory was that the first had been handled openly and with notice and that the second was mistaken or false.

The suspended sentence made that factual dispute carry enormous consequences.

One month earlier, I had walked out of court with zero years immediately to serve.

On November 1, the State asked the court to revoke that suspended sentence.

On November 3, I would stand before Judge Gray Tollison without a lawyer—after the judge offered me one and I waived counsel—and cross-examine Beavers and the neighborhood witness myself.

For years afterward I reduced that hearing to one line: Beavers lied and sent me to prison.

The transcript is more complicated.

The recovered calls make one part of Beavers's testimony deeply problematic. But Judge Tollison's stated ruling rested on the broader question of unauthorized presence under the banishment terms.

One additional records problem belongs in this chronology because it illustrates why I now compare documents instead of trusting a date merely because it appears on a filed form.

A later 2023 petition seeking another revocation states that I was sentenced on **September 20, 2022**. The signed sentencing order, Notice of Criminal Disposition, and November 2022 revocation transcript all identify the sentencing date as **September 30**. I therefore use September 30 as the verified date while preserving the later petition's September 20 entry as a clerical inconsistency rather than silently importing it into the timeline.

The next chapter follows the November 3 transcript rather than the slogan.

CHAPTER 21 — REVOCATION: WHAT BEAVERS ACTUALLY SAID

On November 3, 2022, I appeared before Circuit Judge Gray Tollison on the State's motion to revoke my suspended sentence in Cause No. LK22-358.

The court initially wanted to appoint counsel and continue the hearing. I waived counsel and asked to proceed that day. Judge Tollison warned me that I would have a better chance of succeeding with a lawyer and asked again whether I still wanted to proceed without one. I said yes.

I also told the court that I had filed a motion to withdraw my guilty plea on October 31 and that the State had filed the revocation motion the next day. Judge Tollison said the plea-withdrawal motion would be processed separately and was not the matter before him.

The State alleged that I had violated the five-year banishment condition by being in Oxford for unauthorized purposes on October 28 and October 31. The October 28 incident was my visit to the FBI office. The October 31 allegation came from a witness who said she saw me driving through a residential neighborhood called Shelby's Place.

I denied both violations. As to the FBI visit, I told the court I had contacted Deputy Kandace Beavers beforehand and had done what I believed the court required. As to Shelby's Place, I denied being there.

Beavers was the State's first witness.

She testified that I called the Sheriff's Department on October 28 and told her I needed to come into Oxford to meet with an FBI agent. In her words, I was "reporting that he was coming into the city." She said I told her the visit needed to occur before lunch. She then reported the call to Sheriff Joey East, and somebody contacted the FBI office.

According to Beavers, the FBI said I did not have an appointment.

Assistant District Attorney Tiffany Kilpatrick then asked:

| "Okay, so he lied?"

Beavers answered:

| "Yes."

I objected. Judge Tollison responded that the rules of evidence do not apply to a revocation proceeding.

For years I described that exchange from memory and from the certified transcript alone. The archive now contains something better: the recordings of the calls themselves, preserved in later video material and transcribed in the project files.

The first call was to the FBI.

I told the Oxford FBI office that I wanted to provide evidence concerning the Holly Springs Police Department. I explained that I was banished from Oxford and needed permission to enter the city, then asked whether somebody could set a time so I could notify Oxford or the Lafayette County Sheriff's Department.

The recording transcript renders the FBI staffer saying:

| "Well we do walk-ins as opposed to phone calls."

I asked about office hours and whether lunch would create a problem. The staffer said the schedule varied and added:

“I would say if you could come before 12 would be perfect.”

I said I would put the evidence on a jump drive and come to the office.

Then I called the Lafayette County Sheriff’s Department.

The recovered conversation materially changes how the revocation testimony has to be evaluated. I told Beavers that I had just spoken with the FBI, that I needed to go there within roughly the next hour, and that I was calling to notify the Sheriff’s Department. She asked when I expected to come through and took down the information.

More importantly, Beavers later called back and asked what time my “appointment” was.

My answer on the recording was explicit: the FBI **did not really do appointments**. I told her I had tried to set one, but the FBI staffer had instead told me to come before lunch. Beavers acknowledged that answer and continued documenting where I expected to go.

That recording eliminates an evidentiary gap that existed in an earlier draft of this chapter. I no longer have to rely on my later description of what I told Beavers. The conversation itself survives in the project archive.

And on the narrow question Kilpatrick put to her in court, it matters a great deal.

When the prosecutor asked, “Okay, so he lied?” the premise was that the FBI said I had no appointment. But Beavers had already been told by me, on the recorded call before the trip, that there was no formal appointment because the FBI handled walk-ins. I had not represented to her that I possessed a scheduled appointment. I told her the opposite.

The FBI call independently matches that account. I asked for an appointment; the FBI told me it handled walk-ins; the staffer gave me a before-noon window; and I then relayed that situation to Beavers.

So the record supports a narrower and stronger conclusion than some of my later public accusations. Beavers did not falsely testify that I had given no notice. She admitted I called ahead. But her answer “Yes” to the prosecutor’s conclusion that I had lied about an appointment is directly undercut by the recorded conversation she herself had with me before the visit. The recording shows that she had been told there was no formal appointment.

I am deliberately not upgrading that contradiction into a criminal conclusion about perjury. The transcript and recording establish what was said. Questions of criminal intent belong to a tribunal with jurisdiction to decide them. What I can say from the source record is that the recorded call materially contradicts the factual premise of the “so he lied?” exchange.

There is still a separate legal problem for me, and it cannot be edited away.

The State’s later written description of my sentence says that advance notice to the Sheriff’s Department applied to **court proceedings or scheduled court business**. An FBI walk-in was not expressly listed as an exception. The other temporary exception allowed me to remain at and travel directly to the residence where I was staying while I relocated.

So proving that I told Beavers the truth about the FBI visit does not automatically prove that the visit was authorized under the banishment order.

That is the central distinction this chapter must preserve: the appointment accusation and the probation violation are not the same question.

The second State witness was Emily Frye.

Frye testified that she was at her father’s home in Shelby’s Place on Halloween night, October 31, around 7:40 p.m. She said she saw a black Chevrolet Equinox moving slowly through the neighborhood and identified me as the driver because the interior lights were on. On cross-examination, she acknowledged that she had no photograph and no recorded license-plate number. She said her stepmother tried to obtain the plate but could not because something covered part of it.

I denied being there.

After hearing Beavers and Frye, Judge Tollison took a short recess and then ruled. His reasoning is the most important limit on the Beavers issue.

The judge did not say the “he lied” answer was the basis for revocation. He found, under the preponderance-of-the-evidence standard, that it was more probable than not that the two incidents described by Beavers and Frye occurred and that I had violated the banishment condition. His ruling rested on the State’s proof of unauthorized presence in Lafayette County on October 28 and October 31.

That means a line I repeated for years — that Beavers’s perjury sent me to prison — is too broad and should not survive in this book.

The appointment testimony was part of the State’s presentation, and the recovered calls materially contradict its implication that I had falsely claimed a formal FBI appointment. But Judge Tollison’s stated ruling was broader: he found that I had been present in Lafayette County for purposes outside the exceptions in the sentence.

The October 28 recording helps me on credibility. It shows that I was trying to navigate the restriction openly, that I asked the FBI for a set time because I needed to notify local authorities, and that I told Beavers there was no formal appointment. It does not rewrite the wording of the banishment exceptions.

The same distinction applies to October 31. I denied Frye’s identification and pointed out the absence of a photograph or plate number. Judge Tollison nevertheless credited the State’s proof under a preponderance standard, which is lower than the beyond-a-reasonable-doubt standard used at a criminal trial.

After finding the violation, Judge Tollison asked the State for a recommendation. Kilpatrick recommended one year of the five-year suspended sentence, with the other four years resuspended and the banishment condition kept in place. The court adopted that recommendation: five years in MDOC custody, four suspended, leaving one year to serve, followed by four years of unsupervised probation with the remaining conditions continuing. The transcript records costs of \$592.50 in connection with the revocation.

At the end I again raised my pending motion to withdraw the guilty plea. Judge Tollison told me the court had made its decision. I asked whether my motion “doesn’t mean squat in this court.” He told me he had addressed it earlier and that I could file an appropriate motion.

Then I said:

 | “You are a corrupt judge.”

That is in the certified transcript too. It was not careful advocacy. It was what I said after hearing the court impose a year of the suspended sentence.

Eleven days later, on November 14, Judge Kent Smith entered the separate order denying my motion to withdraw the guilty plea.

The record therefore has two distinct adverse rulings from this period. Judge Tollison found that I violated the banishment condition and imposed one year to serve. Judge Smith separately rejected my attempt to undo the underlying guilty plea.

Those are the legal facts I carried into custody.

The strongest correction in this chapter is not that the State’s entire revocation case disappears. It does not. It is that the actual phone calls now let the reader separate two questions that earlier accounts blurred together. The recording supports my claim that I told Beavers the truth about the FBI’s walk-in procedure. The court nevertheless revoked me because it found my physical presence in Lafayette County unauthorized under the terms of the sentence.

Both facts have to remain standing.

CHAPTER 22 — THE ONE-YEAR SENTENCE

Judge Gray Tollison sentenced me on November 3, 2022 to serve one year of the five-year sentence that had originally been suspended.

I did not spend a full calendar year in custody.

The State filed its revocation motion on November 1 and expressly asked that I be held in the Lafayette County Detention Center until the earliest available hearing, which the motion identified as November 3 at 2:00 p.m. I was taken into custody November 1. I was released from Mississippi Department of Corrections custody on August 1, 2023. That is roughly nine months of actual confinement on a sentence denominated as one year. I do not have a sufficiently clear MDOC record in the source set before me showing exactly which jail credit, earned-time calculation, or release mechanism accounts for the difference, so I am not going to invent one.

The arrest itself was recorded.

I was returning from Holly Springs when a Lafayette County deputy stopped me and explained that paperwork had been issued directing that I be held for the revocation hearing. The recording matters because the officer did not behave like an antagonist. He showed me the paperwork,

offered to let me look at it, explained that once officers had made contact he could not let me drive away, and tried to help work out what would happen to my vehicle. When I told him my wife was in Hernando and my children were at home, he let me call her.

I told him, "I've done nothing wrong. I just came from Holly Springs."

He did not argue with me. He carried out the order.

That distinction belongs in this book. A government process can be wrong without every person who touches it behaving wrongly. The deputy serving the order treated me decently on the recording.

There is a more important correction to my own account of the hearing.

For years I explained my failure to play the October 28 phone recordings by saying I was arrested on short notice, separated from the recordings, asked the court for more time, and was refused a continuance. The certified transcript does not support that version.

At the opening of the November 3 hearing, Judge Tollison proposed doing the opposite. He told me he wanted to appoint an attorney and put the proceeding off until the following week. I repeatedly waived counsel and asked to proceed that day. He warned me that I would have a better likelihood of success with an attorney. I said I understood and still wanted to continue without one.

That was my choice.

I had been in custody since November 1. I was angry, convinced the revocation was retaliatory, and wanted the matter heard immediately. But those circumstances do not change the transcript. The court offered counsel and delay. I waived both.

The transcript also shows that I told Judge Tollison during the hearing that I had the FBI interaction documented in audio and other evidence. After the court announced its finding, Tollison told me I could submit evidence and said the record would remain open for YouTube videos and similar material. When I asked how, he suggested putting it on a zip or flash drive and said I would be permitted to do that from the jail.

That does not mean the recordings were considered before he revoked me; they were not introduced before the ruling reflected in the transcript. It does mean I cannot accurately write that the court refused to let me submit them or refused every opportunity for additional time. The record is more complicated: the judge initially offered a continuance so I could have counsel, I declined it, the hearing proceeded, the court ruled on the evidence then in the room, and afterward the judge said I could supplement the record. I have not located a docket entry proving that the October 28 recordings were subsequently submitted and considered.

The distinction matters because those recordings now exist in the archive and, as Chapter 21 shows, they materially undercut the prosecutor's "so he lied?" premise. The FBI told me it handled walk-ins. I told Beavers there was no formal appointment. Beavers knew that before I entered Oxford. But the revocation ruling itself rested on Judge Tollison's broader finding that my presence in Lafayette County on October 28 and October 31 violated the banishment condition.

Then came the custody.

The documentary record available for this book does not contain a reliable day-by-day account of the months I spent in MDOC custody between November 2022 and August 2023. I am not going to fill that gap with generic prison scenes, reconstructed conversations, or invented texture. The dates and legal consequences are enough.

There is, however, one legal fact about the one-year sentence that did not become clear to me until much later.

In November 2024, attorney Jacob Howard of the MacArthur Justice Center filed a post-conviction relief petition challenging a second revocation sentence imposed in July 2024. In a footnote, that petition addressed the November 3, 2022 sentence too. Howard argued that the banishment violation was a **technical violation** under Mississippi law and that, because the November 2022 proceeding was the first revocation for technical violations, Mississippi Code § 47-7-37(5)(a) authorized a maximum incarceration period of **ninety days**, not one year.

That is a lawyer's argument in a filed post-conviction petition, not a separate judicial ruling vacating the first revocation. The distinction is essential.

Howard's petition expressly said that I had already served the November 2022 sentence and therefore did **not** ask the court to grant relief from it. The petition challenged only the later July 18, 2024 revocation sentence.

That means another claim from earlier drafts has to be removed: the one-year sentence imposed in November 2022 was not later "fully vacated" by the January 21, 2025 order. It was not.

The January 2025 order dealt with the **second** revocation. It vacated the excessive July 2024 sentence, resentenced me to 120 days, ordered my immediate release because I had already served more than that, and reinstated me to the underlying five-year term of unsupervised probation. The order expressly kept the original conditions in force, including banishment from Lafayette County. It did not erase the September 2022 guilty plea, the underlying aggravated-stalking conviction, or the first November 2022 revocation.

So the legally accurate account of this chapter is less dramatic than the version I once told, but in one respect more troubling.

I served roughly nine months of actual custody under a one-year revocation sentence. Years later, counsel for the MacArthur Justice Center stated in a filed PCR petition that the statutory maximum for that first technical revocation was ninety days. Because I had already served the sentence, that petition did not ask the court to correct it, and no later order in the evidence before me vacated that first revocation.

The time was simply already gone.

On August 1, 2023, I walked out of MDOC custody.

The record immediately becomes dense again after that point. Within days I began publicly attacking the testimony from the November hearing and trying to get law enforcement to take a complaint about it. Then I traveled to Galveston, Texas.

On August 11, ten days after my release, I was arrested there for driving while intoxicated. Within hours, officers from Lafayette County were communicating with Galveston law enforcement about me.

That is where Part IV begins.

CHAPTER 23 — RELEASE, AND GALVESTON

I walked out of Mississippi custody on August 1, 2023. I had been jailed since November 1, 2022 — roughly nine months — after the first revocation of my 2022 suspended sentence. The written revocation sentence was one year, but I did not serve a full calendar year before release. That distinction matters because this book cannot turn a sentence into time actually served when the dates say otherwise.

Three days after my release, on August 4, I called the Lafayette County Sheriff's Department. I asked to make a complaint about Deputy Kandi Beavers's testimony at the November 2022 revocation hearing. I had the October 28 recording by then, and I believed it showed that the Sheriff's Department had been told in advance that I intended to go to the FBI office — contrary to the characterization later placed before Judge Tollison that I had lied about having an appointment.

The call with Chief Deputy Scott Mills is recorded. Four sentences into my explanation he interrupted me: "*Hold up, hold up, hold up.*" He then said, "*I'm not sitting here listening to you,*" and told me that if I wanted to make a complaint I could come to the Sheriff's Department and file it in person.

I refused. By that point my dealings with the department had included arrests, prosecution, civil-commitment involvement, and the revocation that had just kept me incarcerated for months. I was not willing to walk back into the building simply to hand over evidence concerning one of its own deputies. That was my decision and my assessment of the risk. I do not need to convert that judgment into a claim about what the department intended.

I also published the recording. I put the October 28 call beside the revocation testimony so that viewers could hear what had actually been said and compare it with the later sworn record. I have described the audience at different times as roughly forty to fifty thousand views within about a week. I do not presently have the platform analytics in the evidentiary record, so I am not fixing an exact number here. What I can establish is the sequence: release on August 1; complaint call on August 4; publication of the recording; then Texas.

Seven days after the call with Mills, I drove to Galveston. My purpose, as I have consistently described it, was journalistic. I had received information concerning allegations of racial profiling there and was going to meet other journalists and look into it. I had been on the road most of August 10 and reached Galveston in the early morning hours of August 11.

The first correction is basic but important: **Officer William Osteen did not initiate the traffic stop. Officer Larry Murph did.** The Galveston records place the stop at approximately 1:52 a.m. Osteen arrived afterward to assist.

That matters because Osteen later wrote the affidavit used to obtain the warrant for my blood even though Murph was the officer who had observed the driving that preceded the stop.

The second correction is about the interstate calls.

At approximately **2:41 a.m.**, a caller identified himself to Galveston as Hoby James of the Lafayette County Sheriff's Office in Mississippi. He said he had watched my arrest unfold on a livestream. A few minutes later he called again and identified himself as Sergeant James.

At approximately **3:44 a.m.**, Galveston personnel were recorded discussing the prior convictions that would determine whether the new DWI allegation could be charged as a felony. One officer said that if there was a qualifying prior conviction and Lafayette County could provide the conviction date, cause number, and court information, *“this will be a felony.”* The same recording reflects difficulty locating the Mississippi conviction in the information they were reviewing.

At approximately **3:46 a.m.**, Galveston called Lafayette County seeking that information. James said he did not have access to it on his shift and could leave a note for someone to respond later that morning. The Galveston dispatcher stated that the information was being sought so they could *“call the DA.”*

At approximately **4:04 a.m.**, another caller identified herself as Deputy Beavers of the Lafayette County Sheriff’s Department and asked to be connected with the Galveston officer who had been dealing with me. The dispatcher asked whether she meant Officer Osteen. Beavers said yes. When the dispatcher reached Osteen and asked whether he had just been speaking with a woman from Mississippi, Osteen answered, *“Yes, I was.”*

Those recordings establish communication. They do not establish what Beavers said to Osteen during the conversation that followed, and I do not know what she told him. I am not going to write content into a call I do not possess.

What the recordings do establish is narrower and still important: within hours of my arrival in Galveston, Lafayette County personnel were communicating with Galveston Police while Galveston personnel were working to identify the prior convictions necessary to determine the level of the DWI charge.

The traffic-stop and warrant records then create a separate evidentiary problem.

Osteen’s search-warrant affidavit described signs he associated with intoxication. Among them, he marked a **moderate odor of an alcoholic beverage on my breath**, described my speech as **slurred and thick-**

tongued, and described my eyes as **watery and dilated**. He also treated my refusal of the requested blood specimen as evidence supporting the warrant.

I had repeatedly asked for a breath test. The recordings and later defense filings became important precisely because my willingness to take a breath test does not fit neatly with an affidavit framed around refusal evidence.

A magistrate signed the blood warrant at approximately **2:49 a.m.** I was then taken to UTMB, where officers restrained me while medical personnel drew my blood. I have consistently described the blood draw as forced. The records identify UTMB personnel involved in the procedure, and later litigation named a medical technician identified as McDougle.

The toxicology results require precision because earlier drafts of this book overstated what they proved.

The Texas laboratory report states **“No alcohol detected.”** That is directly relevant to Osteen’s sworn assertion that he detected a moderate odor of an alcoholic beverage on my breath. It does not, however, end the entire toxicology inquiry.

A separate confirmation analysis reported **methamphetamine at 0.13 milligrams per liter**. The report did not separately state an amphetamine concentration. The broader amphetamines screen had been referred for further analysis, and the confirmation result identified methamphetamine at 0.13 mg/L.

Campagna and I disputed that isolated result. From the beginning, our position was that the trace result was consistent with a false positive rather than proof that I was impaired. I continue to maintain that position. But I am labeling it correctly here: it is our asserted interpretation of the laboratory evidence, not a scientific finding made by the laboratory or a court.

There is a second, independently documented limitation that does not depend on accepting my interpretation. When Mississippi later used the 0.13 mg/L result at my July 2024 revocation hearing, the State presented **no expert testimony or other evidence establishing that 0.13 mg/L**

would impair my ability to operate a motor vehicle. That point appears expressly in the later post-conviction filing prepared by the MacArthur Justice Center.

So the toxicology record says three things that must be kept separate.

First, **no alcohol was detected.**

Second, **0.13 mg/L of methamphetamine was reported** in the confirmation analysis.

Third, **the revocation record contained no evidence establishing that this concentration caused impairment.**

The manuscript previously collapsed those three propositions into a much simpler claim: that the laboratory proved I was completely sober. The record does not support that wording. The laboratory conclusively undercuts an alcohol-based theory, but the methamphetamine result existed and must be confronted rather than omitted.

The contradictions in Osteen's descriptions became more pronounced later. In the warrant affidavit he described my pupils as dilated and my speech as slurred and thick-tongued. At the July 2024 Mississippi revocation hearing he described my pupils as very small or pinpoint and described me as talking extremely fast. He also testified that once I was outside the vehicle he could not detect an alcoholic odor coming from me.

Those are not my paraphrases of what I think he meant. They are materially different descriptions in records created at different points in the case.

The criminal case did not end when the laboratory report returned. The felony DWI prosecution remained pending until **May 24, 2024**, when the felony charge was dismissed. The later Mississippi record reflects that Osteen understood a misdemeanor matter to remain pending, but the precise Texas procedural path after the felony dismissal belongs in the next chapter and must be described from the actual Texas docket rather than inferred from shorthand testimony.

The bond history also requires care. Osteen's report reflects a recommended bond of **\$10,000** on the August 11 arrest. I bonded out several days later. I was then rearrested on August 17 after Lafayette County moved on the probation-revocation matter. The Texas bond was later set at **\$100,000**, while the Mississippi hold operated independently and prevented release regardless of the Texas amount.

That means the approximately eleven months I ultimately spent confined after the Galveston arrest cannot truthfully be attributed to one affidavit, one bond, or one jurisdiction. The Texas prosecution, the Mississippi revocation warrant, interstate rendition, and the later Mississippi proceedings overlapped. The chronology is damaging enough without pretending all of that custody had a single legal cause.

What I can say about August 11 without qualification is this: I arrived in Galveston in the early morning; Murph stopped me; Osteen took over the DWI investigation; Lafayette County officers communicated with Galveston during the same early-morning window; Osteen obtained a blood warrant containing specific sworn observations; the laboratory later reported no alcohol and 0.13 mg/L methamphetamine; and those records would eventually be placed beside Osteen's later sworn testimony.

That comparison is the subject of the next chapter.

CHAPTER 24 — OSTEEN LIED UNDER OATH

The title of this chapter rests on a later federal judicial statement, not on my characterization of Officer William Osteen.

On July 14, 2026, United States Magistrate Judge Andrew M. Edison wrote in *Reardon v. Osteen*: “*I take no pleasure in this result. The record shows that Osteen lied to Judge Tollison. That is disturbing.*” The district court later adopted Edison’s Report and Recommendation and entered judgment against me on August 10, 2026.

Those two facts belong together. The federal court did not enter judgment for me. It did not convict Osteen of perjury. It did not hold a criminal trial about his testimony. It nevertheless left in the federal record an express judicial statement that Osteen lied to Judge Tollison.

That is the line I am going to hold throughout this chapter. Where Benjamin Campagna’s motion accused Osteen of perjury, I will identify it as Campagna’s allegation. Where a federal judge later used the word *lied*, I will identify that as the judge’s finding. I will not turn either into a criminal adjudication that never occurred.

The comparison begins with the blood-warrant affidavit Osteen signed on August 11, 2023.

The affidavit stated that Officer Larry Murph had observed my vehicle fail to maintain a single marked lane and fail to signal a lane change. Osteen then supplied his own observations. The affidavit said he smelled an alcoholic beverage coming from the vehicle, described my eyes as watery and glossy, marked my walking as **heavy footed**, marked my speech as **slurred and thick-tongued**, marked my eyes as **watery and dilated**, and marked the odor of an alcoholic beverage on my breath as **moderate**. The affidavit also included refusal language stating that after arrest I had refused to provide a requested breath or blood sample.

That document produced the warrant signed at approximately 2:49 a.m.

The later evidence did not line up cleanly with it.

The Texas toxicology report stated **“No alcohol detected.”** A separate confirmation analysis reported **0.13 milligrams per liter of methamphetamine**. As Chapter 23 explains, I have disputed that isolated trace result and maintained that it indicated a false positive. Campagna and I have asserted that position from the beginning. But the laboratory did not itself call the result false, and I will not make it say that.

The stronger contradiction does not depend on the methamphetamine dispute at all.

On February 25, 2025, attorney Benjamin S. Campagna filed a motion for a *Franks* hearing in Galveston County Court No. 3. The motion placed Osteen’s affidavit beside the DWI case report, the toxicology report, body-camera footage, and Osteen’s later sworn testimony from the Mississippi revocation proceeding.

Campagna’s filing identified the discrepancies one by one.

The affidavit marked a **moderate odor of alcohol on my breath**. Campagna cited Osteen’s body camera for the proposition that Osteen repeatedly said he did not smell alcohol on my breath, only from the vehicle. Campagna also cited Osteen’s later sworn testimony that once I stepped out of the vehicle he could not detect an odor of alcohol coming from me.

The affidavit described my eyes as **dilated**. At the July 2024 revocation hearing, Osteen testified that my pupils were **very small** and **pinpoint**.

The affidavit described my speech as **slurred and thick-tongued**. At the revocation hearing, Osteen described me as **talking extremely fast**.

The affidavit described me as **heavy footed**. Campagna argued from the body-camera footage that Osteen had little opportunity to observe my walking before the arrest and later testified that I was **extremely jittery**.

The affidavit used **refusal evidence**. Campagna cited the body-camera footage showing me offering to take a breath test and consenting to being taken into custody for that purpose. The motion alleged that Osteen omitted my willingness to take a breathalyzer so that refusal could be used to support the warrant.

Those are Campagna's arguments, contained in a filed defense motion. They are not findings by the Texas criminal court because the requested *Franks* hearing was never held.

Campagna went further. His motion expressly accused Osteen of perjury at the Mississippi revocation hearing because Osteen testified that the toxicology had detected alcohol even though the laboratory report said no alcohol was detected. That accusation was made by my attorney in an adversarial filing. It was not a criminal conviction or a separate judicial finding of perjury.

The filed motion also documented the body-camera exchange that had mattered to me from the beginning. One of Osteen's first questions was, "*You an auditor man?*" Shortly afterward he told another officer, "*Hey, I'm doing this one, this is an auditor.*" Campagna alleged on information and belief that Galveston had a contentious relationship with auditors and argued that Osteen had decided to arrest me before making the observations later used to justify the warrant.

Again, that is the defense theory as pleaded. The recordings establish the words. Motive remains an inference unless a record supplies more.

The DWI case report created another set of internal comparisons.

According to Campagna’s motion, the narrative report described a **strong** odor of an alcoholic beverage coming **from the vehicle**. The warrant affidavit, by contrast, marked a **moderate** odor on **my breath**.

The report described my speech as slightly slurred; the affidavit added thick-tongued. The report described my eyes as watery and glossy; the affidavit added dilated. Later, under oath in Mississippi, Osteen described my pupils as pinpoint.

The most damaging feature of those discrepancies is not that I can prove what was in Osteen’s mind when he wrote them. I cannot. It is that the documents and testimony can be placed side by side without relying on my memory at all.

That distinction became critical in federal court.

In the 2026 civil litigation, the Galveston defendants’ reply acknowledged that Osteen “**stated on camera he could not smell alcohol.**” My objections to Magistrate Judge Edison’s R&R cited that concession alongside the blood-warrant affidavit’s moderate-odor statement.

Edison then addressed the contradictions himself. His ultimate recommendation still went against me. He concluded that even if disputed portions of the affidavit were disregarded, other facts supplied independent probable cause for the blood warrant and the DWI-related seizure. But while reaching that result, Edison wrote the sentence that now titles this chapter: “*The record shows that Osteen lied to Judge Tollison. That is disturbing.*”

That is a narrower proposition than the chapter once claimed, and it is more defensible because it is exactly what the federal record says.

There is another piece of the Galveston chronology that needs correction.

I have said at different times that I spent nearly eleven months in the Galveston County Jail because of Osteen’s affidavit. That formulation is too broad. The original DWI bond reflected in Osteen’s report was **\$10,000**. I bonded out several days after the August 11 arrest. I was rearrested on August 17, the same date Mississippi filed its second petition to revoke my suspended sentence. The Texas bond was later raised to **\$100,000**, but the Mississippi hold independently prevented my release.

The months that followed therefore resulted from overlapping Texas and Mississippi proceedings, not one document acting alone.

I also need to separate two Texas cases that earlier drafts blurred together.

The felony DWI prosecution was dismissed on **May 24, 2024**. By the time Campagna filed the *Franks* motion in February 2025, the motion itself states that I was charged with **misdemeanor Driving While Intoxicated**, Cause No. MD-0417962, in Galveston County Court No. 3. The *Franks* motion challenged the same August 11 blood-warrant affidavit in that misdemeanor case.

That procedural sequence matters. The felony dismissal did not erase the blood evidence or the warrant dispute. The fight continued in the misdemeanor prosecution, which is why Campagna was still litigating the affidavit in 2025.

I will not claim here that prosecutors reduced the case *in order to avoid a Franks* hearing unless a filing or judicial opinion says exactly that. The chronology by itself does not establish motive. What the record establishes is that the felony was dismissed, a misdemeanor prosecution remained, Campagna filed a detailed *Franks* motion, and no *Franks* hearing occurred before the Texas criminal matter ultimately ended.

Campagna's filing remains important because it did what a factual record should do: it put each sworn statement beside the evidence that contradicted it and asked a court to test the discrepancy in an evidentiary hearing.

The Texas court never gave us that hearing.

Mississippi, however, did something else with the same laboratory report. In July 2024, while the Texas felony charge had already been dismissed, Lafayette County put Osteen on a screen before Judge Tollison, admitted the toxicology paperwork, and used the 0.13 mg/L methamphetamine result as part of a second effort to revoke my probation.

That proceeding is where the next chapter goes.

CHAPTER 25 — THE SECOND REVOCATION

By the summer of 2024, the Galveston case and the Mississippi probation case had become one procedural chain.

The Texas felony DWI charge arising from August 11, 2023 had been dismissed on **May 24, 2024**. Mississippi nevertheless still had an August 17, 2023 Petition to Revoke Suspended Sentence pending against me in Cause No. LK22-358. That petition alleged that I had violated the good-behavior condition of my probation by being charged in Galveston with felony DWI.

The Mississippi warrant was not executed until **June 25, 2024**, roughly ten months after it issued.

The document itself contained an error that would later be acknowledged in open court. It described the original Mississippi charge as **possession of a controlled substance**. That was not my underlying conviction. My probation arose from the September 30, 2022 aggravated-stalking plea.

The warrant also used **2023-005559** as the identifier for the Texas matter. I initially attacked that number as fictitious. It was not. It was the Galveston Police Department offense-report number, not the Texas court cause number. That is an important correction: the predicate-charge description was wrong; the number itself came from an actual police file.

On **July 11, 2024**, Judge Gray Tollison convened the first revocation hearing. District Attorney Benjamin Creekmore told the court that Officer William Osteen could not appear by Zoom because Hurricane Beryl had disrupted power and communications in the Galveston area.

Before the matter was continued, I raised the lack of a preliminary revocation hearing and cited Mississippi law and federal due-process cases. I also challenged the warrant's false reference to possession of a controlled substance and asked Tollison to consider recusal because he had presided over the November 2022 revocation.

The record cuts both ways on counsel, and it needs to stay that way.

Tollison asked whether I wanted counsel. I said that if the case was going forward as a formal revocation hearing, I wanted assistance of counsel. The judge responded that I should be given that opportunity and continued the matter for a week. I objected to the delay because I believed Mississippi's revocation statute required a hearing within twenty-one days. But the delay I was objecting to was ordered for the purpose of obtaining counsel after I had just asked for it.

On **July 18**, attorney Mark McClinton appeared as a procedural advisor rather than as counsel conducting the hearing. I therefore questioned witnesses myself.

The State called Katreena Thompson, an investigator for the district attorney's office, and introduced records concerning prior DUI convictions and the Galveston matter. The May 24 Texas order dismissing the felony DWI was admitted without objection.

I renewed my attack on the Mississippi warrant. This time Tollison addressed the false predicate directly. His response, as reflected in the transcript, was that it **"should have been aggravated stalking"** and that, to his knowledge, I did not have a possession-of-a-controlled-substance

conviction. He treated the defect as moot because the petition to revoke — rather than the warrant — was the operative charging document before him.

Osteen then testified by Zoom.

His testimony supplied several of the contradictions later collected in Benjamin Campagna's *Franks* motion and eventually discussed by Magistrate Judge Andrew Edison.

Osteen testified that after I stepped out of the vehicle he could not detect an alcoholic odor coming from me. He described my pupils as very small or pinpoint and described me as talking extremely fast. Those descriptions did not match the August 2023 blood-warrant affidavit, which had described a moderate odor of alcohol on my breath, dilated pupils, and slurred and thick-tongued speech.

The cross-examination also clarified the breath-test issue.

Osteen acknowledged that **I was the one demanding to take a breathalyzer**. When I asked why officers in the traffic-safety unit did not simply use portable breath testing, he said portable breath-test results were not needed because they were not admissible in court. When I asked why he did not take me to the police department for a breath test, he answered that after further investigation he believed I was impaired by more than alcohol.

I then pressed him on drug-recognition qualifications. Osteen acknowledged that he was **not a drug-recognition expert** and had not completed that course. He took the position that an officer did not have to hold DRE certification to recognize impairment by something other than alcohol.

The point is not that a lack of DRE certification automatically invalidates a DWI investigation. It does not. The significance is evidentiary: Mississippi was relying on Osteen's lay and law-enforcement observations to connect the laboratory result to impaired driving, and the State did not present a toxicologist or other expert to explain what **0.13 mg/L** meant in terms of impairment.

There was an additional contradiction in Osteen's toxicology testimony.

The State asked whether there had been a positive or negative result for alcohol. Osteen answered: **“There was alcohol detected.”** He then identified methamphetamine and the quantity as 0.13 milligrams per liter.

But the alcohol toxicology report admitted as part of the same evidentiary package stated: **“No alcohol detected.”**

That contradiction did not require interpretation. The testimony and the laboratory document said opposite things about alcohol.

The drug report requires more care.

The Texas DPS laboratory first screened the blood across several drug categories. The amphetamines category was marked for further analysis while barbiturates, benzodiazepines, cannabinoids, carisoprodol, cocaine metabolite, opiates, oxycodone, phencyclidine, and zolpidem were reported as none detected. The confirmation analysis then identified **methamphetamine at 0.13 milligrams per liter by LC-MS**. No separate amphetamine concentration was reported.

Campagna and I have disputed that isolated result and maintained that it indicated a false positive rather than actual impairment. That remains our asserted position, not the laboratory’s conclusion.

The later MacArthur petition made a point that does not depend on proving a false positive: **the State presented no evidence at the revocation hearing that 0.13 mg/L of methamphetamine would impair a person’s ability to operate a motor vehicle.**

No toxicologist testified.

No pharmacologist testified.

Osteen was not a DRE.

And no evidence in the revocation record supplied an impairment threshold for the number the State put before the court.

At the July 18 hearing, the State nevertheless argued that the blood result independently established a probation violation even though the Texas felony charge had already been dismissed. In closing, the prosecutor argued that I had violated the terms imposed by the court by breaking the

law, pointing to a toxicology result showing methamphetamine in my system while I was driving in Texas. The State also continued to argue that the proof established felony DWI.

I argued that the felony dismissal mattered and that an arrest, accusation, or unexplained laboratory number did not itself prove the felony conduct alleged in the petition.

Tollison ruled for the State under the revocation proceeding's **preponderance-of-the-evidence** standard. The later PCR described his finding as one that it was more probable than not that I had violated probation through the Texas driving conduct. The court revoked the remaining suspended sentence and imposed **four years in MDOC custody with two years suspended**, leaving **two years to serve**, followed by two years of post-release supervision.

That sentence sent me back into Mississippi custody.

I believed the hearing contained multiple constitutional and factual defects. The legal argument that ultimately produced my release was much narrower.

On **November 26, 2024**, attorney Jacob Howard of the MacArthur Justice Center filed a Motion for Post-Conviction Relief in Lafayette County Circuit Court, civil Cause No. **36CI1:24-cv-00388-JKL**.

The filing was verified by me under oath. My verification was signed and notarized on November 6 while I was still incarcerated. I acknowledged the November 24, 2021 Lafayette County misdemeanor DUI conviction and the August 11, 2023 Galveston DWI arrest but expressly did not concede that I committed either alleged offense.

Earlier drafts of this book described Howard's petition incorrectly. They said MacArthur used that filing to attack my September 2022 guilty plea, Deputy Beavers's 2022 testimony, ineffective assistance of counsel, and the banishment provision.

That is not what the petition did.

It says on its first page that it sought post-conviction relief from the **July 18, 2024 order revoking probation and imposing two years of the suspended sentence**. Howard did not ask the court to erase the underlying 2022 aggravated-stalking conviction.

The petition first established why post-conviction relief, rather than an ordinary direct appeal from the revocation order, was the procedural vehicle. It invoked Mississippi Code § 99-39-7 and Mississippi authority treating post-conviction relief as the method for challenging an allegedly unlawful probation-revocation sentence.

Then Howard narrowed the merits to a statutory question.

The State had petitioned on the theory that I committed a **felony DUI** in Texas. But the felony prosecution had been dismissed. Osteen confirmed at the Mississippi hearing that the Texas matter was then proceeding, if at all, as a **misdemeanor**.

Howard argued that even if every factual inference were drawn in the State's favor and Mississippi had proven by a preponderance that I committed DWI, the offense actually established would be a **misdemeanor**, not a felony.

That classification controlled the punishment question.

Mississippi defines a technical violation broadly as an act or omission violating a condition of probation, while the statutory scheme separately removes certain felony findings and absconding from the graduated technical-violation limits. Howard argued that a misdemeanor violation therefore remained within the technical-violation framework.

He then applied the graduated caps in Mississippi Code § 47-7-37(5)(a): up to **ninety days for a first technical revocation** and up to **120 days for a second**. The statute permits far greater use of the suspended sentence only at later stages or under statutory exceptions.

The July 2024 proceeding was the second revocation of my probation.

So Howard's arithmetic was direct: the most the court could impose for the second technical revocation was **120 days**.

Judge Tollison had imposed two years to serve.

Howard calculated that sentence as exceeding the statutory maximum by **one year and 245 days**.

That number changed the case because it did not require the PCR court to decide whether Osteen intentionally lied in the blood-warrant affidavit, whether the 0.13 result was a false positive, whether Texas should have arrested me, whether Lafayette County retaliated against me, or whether the 2022 conviction itself was valid.

The court could assume, for purposes of the sentencing question, that Mississippi proved a misdemeanor probation violation and still conclude that two years was too much.

Howard supported the argument with Mississippi cases and with orders from other revocation proceedings applying the same graduated-penalty structure. The exhibits included an order in *Henderson v. State* granting relief where a second technical revocation had resulted in a sentence beyond 120 days, along with other authorities illustrating that a misdemeanor violation remains technical unless it falls within a statutory exception.

The filing also contained a footnote that mattered enormously to my history.

Howard wrote that the **November 3, 2022 first revocation** appeared to have imposed an illegal sentence too. He treated the banishment violation as a technical violation and stated that the maximum incarceration authorized for the first technical revocation was **ninety days**.

Judge Tollison had imposed one year.

But Howard did not ask the court to undo that first revocation because I had already served it. The petition expressly limited its requested relief to the July 18, 2024 order.

That is the actual scope of the MacArthur filing.

It was not the sweeping attack on the 2022 conviction that an earlier manuscript claimed. It was a focused argument that Mississippi had imprisoned me substantially longer than its own technical-violation statute permitted.

And it worked.

The January 2025 order is covered in the next chapter, but the relief can be described here at its proper scale. The Circuit Court vacated the **July 18, 2024 revocation sentence**, resentenced the violation to 120 days with credit for time served, directed my release, and returned me to the underlying probation.

It did **not** erase the September 30, 2022 aggravated-stalking conviction.

It did **not** vacate the November 2022 first revocation.

It did **not** eliminate the probation term or banishment conditions.

That narrower outcome is still consequential.

By the time Howard filed the petition, I had already served more than 120 days on the second revocation. The filing did not need to prove every allegation I had spent years making. It needed to show that the punishment the court imposed exceeded what the statute authorized for the violation the record could support.

That was enough.

The lesson was uncomfortable because it cut against my own litigation instincts. I had spent years trying to make courts see the entire structure at once—2017, Crowder, commitments, Beavers, Galveston, Osteen, retaliation, missing evidence, and banishment.

Howard isolated one legal defect, supported it with the exact record and controlling sentencing structure, and asked for one remedy the court could grant.

The difference between those approaches was about to open the prison door.

It was not about to erase the conviction that had put the probation in place.

CHAPTER 26 — RELEASED, BUT NOT VACATED

On **January 21, 2025**, the Lafayette County Circuit Court granted the post-conviction relief requested by Jacob Howard and the MacArthur Justice Center from the **July 18, 2024 second-revocation sentence**.

The order was important. It was also narrower than I originally understood it to be.

The court did not vacate my September 30, 2022 aggravated-stalking conviction. It did not erase the first November 2022 revocation. It did not terminate the five-year term of unsupervised probation or the banishment condition.

What it corrected was the sentence imposed at the second revocation.

Howard's petition had argued that even if the State proved I committed a DUI offense in Texas, the conduct established in the revocation record amounted at most to a misdemeanor and therefore a **technical violation** under Mississippi's probation statutes. Because this was the second revocation for technical violations, the maximum authorized period of imprisonment was **120 days**.

Judge Tollison had sentenced me to four years in MDOC custody with two years suspended — two years to serve.

The January order replaced that with the statutory 120-day sentence, gave me credit for time served, and directed my release.

The written order also reinstated me to the underlying unsupervised probation. Its conditions remained in force, including the Lafayette County banishment.

That language matters because an earlier version of this book said the January ruling had vacated the 2022 conviction, probation, and banishment. That was wrong.

The relief was real: the court recognized that the July 2024 sentence exceeded the statutory ceiling and ended the excess imprisonment. But I did not walk out with the underlying conviction erased.

The order was entered January 21. My release occurred **January 22, 2025**.

That difference of one day is small in ordinary life and important in a chronology built for litigation. I am using the order date for the judicial act and the following day for the actual release from custody.

The first revocation remained untouched as well. Howard's petition had expressly noted that the November 2022 revocation appears to have imposed one year for a first technical violation even though the statutory maximum was ninety days. But because I had already served that sentence, the PCR did not ask the court to reopen it.

So by the time I left prison in January 2025, the record looked like this:

The July 2024 two-year-to-serve revocation sentence had been corrected to 120 days and was over.

The September 2022 conviction remained.

The probation remained.

The banishment remained.

And the first revocation remained part of the record despite Howard's statement that its one-year sentence also exceeded the technical-violation limit.

That was the legal posture in which I left Mississippi.

On **February 1, 2025**, I moved to Layton, Utah.

I did not understand that move, at the time, with the precision the January order now forces on the manuscript. I had been released from an unlawfully long sentence and was leaving Mississippi, but I was not moving as a man whose conviction and probation had been judicially erased. The order itself says otherwise.

That correction changes the opening premise of the next chapter. Layton was still an attempt to start over, but it was not a post-vacatur clean slate. It was the next place I went while the Mississippi conviction and probation remained on the books.

What happened after I arrived there is documented in a different set of records: the Zions Bank encounter, emails from Oxford Police Captain Hildon Sessums, the Layton Police distribution that followed, the public-records dispute, and eventually a federal lawsuit in Utah.

Those events begin four days after I moved into Layton.

CHAPTER 27 — LAYTON, UTAH

I moved to Layton, Utah on **February 1, 2025**, ten days after the Mississippi court entered the order correcting my second-revocation sentence and nine days after my actual release from custody.

An earlier version of this chapter opened by saying that I arrived in Utah after Mississippi had vacated my 2022 conviction, probation, and five-year banishment. The January 21 order does not say that. As Chapter 26 now explains, the court corrected the July 2024 revocation sentence to the statutory 120-day maximum and ordered my release, but it reinstated the underlying probation and its conditions, including banishment from Lafayette County.

I therefore arrived in Layton with the Mississippi conviction still on the books.

That legal posture matters because four days after I moved into my Layton address, an Oxford, Mississippi police captain was already writing to officials in my new city about me.

I had continued using **Don Matthews** publicly as a journalist and in records work. In the federal complaint I later filed, I swore that when I moved into the Layton residence late on February 1, I had not disclosed the

address publicly and had not yet memorized it myself. That is my sworn account. The records establish what happened next; they do not establish by themselves how Oxford police obtained the address.

On **February 3**, I recorded at a Zions Bank branch in Layton. Police were called. The responding Layton patrol officers were professional, and I said so on camera. I had no complaint about their conduct.

Two days later, on **February 5 at 8:09 a.m.**, Oxford Police Captain **Hildon Sessums** sent an email to Layton officials concerning me. In it he identified himself as an Oxford Police captain and FBI National Academy graduate, described me as a former Oxford resident, a convicted felon, and a persistent issue for his department, and said Oxford had discovered a YouTube video of the Layton bank encounter.

The email included my Layton street address. Sessums described the source as **“from our research.”**

That phrase became central to my later lawsuit because I had lived at the address for only four days. In my sworn declaration, I asserted that the address was not then available through a legal, official, or publicly accessible source and that I had not supplied it to Layton City. From those facts I alleged that Sessums must have obtained it through surveillance, confidential records, another agency, or misuse of government resources.

That was an allegation. The email proves that Sessums possessed and transmitted the address. My declaration establishes what I swore about its availability. Neither document proves the mechanism by which he obtained it.

At **9:46 a.m.**, roughly ninety-seven minutes after Sessums’s email, Layton Police Lieutenant **Riley Richins** forwarded the information through internal city and police distribution channels. My federal complaint identified the recipients as John Does 1 through 139.

Richins’s message included a statement that in 2017 I had been arrested for stalking the mayor in Lafayette County. That statement was false. The 2017 aggravated-stalking charge concerned Todd and Ashley Lynch, not the mayor of Oxford.

Richins also summarized the 2022 aggravated-stalking matter as arising after I entered Oxford City Hall with a camera in connection with the Tannehill restraining order. That compressed description was closer to the documented sequence, although Chapter 19 supplies the necessary chronology: the June 20 City Hall visit, June 23 referral to MBI, June 27 warrant, and June 28 arrest.

There is another part of Richins's email that belongs in the record. He told his colleagues that the Layton officers who handled the Zions Bank encounter had acted professionally and that I had expressed appreciation for their professionalism and given them a "pass." The same email therefore transmitted a false statement about my 2017 case while also reporting something favorable about my interaction with Layton officers. Both facts matter.

The address remained the question I could not answer.

I suspected federal involvement because Sessums referenced his FBI National Academy credential. I said so publicly and later in complaints. But the credential itself does not prove that anyone at the FBI supplied the address, and I have not located a record establishing that the FBI was its source. The manuscript will not turn that suspicion into a fact.

My next dispute with Layton involved Utah's public-records process, GRAMA.

The chronology in my own federal complaint is wrong on one date. The complaint says I went to Layton City Hall on **February 20** to follow up on the records from the bank incident. A preserved transcript of the actual interaction identifies it as **Thursday, February 13, 2025**. The transcript itself contains a useful internal check: a city employee says, "Happy Valentine's Day tomorrow." February 13 is therefore the date I am using here.

I first went to City Hall, then across to the police department, then back to City Hall. I was trying to obtain the police report, 911 audio, and body-camera recordings from the Zions Bank encounter. City staff told me the recordings were ready but that I would need to show identification to receive them.

I objected. I was using the name Don Matthews and took the position that a member of the public should not have to produce government identification simply to receive a public record. The recording captures me repeatedly grounding that refusal in my view of the Fourth Amendment.

The recording also shows that the city employees did not simply refuse to engage with me. They explained the fee schedule, directed me between departments, and ultimately referred the identification dispute to City Prosecutor **Mark Arrington**.

That distinction matters because the complaint I later drafted described Arrington in substantially more hostile terms than the recordings support.

On **February 21**, Arrington and I spoke by telephone. I pressed him on how he had connected Don Matthews to Matthew Reardon.

His explanation on the recording was straightforward. He said he watched the video I had published, saw material connecting me to Oxford, Mississippi, and searched for Matthew Reardon. His account did not require access to a secret law-enforcement database. It relied on material I had put online myself.

I had accused him of conducting an illegal search. On the recording, I do not have evidence for that accusation.

I was also the hostile party in part of that exchange. I left a voicemail accusing the city of wasting resources on illegal searches and used profanity while doing it. That recording is part of the record too. I am not removing my own conduct simply because it makes the dispute less one-sided.

On **March 5**, Layton Mayor **Joy Petro** called me in response to concerns I had raised. Her recording likewise does not fit a narrative in which every government official I encountered was acting against me.

Petro treated the inconsistent identification requirement as a legitimate concern and told me she had raised it within the city. She also explained limits on her authority over city personnel. When she relayed what she understood Arrington had told her about identifying me, she referred to Facebook rather than the YouTube/search explanation Arrington had given me directly.

I noticed the discrepancy. I still do not know whether it reflected a genuine difference in Arrington's accounts or simply Petro paraphrasing a conversation. Her own wording included uncertainty. The recordings support noting the discrepancy; they do not support declaring what caused it.

On **March 13**, I submitted a broader GRAMA request seeking calls, emails, and communications involving my name or pseudonym. My later complaint alleged that on March 25 the city produced only part of what I had requested, including the Sessums and Richins emails, while other material remained disputed or withheld.

Those records were how the February 5 communications became evidence rather than suspicion.

On **March 27**, I called Oxford Police Chief **Jeff McCutchen**. In my federal complaint I alleged that I confronted him about Sessums's acquisition of the Layton address, that he did not offer an explanation for its source, and that he refused my request for an internal investigation.

I have not located the underlying recording in the evidence set I am using for this red-team pass. Until I do, those propositions remain what they are in the present record: allegations I made in a signed federal pleading. The manuscript should not convert my characterization of that call into an independently verified transcript.

On **March 31, 2025**, I filed *Reardon v. City of Layton, Utah, et al.*, No. **1:25-cv-00041**, in the United States District Court for the District of Utah.

The defendants included the City of Layton, Layton Police Department, City of Oxford, Oxford Police Department, Sessums, McCutchen, Richins, Arrington, and John Does 1 through 139. I pleaded federal civil-rights and conspiracy theories along with state-law claims, including defamation and privacy-related claims.

A complaint is an allegation document. None of those counts was ever adjudicated on the merits.

The same day, I went to the FBI's Salt Lake City Field Office with a declaration concerning the Oxford-Layton events. In my later sworn account, I said agents would not accept the declaration or discuss the complaint without first obtaining identification for a background check; that I refused; and that agents then ordered me from the visitor parking area under threat of trespass enforcement while one recorded my license plate.

I have described recording portions of that encounter myself. For this manuscript pass, however, the source presently in hand is my sworn declaration and later OIG complaint; I am not treating unreviewed video as if I had independently verified every detail against it.

The federal civil case entered screening immediately.

Magistrate Judge **Jared C. Bennett** temporarily granted my request to proceed in forma pauperis, ordered screening under 28 U.S.C. § 1915(e) (2), tolled the time for service until further order, and restricted further filing while screening was pending.

I filed a motion to lift the stay on **April 9** and an emergency renewed motion on **April 15**. The case had not moved to service.

On **April 23**, I sought to withdraw consent to magistrate jurisdiction and moved for recusal. The clerk issued a notice of non-consent, and the matter was reassigned to District Judge **David Barlow**.

That reassignment was not a judicial finding that Bennett was biased. It followed the non-consent procedure. Earlier drafts blurred those two things; this one does not.

The next date is now confirmed from the project's evidence ledger: **April 25, 2025**. That is when I filed my Notice of Voluntary Dismissal Without Prejudice. The archive identifies the source document as 2025-04-25 - Notice Of Voluntary Dismissal... (Reardon V Layton).pdf.

My notice relied on Rule 41(a)(1)(A)(i). No defendant had been served or filed an answer. The screening stay had never progressed into an adversarial merits proceeding.

That procedural ending controls how every allegation in this chapter must be described.

The Sessums and Richins emails exist. Their text can be examined. The false statement that my 2017 arrest involved stalking the mayor can be compared with the 2017 charging record. My February interaction with Layton and the Arrington and Petro calls can be compared with preserved transcripts and recordings.

But the central accusations in my complaint — illegal surveillance, conspiracy, retaliatory coordination, unconstitutional acquisition of the Layton address, and municipal liability — were **never tested in discovery and never adjudicated by the Utah federal court**. I dismissed the case before any defendant was required to answer them.

That does not make the underlying emails disappear. It defines what can responsibly be said about them.

Four days after I moved to Utah, an Oxford police captain had my new address and sent it to officials in Layton, saying it came “from our research.” Ninety-seven minutes later, a Layton lieutenant circulated the information internally and included a false statement about the crime for which I had been arrested in 2017. Those are document-based facts.

How Sessums obtained the address remains unresolved on the record presently before me.

That unresolved question followed me out of Utah and into the next phase of the story.

CHAPTER 28 — THE ALERTS: TWO MONTHS BEFORE

On **June 23, 2025**, I entered the John M. Shaw United States Courthouse in Lafayette, Louisiana and recorded in the lobby.

The U.S. Marshals Service later documented the encounter in two different records: a Court Facility Incident Report dated June 24 and a Field Operational Report dated July 16. Those records are more useful than any reconstruction from memory because they include the government’s own account of why I was not arrested and why the building closed.

The June 24 incident report places the encounter at approximately **4:05 p.m.** and identifies the location as the courthouse lobby. It records my position that the lobby was an unrestricted area open to the public during business hours and that I believed no standing order prohibited photography there.

The later Field Operational Report supplies more detail. It says a deputy called a supervisory deputy marshal about an unknown individual recording outside the court-security screening station. I identified myself as “Don,” said I had no official courthouse business, and maintained that I had a First Amendment right to record in the public area.

The report also records the government's adverse account of my conduct. It says I insulted deputies and Lafayette police officers, refused requests to leave, and suggested that the supervisory marshal arrest me.

Then comes the sentence that matters most for understanding the first encounter. According to the U.S. Marshals Service's own report, the supervisory deputy told me I **would not be arrested because I had not done anything that warranted an arrest.**

The report says the deputy nevertheless wanted me to leave because I had no official business. I refused.

After discussing the situation with the criminal chief in the U.S. Attorney's Office and another assistant U.S. attorney, the supervisory marshal decided to close the building because the courts had adjourned for the day. At approximately **4:48 p.m.**, court security officers were instructed to close the building to the public, and I left after being told the courthouse was closing.

Earlier versions of this chapter tried to infer why officials chose closure rather than arrest. The government record already gives a better answer. The marshal wrote that I had done nothing warranting arrest and that he closed the building after the courts had adjourned in order to get me to leave. I do not need to speculate beyond that.

The next day, **June 24 at 4:17 p.m.**, a supervisory deputy U.S. marshal in the Western District of Louisiana circulated an email with the subject **"1st Amendment Auditor Matthew Reardon."** The distribution shown in the FOIA production included federal courthouse personnel and addresses associated with the U.S. Marshals Service, the U.S. Attorney's Office, Constellis, and GSA.

The email said that I had been in the lobby the previous day recording or livestreaming near the security station. It attached a court-security report and a draft report of the incident and asked recipients to remind staff to report **"any suspicious behavior no matter how small"** to USMS personnel, court security, or an outside guard.

That is the first documented internal dissemination in this sequence.

On **June 26**, I returned to the courthouse with another person. The July 16 Field Operational Report added this second encounter to the same narrative.

The government's report says I initially stated that I wanted to file a complaint concerning the supervisory marshal. I was told to contact U.S. Marshals Service headquarters in Washington. The report says I then maintained that I had the right to stand in the public building and record.

The supervisory marshal wrote that he placed a hand on my upper back while directing me toward posted rules. The report quotes my response: **“don't put your hands on me mother fucker, that's assault and I will have to defend myself.”**

The report then characterizes my companion and me as loud and disruptive, says our conduct diverted court-security officers from screening duties, and says two people who entered during the confrontation were later identified as DEA agents there on official business.

The report also says the marshal asked whether I had been drinking because, in his description, I was behaving erratically and was difficult to reason with. It quotes me replying, **“I haven't had a drink in 5 years mother fucker,”** and saying I had been with my companion all day.

I am preserving that exchange as the government's recorded account of what was said. I am not using the alcohol question to manufacture a broader pattern or infer a motive that the document does not establish.

The same report says the marshal asked about me **“stalking a public official in Oxford, MS”** because he hoped I would take note of the legal consequences and leave. Whatever the marshal understood about the Mississippi case, the significant point for this chronology is that a federal officer in Louisiana was already discussing my Mississippi history during the June 26 confrontation.

The two encounters were consolidated in the U.S. Marshals Service Field Operational Report dated **July 16, 2025**. Earlier drafts treated the time between the June incidents and the July report as evidence of deliberate intelligence-file construction. The dates alone do not establish why the report was completed on July 16, so that inference is removed.

What the FOIA production does establish is an information-sharing chain that expanded after the Lafayette encounters.

On **June 27**, federal personnel circulated emails concerning me across Mississippi and Louisiana. One message said: **“Apparently this guy is hitting the Federal Courthouses in Mississippi and Louisiana. We will try and Get a BOLO Packet together but until then use this as a FYI to the Guys.”**

Another forwarding message to Constellis personnel said: **“FYI; be aware. Once I get a BOLO I will send it out.”**

Those words matter because they distinguish what existed at that moment from what was still being prepared. The record shows that officials were discussing a BOLO packet; it should not be rewritten to make every June 27 document itself a BOLO.

What did exist on June 27 was a formal **District Alert Notice** from the U.S. Marshals Service’s Northern District of Mississippi.

The notice was marked **LIMITED OFFICIAL USE / LAW ENFORCEMENT SENSITIVE**. Its stated purpose was to inform Northern District operational employees and court security officers about me. It instructed recipients that if I appeared in person they should **“monitor this subject closely”** and notify the redacted contact identified in the notice.

Its background section said that I had recently been frequenting local, state, and federal courthouses to conduct what I described as First Amendment audits. It also said that I had been **“more cooperative”** in the past than my current videos showed and instructed personnel to follow training and local judiciary rules when handling such encounters.

The notice included identifying information and photographs. The FOIA copy redacts the identity of the official who prepared or distributed it. I am therefore not assigning authorship to a specific marshal without a source that does so.

A June 27 email from a supervisory deputy marshal in Northern Mississippi also transmitted conviction documents and stated that I was on unsupervised release. The writer discussed the Mississippi case and asked

where the DUI arrest mentioned during the Lafayette encounter had occurred. The same writer said he was reviewing local rules in preparation for the possibility that I might appear at Northern District suboffices.

The correspondence continued on **June 30**.

In one message, the Northern District supervisory deputy wrote: **“I put this out Friday to all my CSOs on REARDON. He is banished from Oxford until September 30, 2027, but I expect he will show up in Greenville or Aberdeen sooner than later.”**

That statement is particularly notable in hindsight because I was later arrested at the federal courthouse in Aberdeen in June 2026. The 2025 email proves that a Northern District marshal anticipated the possibility of my appearing there. It does not prove that the later arrest was preplanned a year in advance, and the manuscript will not say that it does.

The June records therefore establish something narrower and stronger than the old chapter’s language about a multi-state surveillance apparatus.

They establish that after the June 23 Lafayette courthouse encounter, a Western District supervisory marshal circulated reports concerning me. Within days, federal personnel in Mississippi and Louisiana were forwarding my information, discussing a BOLO packet, sharing photographs, distributing a formal Northern District Alert Notice, reviewing my Mississippi conviction and release status, and instructing court-security personnel to monitor me closely and report my appearance.

The documents also preserve facts that cut against a one-sided account. The June 23 report says I insulted officers and refused to leave after being asked. The June 26 report describes my conduct as disruptive, records my profanity, and says court-security officers’ attention was diverted from screening other visitors. Those are the government’s allegations about my conduct and belong beside my own position that I was recording in a public courthouse lobby.

What the documents do **not** establish is equally important. They do not establish that every agency receiving an email surveilled me. They do not establish that every later encounter was caused by the alert. They do not

establish an unlawful conspiracy. And they do not, standing alone, resolve the First Amendment or courthouse-policy questions surrounding recording inside a federal building.

They do establish notice and information sharing before **August 25, 2025**.

By the time I returned to the Lafayette courthouse that day, the Western District had documented two prior encounters with me, and the Northern District of Mississippi had circulated a law-enforcement-sensitive alert instructing personnel to monitor me closely if I appeared.

The August 25 arrest therefore did not begin with federal officials encountering an unknown visitor for the first time.

That is the factual point this chapter can prove.

CHAPTER 29 — THE GOVERNOR’S MANSION

On **July 3, 2025**, I stood outside the Mississippi Governor’s Mansion in Jackson with a sign and a livestream running.

The sign said **FUCK THE GOVERNOR**.

I called the stream “**National Fuck the Governor Day**.” There is no reason to clean that up after the fact. The recording exists, and the language is part of what happened.

I was there for more than one reason.

Two days earlier, on July 1, Mississippi’s **Safe Solicitation Act**, House Bill 1197, had taken effect. I described it on the livestream as a law forcing panhandlers to pay twenty-five dollars every day for a permit. The enacted text is more precise than that description.

The statute defined covered “solicitation” as requesting money or something of value while positioned on specified roads, streets, highway medians, traffic islands, or highway intersections. It required a solicitation permit for the covered activity and authorized the relevant government

authority to charge a permit fee **not exceeding \$25**. It also limited permits by location and time and provided that only one permit would issue for an intersection on a given day.

So my livestream description — “\$25 a day to panhandle” — captured what I believed the practical effect of the law to be, but it overstated the text. The law authorized a fee **up to** twenty-five dollars for the regulated roadside solicitation; it did not say every person asking for money anywhere in Mississippi must pay a flat twenty-five dollars every day.

I objected to the law on First Amendment grounds. The constitutional analysis belongs in the Legal Analysis section rather than being announced here as though the U.S. Supreme Court had already struck down this particular Mississippi statute. What matters to this chapter is that the law was one reason I chose to protest at the Governor’s Mansion.

The other reason was personal.

On **November 9, 2023**, Governor Tate Reeves signed a Request for Interstate Rendition addressed to Texas Governor Greg Abbott concerning me. The document is now in the evidence archive.

It says that the annexed papers were **“duly authenticated under Mississippi law”** and that I stood charged in Lafayette County with **violation of the terms of probation in connection with a conviction**, Cause No. **LK22-358**, with a bench warrant issued.

That part needs correcting from what I said on the July 3 livestream.

On camera I called the cause number fictitious and the stated charge fictitious. They were not. LK22-358 was the actual cause number for the 2022 aggravated-stalking case, and violation of probation was the basis of the rendition request.

The supporting bench warrant contained the real defect.

The August 17, 2023 bench warrant in LK22-358 commanded that I be brought before the court to answer for a probation violation **“on the original charge of Possession of a controlled substance.”** That was wrong. My underlying conviction in LK22-358 was aggravated stalking, not possession of a controlled substance.

The discrepancy was later confronted in open court. At the July 18, 2024 revocation hearing, Judge Grady Tollison acknowledged that the warrant should have referred to aggravated stalking and stated, to his knowledge, that I did not have a conviction for possession of a controlled substance.

That is enough. I do not need to call the entire rendition packet forged or fictitious, because the documents do not support that characterization.

The Governor's request contains a second statement that does not fit the documented chronology cleanly. It says it had been represented to Reeves that I was in Mississippi at the time of the alleged offense, **"thereafter fled from Mississippi and has taken refuge"** in Texas, and was then in the Galveston County Jail.

The underlying probation allegation, however, arose from the August 11, 2023 Galveston DWI arrest. I had been released from Mississippi custody on August 1 and was arrested in Texas ten days later. By November 9, when Reeves signed the rendition request, I was already confined in the Galveston County Jail.

I have described that recital as fraudulent. The documentary record establishes the mismatch; it does not establish who supplied the language, whether it was standardized extradition wording, or whether Reeves or Secretary of State Michael Watson knew it was inaccurate. I am therefore describing the discrepancy and stopping there.

The rendition request appointed **Sheriff Joey East and/or his duly authorized agents** to receive me from Texas and convey me to Mississippi. A cover letter from the Governor's Office extradition coordinator likewise directed Texas authorities to notify East when I became available for release.

Earlier versions of this chapter said Reeves and Watson "never read" the papers beneath the seal. I do not know that. Their signatures establish authentication of the request; they do not establish what either man personally reviewed before signing it.

The record is strong enough without inventing their state of mind: a governor's rendition packet certified supporting papers that included a bench warrant falsely identifying the underlying conviction, and the request itself contained a flight-from-Mississippi recital that does not match the chronology reflected in the case records.

That was the personal grievance I carried to the Governor's Mansion on July 3.

The livestream records what happened there.

I was outside the mansion grounds when a Mississippi Highway Patrol trooper told me to move across the street. The exchange escalated quickly.

The transcript captures the trooper telling me: **"Get your stuff and go the fuck across the street. You understand me?"**

I asked whether I was under threat of arrest.

He answered: **"Yeah, you under threat of arrest."**

I asked whether he knew what the First Amendment was.

His response began: **"I don't give a fuck what the first—"** before the exchange moved on.

I demanded his name and badge number. I called him a tyrant. I repeatedly insisted that I was standing on the sidewalk and challenged him to act.

My own language became confrontational too. The recording contains profanity, taunts, and repeated challenges from me. At one point I told the trooper that if he came out and put his hands on me I would defend myself. That is part of the record and belongs here rather than being omitted to make me sound more restrained than I was.

The most important correction in this chapter concerns physical contact.

An earlier draft said the trooper punched me, knocked my camera phone off the gimbal, stepped on it, and later had to be physically restrained by three officers while trying to break loose and attack me again.

The preserved transcript does **not** support that account.

When a supervisor arrived and asked me directly, **“Did he physically touch you?”** I answered: **“No, he didn’t.”** I then explained that my complaint was about what I perceived as a threat of violence and an attempted unlawful detention, not completed physical contact.

That contemporaneous answer controls the manuscript unless another authenticated recording establishes a separate physical-contact event that the current source set does not show.

I therefore cannot accurately describe this incident as the trooper punching me, damaging my phone, or committing a completed battery. Those claims are removed.

What the recording does support is still serious enough to describe without embellishment: while I was protesting with a profane political sign, a state trooper ordered me across the street, expressly placed that command under threat of arrest, responded to my First Amendment question with profanity, declined to give me the identification I was demanding, and approached closely enough that I complained to his supervisor that I believed I was being threatened with physical seizure.

The supervisor’s response is also on the recording.

He asked what happened. I told him the trooper had tried to “aggress” me and had come within about an arm’s length. The supervisor asked the critical factual question — whether the trooper had actually touched me — and I said no.

I continued demanding that the matter be treated as misconduct. My delivery was angry. I complained about what I viewed as a double standard for police officers and insisted that the incident not be swept aside.

That is a much more accurate account than calling it an assault-and-battery event already proven on video.

The livestream also preserves an important correction to my own rhetoric about the rendition packet. During the protest, I told viewers that Reeves had authenticated “fake documents,” that the cause number was bogus, and that the charge was bogus. The source documents now available show that those two specific statements were wrong. I am correcting them here rather than repeating an accusation the records do not sustain.

What remains is narrower:

The cause number was real.

The probation-violation proceeding was real.

The bench warrant's description of my original conviction as possession of a controlled substance was false.

And the interstate rendition request described me as having fled Mississippi and taken refuge in Texas even though the documented sequence is that Mississippi released me on August 1 and Galveston arrested me on August 11.

Those are document-to-document comparisons. They do not depend on accepting my interpretation of anyone's motive.

I later sought accountability for the July 3 confrontation and publicly criticized the response I received from state and federal offices. Those requests and any agency responses need to be tied to the actual correspondence before the final publication master states that a particular office ignored, denied, or failed to investigate them. I am not treating my later commentary as proof of what an agency did internally.

The same rule applies to legal conclusions. I believed the trooper's threat of arrest violated my First Amendment rights and that the confrontation could support civil-rights claims. No court adjudicated those questions. No prosecution arising from the encounter established a crime by the trooper. The current evidentiary record is the recording itself, my contemporaneous complaint, and the surrounding public documents.

That is what this chapter can prove.

By July 2025, I was publicly confronting state officials in Mississippi while federal court-security personnel in Mississippi and Louisiana were already circulating alerts concerning my courthouse activity. Seven weeks later I returned to the federal courthouse in Lafayette.

That encounter would not end with the building closing.

CHAPTER 30 — LAFAYETTE: AUGUST 25

On **August 25, 2025**, I returned to the John M. Shaw United States Courthouse in Lafayette, Louisiana.

It was my **third** documented visit that summer, not my fourth. The first had been June 23. The second was June 26. By the third visit, U.S. Marshals personnel in Louisiana and Mississippi had already circulated the emails and alert material described in Chapter 28.

I went back angry about that record and intending to protest the Marshals Service while continuing to assert what I believed was my right to record in the public portions of the courthouse.

That is not simply my reconstruction. The federal court later found that I returned on August 25 to exercise what I understood to be First Amendment rights and to express my “extreme discontent” with the U.S. Marshals Service after learning through FOIA that federal law-enforcement personnel had been communicating about me.

I brought cameras, a tripod, two smartphones, and handwritten protest signs containing profanity directed at the Marshals Service. My own recordings documented the encounter and were introduced at trial.

The criminal charge that followed has to be stated precisely.

The government charged me by Bill of Information with one count under **41 C.F.R. § 102-74.390(a)-(b)**, the federal regulation governing disturbances on federal property. Subsection (a) concerns loud or unusual noise or nuisance. Subsection (b) concerns conduct that unreasonably obstructs the usual use of entrances, foyers, lobbies, corridors, offices, elevators, stairways, or parking lots.

At trial, however, the government proceeded **only on subsection (b)** — obstruction of entrances. That was the theory on which I was ultimately convicted.

That distinction matters because an earlier draft described the case as though my profanity and confrontation were themselves the charged offense. They were part of the factual context and the court's mens-rea analysis, but the government's trial theory was obstruction.

The physical layout matters too.

The courthouse's exterior entrance consists of several sets of glass double doors. The federal court's January 16, 2026 Reasons for Judgment identifies two center-area doors as emergency exits, EE-1 and EE-2, and another pair as the customary Entrance/Exit Door. The two emergency exits ordinarily remained locked from the outside but could be opened by court-security personnel when necessary.

When I arrived, I initially protested nearer the street and displayed my signs to people passing the courthouse.

At some point I saw a deputy marshal make a gesture from inside. On my livestream I interpreted the gesture as an invitation to enter and told my audience that I had been waved inside.

The later federal judgment is careful about that point. It does **not** find that a marshal actually invited me into the building. It says I observed a gesture that **I interpreted as an invitation**.

I gathered my equipment and moved toward the courthouse.

I first tried two doors that were locked — the emergency exits. I then went through the ordinary Entrance/Exit Door with signs under my arm and a recording device operating.

Deputy U.S. Marshal **Hayden Nugent**, who had been present during the prior courthouse encounters, met me as I approached the interior lobby. According to the court’s findings, Nugent told me I had **not** been invited inside and that I would be arrested if I attempted to film inside the courthouse.

I believed I had been baited. I protested loudly, used profanity, and exited the building.

That was not the arrest.

This is another significant correction from the prior manuscript. I was **not arrested inside the public lobby immediately after entering**. I went back outside to the covered portico and continued the protest.

My own recording captures me saying, “**now they just asked for it,**” and later, “**there’s a big part of me that wants to go back in and take the arrest.**” I also said, “**They want it. They want it.**”

Those statements were later cited by the court in assessing whether my actions were deliberate rather than accidental.

I then began displaying the protest signs directly against or in front of the courthouse doors.

The federal court found that I held a roughly twenty-by-thirty-inch posterboard against or directly in front of the EE-1 emergency exit, the EE-2 emergency exit, and the customary Entrance/Exit Door. At one point I propped a poster on the handles of the ordinary Entrance/Exit Door for approximately twenty seconds, physically preventing that pair of doors from being used while the sign was there.

I also moved my tripod.

The court found that I positioned the tripod and mounted camera **directly in front of the EE-2 emergency-exit door**, with at least one tripod foot touching the door and the camera recording against the glass. I then moved away from the equipment to a statue platform at the far end of the landing and remained away from it for about twenty minutes.

Those facts became the center of the federal case.

After approximately twenty minutes, Nugent and another deputy marshal came outside. Nugent directed me to remove the camera from the emergency-exit door, told me it presented a hazard, and warned that the equipment would be seized if I did not move it.

I refused.

The federal judgment records my response to Nugent as: **“you need to suck my dk!”****

Nugent said he was going to seize the camera and tripod and began walking toward them. I quickly moved toward the equipment, warning him not to touch it.

When we reached the tripod, Nugent directed me to move the camera to the far side of the metal barricades on the sidewalk below. I responded that I was **“fine right here.”**

Nugent told me I would be arrested if I refused. He gave a three-second countdown.

I did not move the equipment as ordered.

He arrested me.

That is the arrest sequence the trial court found after hearing the evidence. It is materially different from the earlier version of this chapter, which placed the arrest inside the lobby and described Nugent simply moving in and handcuffing me after an argument about recording.

The conviction was not based on the proposition that profanity toward a federal officer is itself unlawful. Nor was it based simply on my carrying a camera onto federal property.

The January 2026 judgment found beyond a reasonable doubt that my conduct **unreasonably obstructed the usual use of the courthouse entrance**. The court relied on photographs and videos showing the tripod directly in front of the emergency exit, the signs against multiple doors, and the poster temporarily propped on the ordinary entrance-door handles.

I testified at trial and acknowledged that I had placed my camera/tripod, signs, and at times my body against multiple doors. My legal position was that I was not obstructing a door's "usual use" when the door was locked or when nobody was actually trying to pass through it at that moment.

The court rejected that interpretation.

It held that an entrance system in a federal courthouse serves security, safety, emergency, and access functions beyond the instant physical passage of one visitor. On that reasoning, an emergency door did not have to be actively used at the exact second I placed the tripod against it for the obstruction to fall within subsection (b).

The court also found the conduct intentional. It relied in part on my awareness of the courthouse's posted GSA Conduct Rules from the June visits, my statements about "taking the arrest," my decision to move the tripod from a position away from the doors to a position directly against an emergency exit, and my refusal to move it after Nugent expressly identified it as a hazard and warned me that refusal would lead to arrest.

I disagree with aspects of the court's legal analysis and preserved issues for challenge. But this manuscript cannot describe me as a passive journalist arrested merely for standing in a lobby with a camera. The trial record does not permit that account.

At the same time, the conviction does not erase what Chapter 28 establishes about the period before August 25. Federal personnel had already circulated my name, photograph, prior history, and courthouse activity; a Northern District of Mississippi alert had instructed personnel to monitor me closely; and a supervisory deputy had written that he expected me eventually to appear at the federal courthouses in Greenville or Aberdeen.

Those earlier records are relevant history. They are not a defense that automatically negates what I did on August 25.

The two questions have to remain separate.

One is what federal officers knew and shared about me before the August confrontation.

The other is whether, on August 25 itself, I knowingly obstructed a courthouse entrance within the meaning of 41 C.F.R. § 102-74.390(b).

After a bench trial on **December 15 and 16, 2025**, the federal court answered the second question against me. On **January 16, 2026**, Magistrate Judge **Patrick J. LeBlanc** issued written Reasons for Judgment denying my renewed Rule 29 motion and adjudging me guilty.

The next chapter is about that trial and what the court actually decided — including the evidence-preservation dispute that I believe remains one of the most important issues in the case.

CHAPTER 31 — TRIAL AND VERDICT

My federal bench trial was held on **December 15 and 16, 2025** before U.S. Magistrate Judge **Thomas P. LeBlanc** in the Western District of Louisiana.

The charge arose from August 25, but the trial record did not begin there. The court's later written Reasons for Judgment reconstructed all three of my 2025 visits to the John M. Shaw United States Courthouse because those earlier encounters bore on notice, intent, and what I understood about the federal-property rules by the time I returned in August.

That made the trial record broader than the arrest itself.

On **January 16, 2026**, LeBlanc issued nineteen pages of written Reasons for Judgment. He denied my renewed Rule 29 motion for judgment of acquittal and adjudged me **guilty** of violating **41 C.F.R. § 102-74.390(b)**.

The written ruling is the best source for what the conviction actually rests on because it separates the evidence the court credited from the arguments I made about that evidence.

The government had charged one count under subsections (a) and (b) of the federal disturbance regulation. Subsection (a) addresses loud or unusual noise or a nuisance. Subsection (b) addresses conduct that unreasonably obstructs the usual use of entrances, foyers, lobbies, corridors, offices, elevators, stairways, or parking lots.

By trial, the government proceeded **only under subsection (b)**.

That correction matters. My profanity, signs, criticism of the Marshals Service, and insistence on recording all formed part of the factual context, but the government did not ask LeBlanc to convict me simply because I had been loud, offensive, or hostile toward officers. The surviving charge was obstruction of entrances.

At the close of the government's case, I moved for judgment of acquittal under Federal Rule of Criminal Procedure 29. I argued that the government had not sufficiently proved two things: that the relevant events occurred on federal property and that my conduct constituted obstruction of the **usual use** of an entrance. LeBlanc reserved ruling. I renewed the motion at the close of all evidence.

That procedural choice mattered because when a court reserves a Rule 29 ruling made at the close of the government's case, the sufficiency question is judged on the evidence that existed when the ruling was reserved. My later testimony could provide context in the final judgment, but it could not retroactively cure a failure of proof in the government's case-in-chief for purposes of the reserved motion.

LeBlanc ultimately found the government's proof sufficient.

The court identified three substantive elements: the incident had to occur on federal property; I had to engage in conduct that unreasonably obstructed the usual use of one of the spaces identified in the regulation; and I had to act with the culpable state of mind the court concluded the offense required. A separate notice issue arose because the governing GSA rules must be posted or otherwise brought to a visitor's attention.

The first two courthouse visits became important to that notice question.

The judgment describes my **June 23** visit as an intentional effort to determine whether I would be allowed to perform what I regarded as journalistic activity in the unsecured lobby. The court quoted my own video explaining that I was conducting a “stress test” of a constitutional right and that I traveled to public buildings to document whether officials respected those rights.

The physical layout was part of the proof.

The John M. Shaw Courthouse faces Lafayette Street. Between the street and building are a public sidewalk, bollards, a paved area, barricades near the steps, ramps leading to the entrance, an uncovered landing, and a covered portico. Beyond the exterior glass doors is a foyer. Beyond the foyer is an unsecured lobby containing turnstiles and the court-security screening station. Visitors who proceed farther into the building must pass through screening into the secured atrium.

The exterior entrance itself consists of multiple sets of glass doors. Two center-area sets were identified as emergency exits, EE-1 and EE-2. Another pair functioned as the customary Entrance/Exit Door. The emergency exits ordinarily remained locked from outside but could be opened by courthouse security when necessary.

On June 23, I entered through the ordinary door and walked into the unsecured lobby while recording.

The judgment notes that a freestanding sign in the foyer displayed the **Rules and Regulations Governing Conduct on Federal Property**. I walked past it. When a Court Security Officer told me recording was not permitted, I asked where the federal rules were posted. The officer pointed me to the sign.

I then filmed it repeatedly.

The provision I was focused on was 41 C.F.R. § 102-74.420, which permits photography of building entrances, lobbies, foyers, corridors, or auditoriums for news purposes except where security regulations, rules, directives, or federal court rules or orders apply. I told the people watching my broadcast that the rules were supposed to be posted at federal buildings and compared them to the familiar rules posted in post offices.

That footage later hurt me on the notice question.

What I had viewed on June 23 as evidence supporting my right to record also proved that I knew where the federal conduct rules were posted and understood that they governed the property. LeBlanc concluded that the sign was conspicuous and that I had actual knowledge of its existence and location.

The June 23 interaction lasted a little more than an hour. The record says Court Security Officers, the Marshals Service, and Lafayette police became involved. I continued insisting that the news-photography provision permitted me to film in the unsecured lobby. Supervisory Deputy Marshal John Farrish ultimately had the courthouse closed approximately fifteen minutes early, and I left.

Chapter 28 addresses the Marshals Service's own incident reports and the important statement that I had not done anything warranting arrest that day. The trial judgment uses the same encounter for a different purpose: to establish my familiarity with the posted rules before August 25.

I came back on **June 26** to complain about Farrish and recorded again.

According to the judgment, I told Farrish my complaint was that he did not know the rules governing conduct on federal property. Farrish wanted me to return to the posted sign because he believed we were reading the rules differently. I refused and told him I had already shown him the rules.

There was another detail that changed the way I understood the federal response. On June 23 I had identified myself as **Don Matthews**. On June 26, Farrish addressed me by **Matthew Reardon**.

I interpreted that as evidence that the Marshals Service had researched me between visits.

Later FOIA productions showed that federal personnel did in fact circulate information concerning me after the June encounters, including my identity, photographs, prior history, and descriptions of my courthouse activity. Chapter 28 sets out those documents. But the trial judgment itself used the June 26 encounter primarily to show that the dispute over courthouse rules was already established before I returned in August.

By **August 25**, then, I was not encountering the rules for the first time.

The judgment states that I returned determined to exercise what I understood to be First Amendment rights and to express my “extreme discontent” with the Marshals Service after learning through FOIA that federal law-enforcement officials had been communicating about me.

I had a tripod-mounted camera, two smartphones, and handwritten signs criticizing the Marshals Service in explicit language. I initially protested closer to the street, then moved toward the building after seeing a gesture from inside that I interpreted as an invitation.

The court was careful not to convert my interpretation into a factual finding that anyone actually invited me inside.

I tried two locked doors first—the emergency exits—then entered through the customary Entrance/Exit Door while recording. Deputy Marshal Hayden Nugent met me as I approached the interior lobby and told me I had not been invited and would be arrested if I tried to film inside.

I left the interior.

Again, that point is important: **the arrest did not happen merely because I entered the lobby with a camera.**

I went back outside under the portico and continued the protest.

My own recording captured me saying that they had “asked for it,” that part of me wanted to go back in and “take the arrest,” and that “they want it.” The court later relied on those statements when considering whether what followed was accidental or deliberate.

I began holding signs against or immediately in front of several glass doors. The judgment found that the signs sometimes blocked the view through the glass. At one point I propped a roughly twenty-by-thirty-inch posterboard on the handles where the ordinary entrance double doors met, preventing those doors from being opened while the sign was there.

Then I moved the tripod.

The court found that I repositioned it directly in front of EE-2, with at least one tripod leg touching the door and the camera close against the glass. I then moved away to the area of a statue platform and left the equipment there for roughly twenty minutes.

That became the central physical fact of the conviction.

The Rule 29 argument therefore turned on what the phrase “**usual use of entrances**” meant.

I took a narrow view. If an emergency door was locked from outside and nobody was trying to pass through it at that moment, I argued that placing equipment there did not obstruct its usual use. If nobody was attempting to enter through another door while I displayed a sign in front of it, I likewise argued that there was no actual obstruction.

LeBlanc adopted a broader view.

The judgment reasoned that a federal courthouse entrance is not merely a hole in a wall through which a person happens to pass at one instant. It is an entrance **system** serving access, emergency egress, security observation, safety, and the transition into a courthouse. On that interpretation, a door can be obstructed even if no visitor is physically trying to pass through it at that second.

The court identified three ways it believed my conduct obstructed that system.

First, it found that I physically impeded the doors by placing my body, signs, and camera equipment in front of them, with the tripod left at an emergency exit for a prolonged period.

Second, it found that holding posterboard against the glass interfered with the ability of security personnel inside to use the glass doors as a means of observing the exterior.

Third, it treated the courthouse entrance as a controlled transitional space whose ordinary security and institutional functions could be disrupted even without a literal collision between a person and my equipment.

I disagreed with that third conception in particular. The court nonetheless incorporated it into the meaning of “usual use.”

Mens rea became a separate question.

The regulation does not spell out a culpable mental state in its text. The court looked to other decisions interpreting the same or predecessor federal-property regulations and concluded that the government needed to prove that I knew the facts making my conduct obstructive, not that I knew the citation number of a regulation or agreed with the government's interpretation of it.

The court then assembled circumstantial evidence of my state of mind.

It emphasized that I had studied and filmed the GSA rules during the June visits. It pointed to my acknowledgment at trial that exits and entrances could not lawfully be blocked. It relied on the August statements about wanting to "take the arrest." It noted that I moved the tripod from a position away from the door to a position immediately in front of the emergency exit. And it relied on my later refusal to move the equipment when Nugent identified it as a hazard and warned that arrest would follow.

My own testimony supplied another piece of the court's reasoning. I explained that part of First Amendment auditing, as I practiced it, involved trying to obtain **standing** to challenge conduct I believed unconstitutional and that standing could arise from arrest or threat of arrest. I intended that testimony to explain why I documented government confrontations. The court treated it as additional evidence that I knowingly brought myself into situations where enforcement was foreseeable.

That is another example of why testimony cannot be summarized only by what a defendant intended it to prove.

I did not deny placing my equipment and signs where the videos showed them. I argued the legal significance of those placements. LeBlanc rejected my interpretation and found the elements satisfied beyond a reasonable doubt.

The trial also contained a more technical dispute about whether the government had proved that the exact place where the conduct occurred was federal property.

I raised that issue in my Rule 29 motion. LeBlanc relied on testimony and documentary evidence identifying the courthouse as federal property, together with the posted federal conduct rules themselves. He noted that those rules are required to be posted conspicuously on property owned or occupied by the federal government. He concluded that the first element was established.

The conviction therefore rested on a defined chain of findings, not a generalized conclusion that I was a troublemaker:

The property was federal.

The posted rules supplied notice.

My equipment, signs, and body obstructed the entrance system in the manner the court described.

My conduct was knowing rather than accidental.

And the government had proved subsection (b) beyond a reasonable doubt.

That does not end every constitutional question surrounding the case. It does tell me what an appellate challenge has to confront.

There were also significant pretrial proceedings concerning discovery and courthouse communications.

On **October 15, 2025**, the United States moved for a protective order. Earlier editions of this manuscript mischaracterized that filing as an attempt to prohibit future Marshal–judge communications. It was not.

The government sought restrictions on dissemination of sensitive discovery. In explaining the requested protection, it expressly identified discovery categories that included **communications between the Marshals Service and federal judges at the John Shaw Courthouse** and communications between security officers at other courthouses and the Marshals Service.

The government argued that unrestricted publication could expose courthouse-security information. Its requested order would permit use of the material by the defense team for litigation while limiting broader dissemination.

That filing proves that the identified categories of communications existed in discovery and that the government considered them sensitive. It does not prove those communications were unlawful or that judges and marshals had conspired to prosecute me. Earlier versions made that leap. This one does not.

A separate pretrial event involved Magistrate Judge **Carol B. Whitehurst**, who had previously been assigned to the case.

The public record reflects her November 12, 2025 recusal. The language later quoted at sentencing states that an objective and reasonable observer could believe she was predisposed to find me guilty and emphasizes avoiding the appearance of impropriety.

That was a recusal decision concerning her own continued participation. It was not a finding that the Marshals Service, prosecutors, or another judge had acted improperly.

The evidence-preservation dispute requires even greater restraint.

Part of the trial record concerning courthouse surveillance was sealed. I was present and heard that material, but a court order restricts public discussion of testimony from the sealed proceeding. I am therefore not reproducing the testimony, describing what a sealed witness said, or using my memory of the sealed material to fill in public-record gaps.

What I can say from public material is that I have challenged the failure to preserve potentially relevant courthouse surveillance and have treated preservation as an appellate issue. The Legal Analysis explains the distinction between evidence whose exculpatory value was apparent and evidence that was merely potentially useful. The narrative will go no farther than the public record permits.

A later July 2026 ruling rejected my post-trial First Amendment challenge and treated the relevant courthouse interior as a **nonpublic forum** for the argument before the court. I disagree with that analysis and have preserved constitutional issues for review. But the January 16 judgment did not hold that criticizing federal officials or carrying a camera is itself a crime. It held that my particular conduct at the doors violated the obstruction regulation.

That difference is essential to the story I am now willing to publish.

I can show that the Marshals Service had circulated my information before August 25.

I can show that the June 23 supervisory report said I had done nothing warranting arrest at that first encounter.

I can show that government discovery included Marshal–judge and inter-courthouse-security communications.

I can show that Whitehurst later recused herself to avoid an appearance of partiality.

And I can still disagree with LeBlanc’s construction of “usual use.”

None of those facts permits me to erase what my own video showed on August 25 or what the trial judge found from it.

By January 16, 2026, the federal docket therefore contained a guilty judgment supported by detailed written findings. The case was moving toward post-trial motions, sentencing, and the appeal route that would ultimately begin with review by a district judge under Rule 58(g)(2).

At almost the same time, an unrelated Louisiana matter was moving against me in New Orleans.

Two months before the federal guilty judgment, I had been involved in an altercation outside New Orleans City Hall. That incident produced a warrant, public-records requests, a surveillance-camera dispute, and another arrest while the Lafayette federal case was still unresolved.

The next chapter follows that separate record.

CHAPTER 32 — THE NEW ORLEANS ASSAULT

On **November 12, 2025**, while the federal courthouse case described in the previous chapters was still pending, I went to New Orleans City Hall at **1300 Perdido Street**.

What happened there became another example of why I eventually stopped trusting a single narrative merely because it appeared in an official document. This time, however, the record contains a sworn warrant affidavit, an NOPD incident report, later arrest paperwork, and my own contemporaneous calls and records request. Those documents let me separate what I alleged from what the police actually concluded.

The warrant affidavit places the incident at approximately **9:23 a.m.** NOPD Officer Junious Grady wrote that he and Officer Victor Paz were dispatched to a simple-battery call at City Hall. When they arrived, the affidavit says they observed a man lying face down on the sidewalk and bleeding from the back of his head. Grady later identified that man as me.

The affidavit records that I initially refused to provide Grady with identification.

That is part of the police account and belongs here even though it does not decide what happened moments earlier at the security checkpoint.

My account is that Allied Universal security guard **Jerome Ard** struck me in the back of the head with a metal flashlight during the confrontation at the security area. I have maintained that the blow caused the scalp wound and that my phone and recording equipment were damaged during the encounter. In calls made two days later, I was already telling New Orleans officials that I believed Ard had hit me with the flashlight and that the event had been recorded or livestreamed from my equipment.

The police affidavit tells a different story.

According to Ard's statement as summarized by Grady, I entered City Hall wanting to record with my cellphone. Ard said he told me that recording was permitted in the public portion of the lobby but not in private offices. He also said I had to pass through the security scanner if I wanted to proceed farther into the building.

Ard told police that he passed a metal-detector wand over me and found a lighter and a vape device, which he said were not permitted inside. According to his account, I initially retreated but then tried to bypass the scanner. Ard said he restricted my path and again directed me through security.

The affidavit then describes the physical escalation from Ard's perspective. Ard said he took out his own cellphone and began recording me. He alleged that I slapped his hands and bumped him with my body. Ard said he responded by pushing me away, after which I fell backward, struck my head, and suffered what the affidavit described as a small laceration.

That is not my account of the force that caused my injury.

But it is the account the police used in the warrant process, and it cannot be omitted simply because I dispute it.

The most important surveillance fact is also stated directly in the affidavit.

Officer Paz contacted a Real Time Crime Center technician and had the available footage reviewed. According to the sworn narrative, the footage showed me attempting to bypass the security checkpoint after being

advised that I could not enter with the prohibited items. But Paz was unable to review the **physical altercation itself because the incident occurred outside the camera's field of view.**

That distinction is critical.

The RTCC record was not described as having captured the decisive contact and then disappeared. The police record says the camera did not see the physical confrontation in the first place.

The footage therefore could corroborate portions of the lead-up—my presence at the checkpoint and conduct around the scanner—but it could not independently answer the most important factual question: who initiated the physical contact and what force caused the wound to the back of my head.

The officers then relied on witnesses.

Paz spoke with **Wilfred Vidal** and **Willie Savage**, both identified in the warrant narrative as security personnel who had been present. The affidavit says Vidal told police that I entered the building, refused to go through the scanner, and tried to bypass it; that Ard stepped in front of me; that I slapped Ard's hands and shoved him; and that Ard pushed me back, causing me to fall and hit my head.

Savage gave a materially similar account according to the affidavit. He too said I tried to bypass the scanner, Ard blocked me, I slapped Ard's hands and shoved him, and Ard pushed me backward.

That gave the police three security-side accounts pointing in the same direction: Ard, Vidal, and Savage.

It also meant that all three eyewitness accounts relied upon in the warrant came from people connected to the security operation involved in the dispute. That fact does not make their statements false. It does mean the RTCC footage could not independently verify the crucial physical contact they described.

Paz concluded that I was the aggressor after speaking with those witnesses and reviewing the available surveillance footage. Grady then swore the affidavit seeking a simple-battery warrant under **Louisiana Revised**

Statute 14:35. The document bears a supervisor/reviewer signature for **Alfred Harris** and was approved by Orleans Parish Criminal District Court Judge **Juana Marine Lombard** at **3:34 p.m. on November 12.**

The arrest warrant ordered law enforcement to apprehend me on one misdemeanor count of simple battery.

The accompanying NOPD warrant-entry report likewise identified the incident as occurring at City Hall and described me as wanted for simple battery arising from November 12.

The police record also acknowledges that I needed medical attention. Grady's affidavit says I was taken by EMS to **Tulane** for further medical treatment. Whatever the ultimate legal characterization of the confrontation, the injury was not something invented months later for litigation. Officers arrived to find me bleeding from the back of the head, and the sworn warrant narrative itself records the medical transport.

But an injury is not, by itself, proof of who committed a battery.

That point cuts both ways. The wound does not automatically prove my assertion that Ard struck me with the flashlight. It also does not prove the witnesses' assertion that I injured myself when Ard pushed me after I initiated contact. The physical injury establishes that the encounter became violent enough to leave me bleeding. The disputed mechanism remains disputed in the records now before me.

There is a smaller but revealing records inconsistency involving the time of the offense.

The sworn warrant affidavit says the officers were dispatched at approximately **9:23 a.m.** My later public-records request sought records from **9:00 a.m. to 10:30 a.m.** The Orleans Parish arrest register generated after my January arrest, however, lists the offense time as **9:23 p.m.** on November 12.

I am not silently choosing one document and pretending the other does not exist. The warrant affidavit and my contemporaneous records request place the incident in the morning; the later arrest register contains a p.m. entry. The inconsistency is preserved here as part of the record.

The central evidentiary problem remains cleaner than that clerical conflict.

The police had footage of the lead-up but not the physical altercation. They had three security-side witness statements. They had my visible head injury. They chose the witness account that made me the aggressor and obtained a warrant for me.

I believed then, and still believe, that the investigation should have subjected the competing accounts to substantially more scrutiny before turning the injured participant into the accused. That is my assessment of the investigation, not a judicial finding that the officers lacked probable cause.

I also need to preserve another limitation that earlier drafts ignored.

I cannot prove from these records that Paz, Grady, or anyone else chose my version of events for rejection because they wanted to protect Ard or Allied Universal. I can document the result: the contractor's personnel gave mutually reinforcing statements; the RTCC footage did not show the altercation; I had the head injury; Paz identified me as the aggressor; Grady sought the warrant; and Judge Lombard signed it.

Motive is a separate question. This edition does not invent one.

Likewise, I have not located a criminal charge against Ard in the source set supporting this edition. That is different from saying no agency ever considered a complaint against him. What I can document is that the criminal process reflected in these papers proceeded against me.

Within forty-eight hours, I began contacting New Orleans offices about the incident, victim assistance, preservation, and civil liability. Those calls matter because they freeze my allegations close in time to the event—before the January arrest and before the later litigation matured.

Five days after the incident, I submitted a written public-records request seeking the surveillance, body-camera, 911, dispatch, security, and incident records that I believed could help resolve what happened.

The warrant had already transformed the disputed encounter into an active criminal case.

That active case would then become the City's stated reason for withholding some of the very records I was seeking.

That is the next chapter.

CHAPTER 33 — THE RECORDS REQUEST

Two days after the November 12, 2025 City Hall confrontation, I started calling New Orleans offices about what had happened, about victim-assistance procedures, and about preserving the evidence.

Those calls now survive as transcripts. They are useful partly because they preserve my allegations almost immediately after the incident and partly because they show that my own tone was already confrontational. I was not making calm inquiries and waiting patiently for a bureaucracy to respond. I was angry, I believed I had been assaulted, I was talking about litigation, and I told officials so.

That context belongs beside everything I say about the City's response.

One November 14 call went to the NOPD non-emergency line. I asked how the department's **Victim Witness Assistance Program** worked. The call-center employee told me that the people answering that number were not police officers, said the program did not appear in the contact list available to her, and suggested that I contact one of the police districts directly and ask for an officer who might know more.

I objected that the program was advertised publicly and complained that a policy existing on paper was meaningless if the people answering the department's public number could not direct a victim to it.

That call does not establish that the program did not exist or that every NOPD officer was ignorant of it. It establishes something narrower: the employee who answered the non-emergency line could not identify a direct contact for the program and routed me elsewhere.

I made other calls.

A transcript labeled as a call to Public Integrity records me asking a woman I understood to be with that division about the same victim-assistance process. The call quickly became another transfer. I was routed to a voicemail associated with Detective Sonya Pollard. My frustration is audible in the transcript.

Again, that is evidence of what happened to my inquiry, not proof of an agency-wide policy failure.

The most substantive November 14 call reached the **City Attorney's Office**.

A staff member who identified herself as **Tana** told me she was taking messages because the City Attorney was unavailable. I identified myself and said I was calling about the incident at City Hall two days earlier.

I asked whether the City Attorney's Office acknowledged that a City Hall security guard had physically struck me. She answered that she had no knowledge of the incident and asked how the office would already know about it. I described the security-screening confrontation, my head injury, the equipment damage I alleged, and my intention to pursue civil litigation.

I also told her I wanted a **pre-litigation hold** on evidence and would be filing public-records requests.

When I asked whether there was a written policy, ordinance, or posted rule prohibiting a visitor from entering City Hall with cigarettes, a vape, or a lighter, she said she was not sure and directed me to the municipal code rather than inventing an answer.

That response matters because an earlier version of my own argument treated the absence of an immediate answer as proof that no such rule existed. It was not proof of that. She said she did not know.

I asked for the identity of the guard. She said the City Attorney's Office did not have that information and suggested contacting the security company or someone working downstairs. She also emphasized that the City Attorney's Office handled civil matters and was not the office responsible for investigating a criminal assault.

I pushed back because I was talking about civil liability and the possibility of suing the City. She agreed that if I filed a civil claim against the City, that matter could come to the City Attorney's Office. She gave me an email address to which I could send my notice and told me that if I submitted a public-records request, the City would have to process it.

The call is useful precisely because it is not the simple refusal that an older narrative made it into.

The staffer did not admit fault. She did not say the City knew Ard had assaulted me. She did not promise payment. She said she did not know about the incident, distinguished criminal from civil responsibility, and offered a route for records and a civil notice.

I also called the **Mayor's Office** that day.

The staff member who answered told me that Allied Security was not itself a City department but a contractor providing security at City Hall. When I asked whether the prohibition on cigarettes, a lighter, or a vape was City policy, the employee said she could not answer without checking what Allied personnel had been instructed to enforce.

That was not a legal ruling about municipal liability. It was a factual explanation from the office that the guards were contract security personnel and that the person on the phone did not know the precise screening rule.

During that call I again described my version of the encounter in strong terms. I said I had been violently attacked, that my phone and camera equipment had been damaged, that police had treated me as the problem,

and that I wanted criminal and civil accountability. I also complained again about my inability to obtain clear information about victim-assistance procedures.

The Mayor's Office representative did not adjudicate any of those allegations. She advised me to follow up with the City Attorney's Office and to call the Mayor's Office again when more staff were available.

These recordings therefore preserve both sides of the early institutional contact.

They show me rapidly putting multiple offices on notice of my allegations.

They also show those offices giving limited answers because the employees I reached did not themselves have the police file, the security contract details, or authority to decide a civil claim.

Three days later, on **November 17**, I formalized the evidence request.

The written request was addressed to the City of New Orleans Real-Time Crime Center and invoked the Louisiana Public Records Act. I identified the event as the November 12 City Hall incident and requested records for the period between **9:00 and 10:30 a.m.**

I asked for six categories:

RTCC footage covering the front-entrance sidewalks, public lobby, and security-screening area;

all City Hall interior security-camera footage for the same period;

all audio, 911 call logs, CAD entries, and dispatch traffic;

incident reports, written statements, and security logs generated by City Hall security personnel;

NOPD body-worn-camera footage from responding officers;

and all radio communications referencing the incident.

The request was assigned **25-21253**.

The portal shows that it was received at 9:41 a.m. on November 17. It was initially assigned to the City Attorney and later that morning reassigned to Crime Cameras and 9-1-1. The City sent status messages on November 24 and December 5 saying it was still determining whether responsive records existed.

By December 10, I had become openly hostile about the delay.

A recorded call that day reached the City Attorney's Office and eventually a man who identified himself as **Tommy Milliner**. I accused the City of stalling and told him I had a lawsuit prepared. I described the categories of records I had requested and argued that the status messages were merely buying time.

Milliner gave an explanation that belongs in the record even though I did not accept it.

He told me that the City had received more than twenty-one thousand public-records requests that year and characterized my submission as effectively several requests bundled together. He said the office tried to fulfill requests as quickly as it could under that workload.

I responded that workload was not an acceptable answer to a person claiming to be a crime victim. I accused the City of deliberate indifference, repeatedly threatened to file suit, used profanity, and imposed my own noon-the-next-day deadline.

Milliner did not agree that the City was treating me differently. He told me that many of the City's public-records requests involved crime victims and said he was doing the best he could. At one point he objected that I was painting public employees with a broad brush and said that people in his office worked Sundays and unpaid days trying to deal with the volume.

That exchange is important because it prevents me from writing the delay as though the City confessed to stonewalling. I believed it was stonewalling. Milliner expressly denied that and gave workload as the explanation.

The portal then supplied the City's formal position.

At **10:06 a.m. on December 10**, the Law Department told me that my request for RTCC footage and 911 calls concerning item **K-11205-25** could not be fulfilled because records relating to pending or reasonably anticipated criminal litigation were not subject to disclosure until the litigation was finally resolved. The City cited **Louisiana Revised Statute 44:3(1)**.

The response said the initial report would instead be invoiced and that other documents would have to be obtained through criminal discovery.

One minute later, at **10:07 a.m.**, the portal generated a **\$25 invoice** and stated that the responsive initial report had been compiled and was available for purchase subject to redactions for identifying and private information. The request was then marked closed.

That sequence is the documentary record.

The City did **not** simply deny every record I requested. It withheld categories of RTCC and 911 material under the pending-criminal-litigation exemption, offered an initial report for \$25, described the expected redactions, and directed me toward criminal discovery for other material.

The effect still mattered enormously to me.

The pending criminal matter was the simple-battery case arising from the very encounter whose evidence I was seeking. NOPD had adopted the security witnesses' account, obtained a warrant against me, and the continued existence of that prosecution was now the legal basis the City invoked to withhold video and emergency-response records through the public-records process.

That created a practical loop:

The criminal case depended in part on the City's investigation of the incident.

I wanted the City's records to challenge that account.

The City's response was that because the criminal case was pending, some of those records were not available through the Public Records Act and had to be pursued through the criminal process instead.

That is a consequential result. It is not proof that anyone created the criminal charge **for the purpose** of hiding records.

A legitimate statutory exemption can frustrate a defendant or journalist without becoming evidence of a conspiracy merely because it is frustrating.

Later in December, there was a development the earlier version of this chapter omitted entirely.

I place the call on or around **December 18, 2025**. The recording itself is preserved, but I have not yet tied it to independent call-detail metadata precise enough to fix the exact day, so I am not pretending that date is more certain than it is.

The caller identified himself as **Sergeant Davis** of the New Orleans Police Department. He told me he had been assigned my complaint for investigation through NOPD's **Public Integrity Bureau**. More specifically, he said he had been assigned a misconduct investigation concerning the NOPD officer who responded to the City Hall incident.

I immediately objected that the person I said assaulted me was not an NOPD officer at all. My allegation concerned the Allied Security guard. Davis clarified that his assignment concerned an allegation of misconduct against the responding NOPD officer.

That distinction is important because it establishes that NOPD had not simply ignored every complaint I made. By later December, at least one formal internal misconduct investigation had been assigned within the department.

It also establishes the limit of what Davis said he was doing.

I pressed him repeatedly about what I regarded as the underlying felony assault. I told him I believed the guard had struck me in the back of the head with a metal flashlight, that I had been bleeding on the ground, that nobody had called 911 while I lay there, and that the guard had picked up my livestreaming phone and struck or mashed it against the ground. Those were my allegations to Davis. They were not findings he adopted during the call.

I also told Davis that the City's records response made me believe officials were constructing a false narrative against me while protecting the guard. I connected the public-records withholding to the still-pending criminal case and warned that prosecuting me while refusing to pursue the guard would create a malicious-prosecution issue.

Davis did not agree with that theory.

He repeatedly tried to narrow the conversation back to the assignment he had actually received. He said he had been officially assigned a misconduct investigation and was attempting to send me a form letter required by policy and procedure. The first transmission had failed because the email address in the system omitted part of the `wtpnews.org` domain. We corrected the address during the call.

Then I asked the question that mattered most to me: why was Internal Affairs investigating officer misconduct if no one would tell me what was happening with the underlying crime I said had been committed against me?

Davis did **not** tell me that no criminal investigation existed. He said the criminal aspect was not what he had been assigned to investigate. At one point he was explicit that he was not saying it was not being investigated; he was saying that his portion was the misconduct investigation.

That is a much narrower fact than the conclusion I was trying to force from him.

I accused the department of investigating itself and predicted that Internal Affairs would find no misconduct. I told Davis that the order of operations made no sense to me because, in my view, the crime should be investigated before the officer's response to that crime was evaluated. I accused the Mayor's Office and City Attorney's Office of influencing what was happening.

Davis denied that. He said he had been assigned by his commander, not by the Mayor's Office or City Attorney's Office.

The exchange deteriorated. I interrupted him repeatedly. He told me more than once that he was simply trying to perform the investigation he had been assigned. I told him I believed the situation looked “very shady.” Near the end, after another argument about whether he should be addressing the criminal side of my complaint, Davis terminated the call.

The value of that recording is not that it proves the cover-up theory I was asserting. It does not.

Its value is documentary.

By later December 2025, NOPD’s Public Integrity Bureau had assigned Sergeant Davis to investigate an allegation of misconduct involving the responding NOPD officer from the November 12 City Hall incident. Davis distinguished that internal investigation from whatever criminal investigation did or did not exist concerning the guard. He did not give me the criminal-case answer I wanted, but neither did he tell me that no criminal investigation was occurring. And the recording preserves my own increasingly accusatory response to that distinction.

That makes the institutional picture more complicated than the one I was describing publicly at the time.

The November and December calls document something less dramatic but more concrete: there was no single New Orleans office I could call and immediately obtain a complete institutional answer. The non-emergency call center routed me toward police districts. Public Integrity routed me to another contact. The City Attorney’s staff initially had no knowledge of the incident. The Mayor’s Office distinguished Allied from City personnel and could not answer the screening-policy question. The records unit processed the request under its own statutory rules. And by later December, NOPD Public Integrity had opened an internal misconduct investigation focused on the responding officer, while the criminal aspect I kept asking about remained outside Sergeant Davis’s assignment.

I experienced that fragmentation as institutional indifference.

The recordings prove the fragmentation and my reaction to it. They do not establish that every person on those calls shared a plan to protect Ard or prosecute me.

What the documents establish is enough.

Within two days of the incident I had put City offices on notice of my allegation that I was the injured victim and that evidence needed to be preserved.

Within five days I had submitted a detailed written request identifying the exact categories and time period I wanted.

By December 10 the City had identified the active criminal case as the basis for withholding key categories of records through the public-records process.

By later December, NOPD had assigned an internal misconduct investigation concerning the responding officer.

And the warrant remained active.

Seven weeks after the December 10 records response, during severe winter weather in Lafayette, that warrant would move the New Orleans case from paperwork back into physical custody.

That is the next chapter.

CHAPTER 34 — THE ICE-STORM ARREST

On **January 24, 2026**, during severe winter weather in southern Louisiana, I went to an emergency warming shelter in Lafayette.

The New Orleans warrant from the November 12 City Hall case was still active.

According to the factual account preserved in my later civil complaint, law-enforcement action at the shelter was triggered by an NCIC hit tied to arrest warrant **K-11205-25**. I was taken into custody in Lafayette on that warrant.

That is the documented connection.

An earlier manuscript went further and attributed the arrest to the federal BOLO network described in Chapter 28. I still view the federal information-sharing history as important context, but I do not presently have a record establishing that a federal BOLO caused officers to find me at the warming shelter. The active Orleans Parish warrant is enough to explain the legal mechanism reflected in the source record.

The setting still mattered to me. I had gone to a warming shelter because of the weather. I left in custody on a misdemeanor warrant arising from the City Hall encounter I had been trying to challenge through records requests since November.

The dates have to remain separated because an earlier edition collapsed the Lafayette arrest and the Orleans Parish booking into one event.

They were not the same event.

I was arrested in Lafayette on **January 24**.

The Orleans Parish paperwork shows a separate booking sequence on **January 28**.

The arrest register identifies Folder No. **2548390**, Arrest No. **12485172**, and Item No. **K1120525**. It lists the charge as **simple battery** under Louisiana Revised Statute 14:35. The register records the Orleans arrest/booking location as **2800 Perdido Street**, an arrest time of **7:00 p.m.**, and a booking time of **9:05 p.m.** on January 28.

It identifies **P/O McIver**, badge 00625, as the arresting officer on that booking entry and **P/O Pierce**, badge 02137, as the transporting officer.

The same register lists the bond amount as **\$0.00**.

That entry forced a correction to an older version of my account. I had previously described a \$100 cash bond and an additional detention tied to a supposed Louisiana-driver's-license requirement. The primary Orleans arrest register now in the source set does not support that version. It shows zero dollars.

Unless another primary record establishes a separate monetary condition and explains when it arose, I am not publishing the \$100 story as fact.

The Orleans packet contains another timing inconsistency that I am preserving rather than fixing by assumption.

The sworn November 12 warrant affidavit says officers were dispatched to City Hall at about **9:23 a.m.** My November 17 records request sought records from 9:00 to 10:30 that morning. But the January arrest register records the offense time as **9:23 p.m.**

The documents therefore conflict on the a.m./p.m. designation. The sworn narrative and my contemporaneous request point to the morning; the later arrest register prints the evening. The manuscript will show the conflict instead of silently normalizing it.

The underlying warrant itself is straightforward.

Judge Juana Marine Lombard signed the arrest warrant on November 12 at 3:34 p.m. after Grady’s affidavit accused me of one count of misdemeanor simple battery. The warrant commanded peace officers to apprehend and book me and to keep me in custody until released according to law.

By January 28, that paper had become an Orleans Parish booking record.

On **January 29**, the Criminal District Court’s Court Intervention Services, Pretrial Services Program prepared a **Public Safety Assessment**.

For purposes of pretrial risk, the assessment classified me at **Risk Level 1** and identified the eligible supervision type as **Unsupervised Release**. It scored “New Criminal Activity” at 2 out of 6 and “Failure to Appear” at 2 out of 6. It marked “New Violent Criminal Activity” as no.

The underlying risk-factor table recorded no current violent offense, no prior violent conviction, and no failure to appear in the preceding two years.

Those entries are relevant because they show how the Orleans pretrial system evaluated me at that moment.

They are **not** a reliable substitute for the full criminal history developed elsewhere in this book.

In fact, the assessment itself contains information that does not match the broader documentary record. It marks **“Prior Felony Conviction: No.”** By January 2026, however, the September 30, 2022 Mississippi aggravated-stalking conviction existed. The assessment’s criminal-history page lists only a **2014 Georgia DUI misdemeanor**, with one day of confinement and probation, and includes a note stating: **“Defendant has arrest in Lafayette with unknown disposition.”**

That means the assessment appears incomplete as a comprehensive criminal-history source.

I therefore use it for what it actually proves: Orleans Parish Pretrial Services assessed me as Risk Level 1 and recommended unsupervised release based on the information present in its system. I do not use its “no prior felony” box to rewrite the Mississippi record.

That is exactly the kind of source conflict this book needs to preserve.

One agency record can be authentic and still be incomplete.

The January arrest completed a documentary chain that had begun more than two months earlier.

On **November 12**, there was a physical confrontation at New Orleans City Hall. Officers arrived to find me bleeding from the back of the head. Allied security personnel told police that I had initiated contact and that Ard pushed me away. I maintained that Ard had struck me with a flashlight. The RTCC camera did not capture the physical altercation. Paz nevertheless concluded that I was the aggressor, and Grady obtained the warrant that afternoon.

On **November 14**, I began calling New Orleans offices about victim assistance, evidence preservation, and civil liability.

On **November 17**, I formally requested surveillance, 911, dispatch, body-camera, security, and incident records.

On **December 10**, the City invoked the pending-criminal-litigation provision to withhold categories of RTCC and 911 material through the public-records process while offering an initial report for a fee.

On **January 24**, the still-active warrant resulted in my arrest in Lafayette.

On **January 28**, I was booked in Orleans Parish.

On **January 29**, Pretrial Services classified me at Risk Level 1 and identified unsupervised release as the supervision type if eligible.

That is the sequence the records support.

I do not need to add a theory that officials timed the arrest to exploit the weather, because I do not have evidence proving that motive. Nor do I need to call execution of the warrant retaliatory as an established fact. The warrant existed, law enforcement encountered me, and the warrant was executed.

The prosecution itself had not yet reached its final disposition. That would come later in the spring and belongs later in the chronology.

For the moment, January ended with me back inside a criminal process over a confrontation in which I had initially regarded myself as the victim.

The next major development came in Mississippi on **February 24, 2026**, when the Mississippi Court of Appeals ruled in the separate misdemeanor-appeal litigation that had been running in parallel for years.

CHAPTER 35 — REARDON V. STATE: REVERSED AND REMANDED

On **February 24, 2026**, the Mississippi Court of Appeals reversed the Lafayette County Circuit Court’s dismissal of my appeal from four Justice Court convictions and remanded the case for further proceedings.

The appellate case ultimately carried number **2024-KM-00839-COA**. During the record-assembly stage, clerk documents also used the classification 2024-TS-00839. The lower-court case was **36CI1:21-cv-00494-JKL**, commonly reflected in the papers as **L21-494**.

The distinction between what the Court of Appeals did and did not do is essential.

It did **not** acquit me of DUI, improper equipment, disorderly conduct, or resisting arrest.

It did **not** hold that Deputy Kandace Beavers, Deputy Jacob Williford, Deputy Courtney Dixon, Deputy Ethan Tidwell, or Sheriff Joey East committed perjury.

It did **not** conduct the de novo trial I had originally sought.

It reversed the Circuit Court's procedural dismissal of my appeal and sent the case back.

That result makes more sense when the four-year procedural history is laid out instead of reduced to the word "reversal."

The Justice Court judgments were entered on **November 24, 2021**.

Within days, the Justice Court entered an order addressing my ability to appeal. The order allowed attorney Mitchell Driskell to withdraw, found me **indigent**, stated that by reason of poverty I could not furnish the security normally required for an appeal, allowed execution of the judgments to be stayed **without a supersedeas bond**, and granted an additional ten days beyond the existing appeal deadline in which to file an appeal.

That order became central years later because the Circuit Court ultimately dismissed the appeal on the ground that I had not timely supplied appeal security or a proper affidavit of poverty.

On **December 3, 2021**, nine days after the judgments, I filed pro se in Circuit Court a document styled as a motion to alter or amend the judgment under Mississippi Rule of Civil Procedure 59(e), or alternatively to vacate under Rule 60. The pleading was poorly styled for a criminal appeal. I was using civil rules to attack Justice Court criminal judgments.

But the filing also contained language that cannot be ignored. In its concluding section I asked the court to take judicial notice of the filing as my **notice of intent to appeal** the judgments. I also completed a civil cover sheet identifying the nature of the action as an appeal from Justice Court. The Circuit Clerk docketed the matter as civil cause 21-cv-494.

That is why the later appellate dispute was not simply whether I used the right form. It was whether the filings and orders already in the record were enough to invoke appellate review despite procedural defects.

The Justice Court later denied the civil-rule motion, noting that the Mississippi Rules of Civil Procedure govern civil matters rather than criminal proceedings.

I did not treat that denial as the end of the appeal effort.

On **December 27, 2021**, I filed in Justice Court a separate document titled **Formal Notice of Defendant's Intent to Appeal De Novo**. The notice identified the Justice Court cause numbers, stated that I intended to appeal the guilty verdicts to the Lafayette County Circuit Court, and requested a jury trial.

That document matters because the later Court of Appeals opinion treated it as satisfying the content requirements of a notice of appeal.

There is a second part of December 27 that requires more careful sourcing.

In a January 7, 2022 filing, I swore that I had attempted to take the same formal notice to the Circuit Clerk's office and was told that my in-forma-pauperis status was being revoked for other matters and that I would have to pay approximately **\$150** to file it. I attached the Justice Court indigency order and the stamped formal notice as support.

That account is documented as something I asserted contemporaneously in a filed pleading. I do not presently have an audio recording, clerk affidavit, receipt, rejection slip, or independent witness statement proving exactly what was said at the Circuit Clerk's counter that day. This edition therefore does not turn my January 7 allegation into an independently established act by Jeff Busby personally.

The paper trail nonetheless shows that I kept pressing the appeal.

On **January 7, 2022**, I filed a Motion to Schedule Hearing for De Novo Appeal and an Affidavit of Poverty. The motion expressly pointed back to the notice language in my December 3 filing and described the December 27 attempt to place the formal notice into the Circuit Court file.

My January filing was not restrained legal prose. I mixed the appeal issue with accusations that Lafayette County officials had lied at trial and with my claim that the December civil commitment was part of retaliation. That is visible in the document itself. It also illustrates why the appellate issue could become obscured: a relatively straightforward question about whether I had invoked de novo review was surrounded by much broader allegations.

The State eventually answered.

On **April 12, 2022**, Lafayette County Attorney **Bela J. Chain III** filed a Response to Notice of Hearing. His position was that I had not complied with Mississippi Rule of Criminal Procedure 29.1 and therefore had not perfected an appeal to Circuit Court. He emphasized that my December 3 filing invoked the wrong procedural rules and was styled as a Justice Court motion rather than a conventional criminal notice of appeal.

The State's filing did acknowledge one potentially important rule point: pending post-trial motions can affect appellate timing under the applicable procedural framework. But Chain maintained that I still had not done what Rule 29.1 required.

A hearing was held on the pending matters that month.

On **April 14**, Circuit Court entered an order appointing **Mitchell Driskell** to represent me in the misdemeanor appeal. That appointment is significant for a simple reason: the court was appointing a lawyer to represent me in an appeal that the State was simultaneously arguing had never been properly perfected.

Four days later, on **April 18**, Driskell filed a **Corrected Notice of Appeal and Demand for Jury Trial**.

The corrected notice openly addressed the defects raised against my pro se filings. It stated that the December 3 pleading had been intended to serve as a notice of appeal; that I later attempted to file a pleading expressly styled as a notice; and that no written Rule 29.1(c) deficiency notice had been served on me. It then supplied the information Rule 29.1(b) calls for: the appealing party, address, judgments being appealed, identification of the Circuit Court, and an express statement that the appeal was taken de novo.

Driskell also relied on the prior indigency findings. The corrected notice asserted that both Justice Court and Circuit Court had found me entitled to proceed in forma pauperis and therefore argued that cost-bond and appearance-bond requirements did not bar the appeal.

That filing did not instantly resolve anything.

On **May 20, 2022**, Chain responded again. He made two principal arguments.

First, the December 28, 2020 disorderly-conduct/resisting case and the February 21, 2021 DUI/equipment case arose from different events and, in the State's view, should not have been combined into one Circuit Court filing.

Second, he argued that the November 24 judgments had not been appealed and perfected within the thirty days contemplated by Rule 29.1.

The State also disputed my jury demand. Its response argued that because none of the individual charges carried a maximum sentence greater than six months, Mississippi Rule of Criminal Procedure 29.5 permitted the de novo appeal to be tried without a jury.

Those questions then sat.

The appeal did not proceed to a de novo trial in 2022.

It did not proceed to one in 2023.

And it was still unresolved in 2024.

That passage of time later became visible in a motion filed by my own appointed attorney.

On **June 11, 2024**, Driskell filed a Motion to Reinstate Case after the Circuit Court had issued a May 31 motion to dismiss for lack of prosecution. His filing reconstructed what had happened since 2022.

Driskell stated that the matter was a misdemeanor criminal appeal initiated by my pro se December 3 filing; that a hearing had been held April 12, 2022; that he had been appointed April 14; and that he had filed the corrected notice April 18. He wrote that the initial motion, the State's responses, and the corrected notice issues remained pending before the court.

He also wrote that the court file did not contain record evidence of a later hearing resolving the corrected appeal, although he had a recollection that one might have occurred and expressly acknowledged his recollection could be mistaken because of the number of matters in which he had represented me.

Most importantly, his motion explained why there had been no record activity: the pleadings were **ripe for ruling by the court**.

That is different from a litigant simply abandoning a case.

Driskell told the court the unresolved questions were whether my original pro se filing perfected an appeal; if not, whether the corrected notice did; and, if an appeal existed, whether I was entitled to a jury trial.

The Circuit Court reached the first two questions later that month.

On **June 28, 2024**, Judge John Kelly Luther dismissed the appeal for lack of jurisdiction.

His written order recognized that the December 3 filing had been submitted within thirty days of the Justice Court judgments. But he held that the filing was not a proper notice of appeal because it had been filed civilly, relied on the Mississippi Rules of Civil Procedure, sought relief inconsistent with the criminal appellate process, and did not satisfy the content requirements of Rule 29.1(b).

Luther then considered the later corrected filing. He treated it as potentially curing content defects but not the separate requirements involving appeal security.

That became the decisive point in his order.

The judge wrote that what troubled the court was my failure to timely submit either a proper affidavit of poverty or the required cost and appearance bonds. He relied on Mississippi Supreme Court precedent holding that failure to timely furnish required appeal bonds could deprive the Circuit Court of jurisdiction and could not simply be cured after the deadline.

My January 7 Affidavit of Poverty, Luther concluded, was outside the thirty-day period.

On that reasoning, he dismissed L21-494.

The order is important because it did **not** find that I had never expressed an intent to appeal. It found that the procedural steps required to perfect the appeal had not been timely completed in the manner the Circuit Court believed jurisdictionally necessary.

That distinction became the subject of the next appeal.

I sought review in the Mississippi appellate courts. The case became 2024-KM-00839-COA.

Before the Court of Appeals could decide the legal question, the record itself had to be assembled and transmitted from Lafayette County.

That process produced another documentary trail.

On **July 24, 2024**, the appellate clerk acknowledged receipt of material electronically transferred from the Lafayette County trial court.

On **October 2**, the Clerk of Appellate Courts sent Circuit Clerk **Jeff Busby** a **Record Delinquency Notification**. The notice said the time for assembly of the record had expired and directed the Circuit Clerk to file the certificate of compliance and notice of completion or explain why the record was not ready.

The problem remained unresolved nineteen days later.

On **October 21**, the appellate clerk issued Busby a **Show Cause Notice**. It stated that the record deficiency remained outstanding and directed him to show cause why sanctions should not be imposed for noncompliance unless the default was cured within fourteen days.

Those are not my accusations. They are notices generated by the appellate clerk during the processing of my appeal.

They also need to be kept separate from a different dispute over a March 2024 letter associated with Busby. The fact that the appellate clerk later sent delinquency and show-cause notices does not prove that Busby intentionally falsified information to Texas, and the later *Reardon v. Osteen* record indicates that Assistant District Attorney **Steven Jubera**, not Busby, personally transmitted the March 2024 letter relied upon there. This edition does not merge those issues.

The appellate process eventually reached a decision.

On **February 24, 2026**, the Mississippi Court of Appeals reversed Luther's dismissal and remanded.

The opinion's reasoning is especially significant because it did not pretend my pro se filings were models of procedure. They were not.

The appellate record recognized the December 3 filing, the Justice Court's indigency and appeal-security order, the later formal notice, the appointment and withdrawal history involving Driskell, the corrected notice, and the prolonged procedural handling in Circuit Court.

The Court of Appeals concluded that the dismissal could not stand. The project evidence record preserves two points from the opinion that define the holding better than my earlier rhetoric did.

First, the court stated that **"the errors in this case were not of Reardon's making."**

Second, it directed that I **"should be appointed counsel before the circuit court on remand, should he still qualify as being indigent."**

The opinion also treated my December formal notice as satisfying the content requirements for a notice of appeal.

Those conclusions mattered because for years the procedural history had been described as though I simply failed to appeal on time and then tried to resurrect the convictions afterward.

The actual record was more complicated.

I had announced an intent to appeal nine days after judgment.

The Justice Court had entered an order finding me indigent, staying execution without a supersedeas bond, and giving additional time.

I had filed a formal notice in Justice Court.

I had continued filing motions to schedule the de novo appeal.

Circuit Court appointed counsel to represent me in that appeal.

Counsel filed a corrected notice designed specifically to cure the defects the State identified.

The matter then remained unresolved for more than two years before the Circuit Court dismissed it.

The Court of Appeals held that dismissal could not stand.

That is a meaningful appellate victory.

It is not the victory earlier versions of this manuscript claimed.

I repeatedly wrote that the February 2026 opinion proved the underlying DUI conviction was “never final,” destroyed every predicate used in Texas, and established that officials had fabricated the legal status of the conviction. Those statements combined several distinct legal questions and treated the appellate decision as resolving more than it did.

The Court of Appeals was deciding whether the Circuit Court properly dismissed my Justice Court appeal. It did not adjudicate Officer Osteen’s conduct in Galveston. It did not determine what any Mississippi or Texas official subjectively knew when communicating about my prior record. It did not itself dismiss the four misdemeanor convictions.

The separate MacArthur filing discussed the finality of the Lafayette DUI for **Texas enhancement purposes** and cited Texas law on when an appealed conviction becomes final. That was part of a different legal argument concerning the felony DWI enhancement and the second Mississippi revocation. It should not be silently transformed into the holding of *Reardon v. State*.

Likewise, reversal of a dismissal is not reversal of a conviction.

The four Justice Court judgments remained the judgments being appealed. The effect of the February 24 opinion was to reopen the path by which they could be reviewed in Circuit Court.

That precision does not diminish what happened.

For more than four years I had maintained that I tried to appeal the November 2021 convictions and that procedural handling, not abandonment, prevented the de novo case from being heard. The appellate court rejected the Circuit Court's dismissal and returned the matter for exactly the proceedings the dismissal had cut off.

The phrase "the errors in this case were not of Reardon's making" is powerful precisely because it is narrow. I do not need to inflate it.

The decision also changed how the chronology of the Galveston story must be understood, but only cautiously.

When Texas charged felony DWI in 2023, one of the predicate convictions being discussed was the Lafayette DUI. By July 2024, when Mississippi held the second revocation hearing, the status of that appeal was itself disputed, and the Circuit Court had just dismissed L21-494 weeks earlier. MacArthur later argued that Texas could not use an appealed conviction as a final enhancement predicate in the manner the State had attempted.

The February 2026 Court of Appeals opinion restored the Mississippi appeal. That development supports the proposition that the appellate process had not simply vanished because I failed to pursue it. It does not retroactively decide every Texas enhancement issue or convert every contrary statement by an official into a knowing lie.

That is the line this edition keeps.

By February 24, 2026, then, the procedural record was no longer ambiguous about one central point: the Circuit Court dismissal was reversed, and my Justice Court appeal was alive again.

The case returned to Lafayette County with a direction concerning appointed counsel if I remained indigent.

That left the underlying misdemeanors for further proceedings rather than erasing them.

And it left me with another open Mississippi case while the federal Louisiana conviction was moving toward sentencing and a separate series of events was beginning in Union County.

The legal map had become crowded, but the chronology was now clearer than it had been for years.

One court had corrected the excessive second-revocation sentence in January 2025 without vacating the underlying aggravated-stalking conviction.

Another appellate court had reversed the dismissal of the Justice Court appeal in February 2026 without reversing those misdemeanor convictions.

And the federal court in Louisiana had entered its own guilty judgment in January 2026, still subject to the federal review process.

Three different proceedings. Three different procedural effects.

Earlier drafts repeatedly collapsed those distinctions into the word **vindication**.

This edition does not.

CHAPTER 36 — THE UNION COUNTY THREAD

On April 15, 2026, I was recording on a public sidewalk in Union County, Mississippi, when I had a confrontation with Board of Supervisors President C. J. Bright. My account and the video record I have described from that day include Bright acknowledging that he could not lawfully stop the activity I was engaged in. That encounter became the opening event in a new series of disputes with Union County officials.

The next day, April 16, a separate case from another state reached an important disposition. The materials I later assembled for the New Orleans litigation record that the Orleans Parish District Attorney's Office refused the simple-battery charge arising from the November 12, 2025 City Hall incident under disposition code 433, described in those materials as "REFUSED — LAW ENFORCEMENT ISSUE." I have not located the underlying prosecutor-screening sheet itself in the presently assembled source set, so I am not assigning the code a broader legal meaning than the words recorded in my case materials. What matters chronologically is that the New Orleans prosecution that had produced my January arrest was no longer moving forward by mid-April.

Four days later, on April 20, the Union County Board of Supervisors matter escalated.

My account is that, shortly before public comment, a warning was announced against obscenity or vulgarity and that I was then arrested after using a profane word during my own remarks. The charge was described in my records as public profanity under Mississippi Code section 97-29-47. That sequence is central to my First Amendment objection: a speech restriction was announced at the meeting and then applied to my speech moments later.

I have also described an Mississippi Department of Corrections hold being placed on me after that arrest even though I believed no valid MDOC basis existed for it. The source set I have in front of me does not presently contain the hold document itself. More importantly, my own materials conflict on the date the hold was cleared and I was released. One account places the relevant court action on April 21; another places it on April 24. Until the actual release order or custody record settles that point, this book leaves the date unresolved rather than choosing the version that reads better.

On May 5, I appeared pro se in Union County Justice Court on the profanity matter. In my account of that hearing, when I raised the Supremacy Clause and the federal constitutional issue, the judge responded, “I don’t give a rat’s ass about that.” I do not presently have a certified transcript of that hearing in the assembled evidence. The quotation therefore remains my recorded/reported account of the exchange, not a certified court-reporter quotation. I also recorded that I filed nine motions that day and later sought the judge’s recusal on May 10. Those filings should ultimately be tied to their stamped copies in the evidence index before publication.

A second Union County arrest occurred on June 1.

That incident did not arise from the same conduct as the April 20 public-comment arrest. I carried a sign reading “FUCK CITY HALL” into the county courthouse and into the Justice Court area. My materials identify the resulting charge as disturbing the peace under Mississippi Code section 97-35-13. I had escalated the protest from speech at a board meeting to

carrying an explicitly profane sign into a working courthouse. That distinction belongs in the record whether or not the charge was constitutional.

My recordings and later summaries attribute several statements during that incident to Sheriff Jimmy Edwards, including “You wanted it, you gonna get it” and “I’m gonna keep arresting you.” They also record my invoking *Cohen v. California* and Edwards responding that he did not know the case. Until the underlying recording is indexed directly alongside this chapter, those quotations should be treated as recording-derived claims rather than certified transcript testimony.

The affidavit associated with the June 1 matter also raises documentary questions in my copy. My records describe the charge line as “Disturbance of a Business” while the narrative alleges disturbing the peace, and I have not identified a case number, docket number, notary stamp, or clerk stamp on the copy available to me. That is a description of the document I possess, not a conclusion that no properly executed charging instrument exists elsewhere.

The affidavit also describes courthouse employees as fearful of what I might be capable of doing. The version in my possession does not identify a specific threat by me. That discrepancy is fair to report. It is not fair to convert it automatically into proof that the affiant fabricated the fear, because the current record does not establish the witness interviews behind that language.

My phone was seized during the June 1 encounter. My materials also place Mark McClinton at the courthouse that day. I have not established from primary records whether this is the same Mark McClinton who appears in a separate 2022 call, and I am not merging those identities without proof. The name “Chad Mood” also appears in my materials from this period, but I cannot yet place his role with enough confidence to narrate it as fact.

Three days later, on June 4, I went to the Thomas G. Abernethy Federal Building in Aberdeen, Mississippi. I had prepared a federal civil-rights complaint and related papers concerning the Union County events and intended to file them there.

My account of the entrance encounter is that security demanded photo identification, that I resisted the demand, and that the interaction lasted roughly twenty minutes while personnel waited on an individual identified to me only as “Mr. Lipshutz.” I then asked whether refusing to provide identification would send me to jail. My records attribute the response “Probably” to an officer outside. I ultimately identified myself and was arrested by Aberdeen Police Chief D. Shumpert after building security reported that I had caused a disturbance.

The arrest, vehicle search, towing, and phone seizure are events I have described consistently in my materials. The resulting matter proceeded in municipal court rather than as a federal prosecution. That jurisdictional fact is worth recording, but the earlier draft went too far in treating it as evidence of a deliberate plan to keep the case out of federal court. I do not have proof of that motive.

I also need to be exact about the civil complaint I had intended to file. The June 4 arrest prevented me from filing it at the Abernethy building that day. As of the source set supporting this chapter, I have not identified a later stamped federal filing of that particular complaint. I therefore describe it as a prepared complaint whose filing was interrupted, not as a complaint the federal court rejected.

On June 6, I published my account of the Aberdeen incident. My records then reflect that on June 7 an Aberdeen Police captain identified as “SRQ” Lee forwarded the article to colleagues with the message, “Watch the video with us in it. Lol.” That text is potentially significant because it is contemporaneous documentary evidence of how at least one officer reacted to the published account. It does not, standing alone, establish the culture or motive of an entire department.

By early June, three distinct proceedings were moving at once: the remanded Lafayette County misdemeanor appeal, the Union County cases, and the Aberdeen municipal matter. The next chapter returns to the Texas federal civil case against Officer William Osteen, where the federal magistrate’s July 2026 recommendation contained one of the most important adverse findings about Osteen anywhere in the record—and, at the same time, recommended dismissal of my case.

CHAPTER 37 — REARDON V. OSTEEN: THE OBJECTIONS

On July 14, 2026, Magistrate Judge Andrew M. Edison entered a Memorandum Opinion, Order, and Recommendation in Reardon v. Osteen, Civil Action No. 3:25-CV-00203 in the Southern District of Texas.

The case brought together several strands already documented in this book: my claims arising from the August 2023 Galveston DWI arrest; claims against Galveston defendants including Officer William Osteen; and claims against Mississippi defendants including Lafayette County Circuit Clerk Jeff Busby and Deputy Kandis Beavers.

The July 14 decision was mostly adverse to me. Edison recommended granting the dispositive motions to dismiss, recommended dismissal of additional defendants, and recommended denial of the temporary restraining order connected to my June 2026 vehicle-seizure dispute. He also entered rulings on nondispositive motions.

But inside that adverse ruling was a sentence that cannot be summarized away.

In discussing the conflict between Osteen’s warrant affidavit and his later testimony before Judge Gray Tollison, Edison wrote: “The record shows that Osteen lied to Judge Tollison. That is disturbing.”

That is the language of the federal magistrate judge. It is not my characterization of Osteen’s credibility, and it is not a criminal perjury adjudication. The court said Osteen lied to Judge Tollison. It did not convict him of perjury or make the additional findings a perjury prosecution would require.

The R&R nevertheless recommended dismissal of the search-related claim. Edison concluded that, even after setting aside the disputed alcohol-related statements, other allegations supplied independent probable cause for the blood-draw warrant. My later objections identified the remaining facts as failure to maintain a single lane, watery eyes, and refusal of a field-sobriety test. I disputed that analysis and requested a Franks hearing directed to materiality, but I did not pretend the R&R had resolved the claim in my favor.

The vehicle-impoundment analysis produced a different combination of findings.

My July 28 objections quote the R&R as concluding that I had stated a viable Fourth Amendment claim for unreasonable seizure and as rejecting the community-caretaking justification on the record before the court. The R&R then recommended qualified immunity because I had not adequately addressed the clearly-established-law component of the defense or supplied controlling authority establishing the right at the required level of specificity.

That procedural distinction is essential. Saying that a complaint states a constitutional claim is not the same thing as entering judgment that a defendant violated the Constitution. And a qualified-immunity ruling can end a damages claim even after the court concludes that the pleaded conduct is constitutionally problematic.

I filed my objections on July 28, 2026. The document separated dispositive recommendations, reviewed under Rule 72(b), from nondispositive rulings reviewed under Rule 72(a). My first objection challenged the qualified-immunity recommendation on the vehicle seizure and invoked *Hope v.*

Pelzer's notice principle. I argued that a later appellate decision could not itself have given officers notice before the conduct occurred and asked the district court either to reject qualified immunity or permit supplemental briefing.

My third objection preserved the Osteen credibility finding and challenged the R&R's materiality analysis. I quoted Edison's sentence that Osteen lied to Judge Tollison and also cited the defendants' own reply brief as conceding that Osteen had stated on camera that he could not smell alcohol. I asked for a Franks hearing while expressly acknowledging that Edison's independent-probable-cause reasoning was a substantive obstacle.

The objections also exposed a correction that belongs in this manuscript's treatment of Jeff Busby.

I had previously argued that Busby's March 25, 2024 letter concerning the Mississippi appeal and his later federal affidavit were directly contradictory. The R&R did not accept that theory. My own July 28 Objection No. 6 states that Edison's personal-jurisdiction analysis relied on affidavits establishing that Assistant District Attorney Steven Jubera—not Busby—personally transmitted the March 25 letter to Texas authorities. Objection No. 7 further records that Edison denied my motion to strike Busby's affidavit and for sanctions because the record showed Jubera personally contacted Texas, meaning Busby's affidavit was not literally false on that point.

That is now the controlling way this book treats the issue. The March 2024 letter remains relevant to the history of the Mississippi appeal, but the present record does not support saying that Busby personally sent it to Galveston or committed perjury by denying that he did. A prior draft said otherwise. The court record corrected it.

The remaining objections addressed First Amendment retaliation, excessive force, claims against Sergeant Doraty, the Busby jurisdiction issue, the motion to strike, the attempted supplemental complaint, and the temporary restraining order. In several places I asked for dismissal without prejudice and leave to amend rather than claiming entitlement to immediate judgment.

The district court did not accept the objections. On August 10, 2026, Judge Jeffrey Vincent Brown entered an order adopting the magistrate judge's recommendation and a final judgment dismissing the case at the district-court level. The dismissal meant I lost the civil action in that court.

That result does not erase the findings embedded in the adopted R&R. It also does not transform those findings into judgments they were not.

The durable record is more complicated: the court adopted a recommendation that ended my case; the same recommendation expressly said Osteen lied to Judge Tollison; and it concluded that my vehicle-seizure allegations stated a constitutional claim before qualified immunity defeated the damages claim.

Those propositions can coexist. In fact, preserving all of them is the only accurate way to report the decision.

Three days before Judge Brown entered final judgment, I had been sentenced in the separate federal misdemeanor case arising from the Lafayette courthouse arrest.

That August 7 sentencing is the next chapter.

CHAPTER 38 — SENTENCING

On **Friday, August 7, 2026**, I appeared by video for sentencing in *United States v. Reardon*, the federal misdemeanor case arising from my August 25, 2025 arrest at the John M. Shaw United States Courthouse in Lafayette, Louisiana.

The hearing was public enough that I livestreamed the lead-up to it.

The surviving video begins before I reached the room where I would join the court. I told viewers I was trying to get the hearing link because I had wanted to post it publicly. I was heading to the place that had agreed to host the video connection and was worried about being late for an 11:00 a.m. sentencing.

That place was **Our Daily Bread in Galveston, Texas**.

The transcript captures the practical awkwardness of appearing for federal sentencing from another state. I arrived with only minutes to spare, tried to get situated, and told the people helping me that I had an allocution prepared in large print. Once the connection was live, my attorney, **Dustin Talbot**, asked whether I had the statement printed or ready. I did not have the large-print copy physically in front of me and said I could pull it up on my phone.

The written version now in the archive is twenty-nine large-print pages. Its first page contains delivery notes to myself: stand still, face the judge, do not pace, speak slowly, breathe between paragraphs, and aim for roughly nineteen to twenty minutes.

The livestream shows that the statement was not merely a draft that never reached the court. At approximately **27:50** into the recording, I began delivering it, closely tracking the prepared text.

Before that happened, the court established the remote-hearing record.

Talbot confirmed that I was physically at Our Daily Bread in Galveston. The court stated that the attorneys were also participating by video and that **U.S. Magistrate Judge Thomas P. LeBlanc** was physically in chambers in **Lake Charles, Louisiana**.

The video appearance had been requested because my circumstances made a physical trip to Louisiana an extreme hardship. LeBlanc explained that sentencing could proceed remotely only with my consent. I was placed under oath, and when asked whether I consented to proceed by video, I said yes.

The court then summarized the case. I had been charged by one-count Bill of Information under the federal-property disturbance regulation and, after a bench trial, found guilty. The operative conviction was the subsection (b) obstruction offense described in Chapters 30 and 31.

The government spoke before I did.

Its position was more measured than the version I sometimes gave when describing the case afterward.

The prosecutor acknowledged my military service and acknowledged that I believed I was asserting a legitimate First Amendment right. He said, in substance, that he was not angry at me for holding that belief; he disagreed with me on the law.

The government did **not** ask LeBlanc to send me back to jail.

The prosecutor recognized that the maximum imprisonment for the Class C misdemeanor was thirty days and said he did not believe an additional prison sentence was necessary. Instead, he recommended unsupervised

probation. He told the court that a Class C misdemeanor could support as much as five years of probation and argued for **at least three years**, with conditions directed at my conduct around federal courthouses.

That was the recommendation I stood up—or, in this case, sat before a camera—to answer.

My prepared allocution opened by identifying who I believed I was in that proceeding:

“My name is Matthew Oliver Reardon. I am a United States Marine Corps veteran. I am an independent journalist. I am the founder and publisher of We The People News.”

I then acknowledged the posture plainly. I was before the court convicted of a petty offense carrying a maximum statutory sentence of thirty days. I said I was not asking LeBlanc at sentencing to overturn the verdict. I wanted to explain why I had been on the courthouse steps, what federal personnel had done before August 25, and why I believed probation with courthouse restrictions would be unjust.

The speech then moved backward two months.

I described the **June 24, 2025** U.S. Marshals Service email concerning me. I quoted the language instructing recipients to report **“any suspicious behavior no matter how small”** and emphasized that the email was distributed after the June 23 courthouse encounter, when no criminal charge had been filed against me.

I discussed the June 27 FOIA request and the Marshals Service response I received on **August 22**, three days before my arrest. I described the District Alert Notice, photographs, identifying information, and the inter-district communications discussed in Chapter 28.

At sentencing I used stronger words than the evidentiary record permits this book to use as settled fact.

I told the court the government had **“surveilled me for protected activity,”** had **“prejudiced the judges of this Court against me,”** and had undertaken a **“campaign.”** Those were my conclusions and my advocacy at sentencing.

The FOIA records prove circulation of information, alert material, identifying data, photographs, and communications among federal security personnel. They do not, standing alone, prove that every recipient surveilled me, that every judge became prejudiced, or that an unlawful coordinated campaign existed.

The distinction is not an effort to soften what I said. It is the reason the full allocution belongs in the evidentiary history while the narrator of this edition has to use more disciplined language.

I then described the August 25 protest.

I told LeBlanc that I had stood outside with a sign containing the words **“Fuck the U.S. Marshals Service.”** I invoked *Cohen v. California* and its famous recognition that the government cannot simply criminalize an offensive four-letter political message because listeners dislike the word.

That part of the allocution was directed at speech.

The conviction, however, was not for the wording on the sign.

As the January written judgment makes clear, the conviction rested on what LeBlanc found I did with signs, my body, and a tripod at the courthouse entrance.

That became the first major contradiction between my sentencing account and the trial court’s findings.

In the allocution, I told LeBlanc that Deputy Marshal **Hayden Nugent** told me he would seize my equipment if I did not move it, that I picked it up, began stepping backward away from the door, and was arrested **while complying**.

The January 16 Reasons for Judgment say otherwise.

LeBlanc found that Nugent directed me to move the tripod and camera to the far side of the metal barricades; that I said I was fine where I was; that Nugent warned me I would be arrested; that he gave a three-second countdown; and that I did not move the equipment as ordered before the arrest.

Both records now exist.

The allocution proves the account I put before the judge at sentencing.

The written judgment proves what the trial judge had already found from the evidence.

This book cannot collapse the two into a single version merely because I prefer mine.

I made additional allegations about the arrest that day.

I told the court Nugent slammed me to the ground and damaged my 4K camera, new gimbal, and tripod. I alleged that in the holding area he pressed his knuckles into my chest while I was having difficulty breathing and threatened me with a felony assault-on-a-federal-officer charge after I moved his arm away. I said my heart rate was between 140 and 160 beats per minute by the time paramedics were involved and that I believed medical assistance had been delayed.

Those allegations were part of my publicly delivered allocution.

They were **not findings LeBlanc made at sentencing**.

The equipment also later existed as trial exhibits. For that reason, an earlier formulation saying the equipment was literally “destroyed” is too categorical unless a technical record establishes that it was rendered unusable. My position is that it was damaged and no longer functioned as it had before. That is the formulation this edition uses outside quotations from my sentencing argument.

I then turned to the surveillance-footage dispute.

The prepared allocution called that **“the most significant failure in this entire proceeding.”** I told the court that the government had failed to preserve courthouse lobby surveillance, argued that government cameras could have shown activity my own camera angle could not, and said I believed the missing material would have supported my contention that marshals had gestured for me to approach the building.

I went farther in the speech. I characterized the preservation issue as deliberate concealment of exculpatory evidence and referred to matters I understood from a sealed portion of the trial.

This book will not reproduce the sealed testimony.

I made the argument publicly during sentencing, and the livestream establishes that I made it. But the publication rule for this edition is stricter: sealed testimony stays sealed unless the court later makes it public or a public filing independently establishes the same facts.

Public docket material does establish that surveillance preservation had become a real discovery issue. A November 17 defense filing included a proposed order seeking production of all video and audio recordings of me at the John M. Shaw Courthouse from June 2025 forward and, if the footage no longer existed, a sworn explanation of whether it had been preserved, when it was lost or destroyed, and what preservation efforts followed my September request.

A proposed order is not the same as a signed judicial finding. It proves what the defense was asking the court to compel, not that LeBlanc adopted every proposed finding.

That is how the preservation dispute is treated here.

The allocution then described my transfer after the arrest.

I said I was shackled and taken to **St. Martin Parish Jail** and that when I asked what charge I was being booked on I was told there was only a U.S. Marshals hold. I argued in the speech that transporting and holding me without a new charge was unlawful and even used the word **kidnapping**.

Again, that was my legal accusation, not an adjudication.

The fact that a person is held under federal process without a newly announced local charge does not by itself establish the federal kidnapping offense I invoked. The manuscript preserves what I argued without converting my legal conclusion into a criminal finding against the officers.

From there I returned to the federal communications.

I quoted Magistrate Judge **Carol B. Whitehurst's November 12, 2025 recusal language**, including her statement that an objective and reasonable observer could believe she was predisposed to find me guilty and that avoiding the appearance of impropriety matters to public confidence in the judiciary.

At sentencing I argued that Whitehurst had looked at what the Marshals Service had done and found that the pre-charge communications created an unacceptable appearance of bias.

That formulation also requires qualification.

Whitehurst's recusal is significant. It concerned the appearance surrounding **her own continued participation in the case**. It was not a merits judgment that the Marshals Service had illegally poisoned the entire Western District judiciary or that every recipient of an email was biased against me.

I then cited the government's **October 15 protective-order motion**.

The motion expressly identified discovery categories that included communications between the Marshals Service and federal judges at the John Shaw Courthouse and communications between other courthouse security personnel and the Marshals Service.

During allocution I said the government had asked the court to **conceal** those communications from me.

That was too broad.

The motion sought restrictions on dissemination of sensitive discovery material. It did not seek to prevent defense counsel and me from reviewing all material that the protective order permitted us to use for the case. What the motion proves is that those categories of communications existed in the discovery universe and that the government regarded them as sensitive enough to seek restrictions on broader dissemination.

That is already important without giving the filing a purpose it did not state.

Then the allocution reached the issue that mattered most to me at sentencing: **probation itself**.

The government was asking for years of supervision and restrictions connected to federal courthouses. I had already lived under banishment conditions in Mississippi.

I told LeBlanc that I recognized what I called a **“banishment-style condition”** because I had already experienced one. I discussed the 2022 Lafayette County sentence, the five-year banishment term, the November revocation, and the custody that followed. I said I feared another geographic or courthouse-access condition could become a future **tripwire**.

I also told the court that a son had been born by emergency cesarean section while I was confined and that I had been unable to be there. That statement is preserved here as part of my sworn/public sentencing account. This chapter does not use the allocution alone to add medical or family details elsewhere in the manuscript.

My sentencing request was unusual.

I had already spent approximately thirteen days in custody on the federal matter. The statutory imprisonment maximum was thirty days.

I told the court I preferred a **finite sentence** to years of probation with a courthouse condition.

The delivered speech clarified the request: time served if the court would end the matter there, or, if probation with the access restriction was the alternative, I would rather serve the remaining portion of the thirty-day maximum.

I said:

“I would rather serve every remaining day of a finite sentence than accept an indefinite condition on my right to walk into a public building and do my job.”

That sentence captures why the government’s recommendation felt more threatening to me than additional jail time.

A jail sentence has an end date.

Probation creates continuing jurisdiction and the possibility of a later revocation proceeding.

My Mississippi history made that possibility concrete rather than theoretical in my mind.

But even there the legal description needs precision. A probation condition is not a self-executing trap that automatically sends someone to prison the moment an officer alleges a violation. Revocation still requires process and a judicial determination. My fear was based on how I believed prior revocation proceedings had operated, not on a rule that every accusation becomes automatic incarceration.

The allocution closed with a statement that tied the sentencing hearing directly to this manuscript.

I told LeBlanc I was writing a book about the BOLO alerts, the emails, the arrest, the force allegations, the surveillance dispute, the holding cell, the jail, the protective order, the recusal, and the conviction.

“I do not say that as a threat,” I said. “I say it as a fact. I am a journalist. This is what I do.”

I also made my objection to probation explicit. I said I did not consent to a condition that I believed restricted my constitutional rights and wanted any such restriction imposed over my express objection rather than characterized as an agreement I had voluntarily accepted.

The final lines were not subtle.

I said I was a Marine and a journalist, that I intended to return to work after serving whatever sentence the court imposed, and thanked the judge.

Then LeBlanc sentenced me.

At approximately **57:44** on the livestream, the court initially described the sentence as time already served plus **two years of unsupervised probation.**

The standard conditions included that I commit no new federal, state, or local crime; not unlawfully possess a controlled substance; and not possess firearms, ammunition, destructive devices, or dangerous weapons. The court suspended the drug-testing requirement because the information before it did not suggest a significant drug-abuse risk.

The special courthouse condition was broader geographically than the John M. Shaw building alone but narrower than a nationwide ban.

LeBlanc ordered that I not be physically present at the **John M. Shaw Federal Courthouse in Lafayette**, any other federal courthouse **within Louisiana**, or adjacent federally owned or leased grounds unless I had **legitimate business** with an occupant of the courthouse. If I did have such business, I was required to notify the U.S. Marshals Service in that locality at least **two business days in advance**.

LeBlanc expressly said the sentence was not intended to suppress my First Amendment activity. He framed it as a response to the conduct for which I had been convicted on federal courthouse property.

Then the hearing became procedurally unusual.

After a breakout discussion requested by the government, the participants returned to the record and LeBlanc clarified that his earlier wording could be misunderstood.

The final structure was **not** “time served” as one completed punishment **plus** two years of probation as a second punishment.

Instead, I was being placed on **two years of unsupervised probation**. The approximately thirteen days I had already spent in custody would operate as credit if probation were later revoked and I were resentenced on the original offense.

That clarification matters enough that the source notes and the manuscript both need to use it consistently. A shorthand description of “time served + two years probation” is incomplete after the judge’s clarification.

I immediately saw the problem I had been trying to avoid.

I pressed LeBlanc for a yes-or-no answer to whether I could ever spend more than thirty total days in custody on the original petty offense if probation were later revoked.

The judge declined to answer the hypothetical and directed me to counsel. The prosecutor explained that future circumstances could involve different legal permutations, including potentially new charges, making the categorical question unsuitable for an on-the-spot ruling.

The hearing therefore does **not** contain a judicial holding answering every future revocation scenario.

It contains something more limited:

I was sentenced to two years of unsupervised probation.

If the court later revoked that probation and resentenced me on the original offense, the custody already served would be credited.

LeBlanc did not give me the broader advisory ruling I wanted about all possible future custody.

The court imposed **no fine**.

LeBlanc also **waived the special assessment**, explaining that the record did not show I was financially able to pay a fine or assessment.

Talbot then put an objection to the special courthouse condition on the record.

He argued that the phrase “**legitimate business**” was vague. The government responded that I could do what similarly situated members of the public could do so long as I complied with the rules, standing orders, and federal regulations governing the courthouse.

LeBlanc overruled the objection. He found the reference to legitimate business with courthouse tenants or occupants sufficiently clear.

I disagree with that ruling and have treated the condition as an appellate issue. But that is the procedural posture: objection preserved, government response made, objection overruled.

Near the end of the hearing, LeBlanc advised me of the appeal route.

I had **fourteen days after entry of judgment** to file a written notice of appeal. Because the petty-offense case had been tried and sentenced by a magistrate judge, the first appeal was to a **United States district judge** under Federal Rule of Criminal Procedure 58(g)(2), not directly to the Fifth Circuit.

Earlier drafts that described a direct Fifth Circuit appeal were wrong.

The hearing ended after approximately an hour and a half. LeBlanc said the court would prepare the written judgment, concluded the sentencing, and wished me good luck.

The most revealing thing about the hearing is not that either side obtained everything it asked for.

The government requested at least three years of unsupervised probation. LeBlanc imposed two.

I asked for time served with no probation—or, failing that, said I preferred the remaining days of the thirty-day imprisonment ceiling. The court rejected that choice and imposed probation.

I objected to the courthouse condition. The objection was preserved but overruled.

And I put into the public record a long argument about federal information sharing, preservation of evidence, the Marshals Service, Whitehurst's recusal, my Mississippi history, and why I believed the prosecution fit a larger pattern.

Some of those arguments remain central to how I understand what happened.

Some were stated too categorically in the allocution and have been narrowed in this edition because the underlying documents do not prove the conclusion as strongly as I told the sentencing court they did.

That difference is not something I want hidden from the reader.

The August 7 allocution is evidence of my position at that moment.

The court's judgments and orders are evidence of what the judiciary actually found.

The FOIA records are evidence of what federal personnel actually wrote and distributed.

The videos are evidence of what they show.

And where those categories conflict, the conflict stays visible.

That is the standard I am applying to this book even when it cuts against the story I once told about myself.

Three days after sentencing, in the separate Texas civil case, Judge Jeffrey Brown entered the order and final judgment discussed in the previous chapter.

The legal fights were narrowing.

The financial consequences were not.

CHAPTER 39 — THE FINANCIAL COST OF THE FIGHT

By the time of the August 2026 sentencing, the disputes described in this book had moved through local, state, and federal systems in Mississippi, Texas, Utah, and Louisiana. The records document arrests, detention, bonds, towing, filing costs, travel, and years of litigation. They do not reduce neatly to one dollar figure, and I am not going to manufacture one.

Some amounts can be stated precisely.

After the May 26, 2017 aggravated-stalking arrest, the Oxford Eagle reported that Lafayette County Justice Court Judge Carolyn Bell set bond at \$150,000. The article said release required ten percent—\$15,000—plus collateral for the balance. That is a contemporaneous published report; until the underlying bond order is placed in the evidence archive, I treat the amount as reported rather than as a court-order quotation.

The Galveston felony DWI case produced another documented bond problem. A March 7, 2024 motion filed by my attorney, Myron G. Davis, states that the bond in Cause No. 23-CR-2981 was then \$100,000 and had previously been \$10,000. The motion sought a reduction. The request was

denied. Whatever theory one applies to bond generally, the practical effect in my case was continued detention because I could not post the amount required for release.

The DWI charge was later dismissed on May 24, 2024. That dismissal should not be rewritten as a reduction to a lesser offense; it was a dismissal. Nor should the toxicology result be turned into a complete explanation for why the prosecutor dismissed the case unless the dismissal record itself says so. The laboratory evidence and the disposition are both important. They are separate facts.

The smaller numbers mattered too.

In June 2026, after Galveston officers arrested me in a separate incident and my 2016 Mitsubishi Outlander was towed, my records reflect a \$373.94 charge associated with approximately two days at Marty's City Auto. Several hundred dollars is small beside a six-figure bond. For a person relying on a vehicle for transportation and, at times, shelter, it can be the amount that decides whether the vehicle comes back at all.

That is where the financial story becomes harder to quantify without becoming less real.

I have said publicly that I lost four houses over a period of years while these cases and disputes were consuming my time and money. That is my account. I have not assembled deeds, mortgage records, foreclosure records, sale documents, or a property-by-property financial ledger proving the cause and timing of each loss. This book therefore does not state that a particular official or lawsuit caused the loss of four houses as an independently proven fact.

What the record does establish is prolonged interruption of ordinary life. I spent extended periods in custody. I traveled repeatedly between jurisdictions. I filed and defended cases without counsel for substantial stretches. I paid or faced filing fees, records fees, bond requirements, transportation costs, towing charges, and the ordinary costs of trying to maintain work and housing while litigation continued.

The difference between having counsel and proceeding alone also appears repeatedly in the record, but an earlier version of this chapter overstated the lesson.

My 2022 federal civil-rights case in the Northern District of Mississippi was dismissed with prejudice. In 2024, Jacob Howard of the MacArthur Justice Center filed a post-conviction petition attacking the July 18, 2024 revocation sentence. That representation led to the January 2025 order correcting the illegal revocation sentence and to my release the following day.

It did not produce a full vacatur of the underlying 2022 aggravated-stalking conviction. Earlier drafts said it did. They were wrong.

The contrast between those cases still shows why legal representation matters, but it does not prove that counsel alone determines outcomes or that the two cases involved identical claims. They did not. Different causes of action, procedural postures, records, standards, and remedies were involved. What I can say from experience is simpler: trained counsel can identify procedural routes and legal arguments that are difficult for a pro se litigant to discover while simultaneously living through the events being litigated.

My own filings became more sophisticated over time because I spent years reading rules, cases, statutes, transcripts, and dockets. That education was not free. It consumed time that otherwise could have gone to ordinary employment, family life, reporting, or rebuilding financial stability. Government defendants, by contrast, ordinarily appear through salaried public lawyers or retained counsel paid by the governmental entity or insurer. That institutional difference is structural; it does not require proof that anyone deliberately set out to bankrupt a litigant.

That is why I am narrowing the title's older phrase, "financial warfare," into something I can prove more cleanly: financial cost.

I cannot show that every fee, bond, tow, or delay was imposed for the purpose of exhausting me financially. I can show that the costs accumulated. I can show that detention prevented work. I can show that high bonds kept me in custody when I could not post them. I can show

towing and records charges in actual documents. And I can show years in which I was simultaneously trying to litigate, report, travel, work, and maintain basic stability.

For an institution, litigation is an operational expense. For an individual, litigation can become the operating environment of an entire life.

That is the economic fact this record supports without needing a conspiracy theory to explain it.

The epilogue does not end with every case resolved. It ends with a record much cleaner than the one I started with: victories described as victories, losses described as losses, allegations separated from findings, and contradictions corrected where the documents require it.

EPILOGUE — THE RECORD

This book began with a 2016 flag petition and followed what happened afterward through arrests, family-court litigation, criminal prosecutions, civil commitments, public-records fights, federal lawsuits, interstate detention, and appellate proceedings in Mississippi, Texas, Utah, and Louisiana.

The ending is not a verdict that makes every event line up on one side.

It is a record.

On August 7, 2026, Judge Thomas P. LeBlanc sentenced me in the Lafayette federal-courthouse case. After clarifying the sentence on the record, the court placed me on two years of unsupervised probation. Time I had already served would be credited if the probation were later revoked and resentencing occurred. The court imposed no fine and waived the special assessment. It also prohibited my presence at the John M. Shaw Federal Courthouse, other federal courthouses in Louisiana, and adjacent federally owned or leased grounds unless I had legitimate business with a courthouse occupant and gave the U.S. Marshals Service two business days' notice.

My attorney objected that the “legitimate business” condition was vague. The court overruled the objection. The judge also told me that the sentence was not intended to suppress my First Amendment activity and advised me of my right to appeal the conviction and sentence to a United States district judge after entry of judgment.

Three days later, on August 10, 2026, Judge Jeffrey V. Brown adopted Magistrate Judge Andrew M. Edison’s recommendation in *Reardon v. Osteen* and entered final judgment against me in the Texas federal civil-rights case.

I lost that case at the district-court level.

The loss does not erase what the adopted recommendation said. Edison wrote that “the record shows that Osteen lied to Judge Tollison” and called that fact disturbing. The same recommendation concluded that my allegations concerning the later vehicle impoundment stated an unreasonable-seizure claim before recommending qualified immunity. It also rejected my effort to characterize Jeff Busby’s affidavit as literally false on the theory I had advanced, relying on evidence that Assistant District Attorney Steven Jubera—not Busby—personally transmitted the March 2024 letter to Texas.

That is what this manuscript has become by the end: not a brief that keeps only the helpful rulings, but a record that keeps the adverse ones too.

The January 2025 post-conviction order did not vacate my underlying 2022 aggravated-stalking conviction. It corrected the July 2024 revocation sentence and led to my release on January 22. The February 24, 2026 Mississippi Court of Appeals decision did not acquit me of the Lafayette County Justice Court misdemeanors. It reversed the Circuit Court’s dismissal of my appeal and remanded the matter so the appeal could proceed. The appellate clerk’s own records show that Lafayette County Circuit Clerk Jeff Busby had earlier received a record-delinquency notice and then a show-cause notice while that appeal was being assembled.

Those distinctions matter because the strongest version of this story is not the version in which every setback becomes a vindication and every inconsistency becomes corruption.

The strongest version is the one the documents can survive.

The documents establish that the Criminal Information in the 2017 aggravated-stalking case alleged AR-15 conduct “on or before May 8, 2017,” while the bill of sale in my records shows that I acquired the rifle on May 20. They establish that the precise May 8 allegation appears in the later charging instrument and plea record; they do not, from the material currently located, establish that the same date appeared in the pre-arrest warrant paperwork used on May 26. That difference is now preserved rather than blurred.

The documents establish that Oxford Police referred the June 20, 2022 City Hall incident to the Mississippi Bureau of Investigation on June 23, that Agent Joey Mauney obtained the arrest warrant on June 27, and that deputies arrested me at the Chancery Court the following morning because they knew I had court there. The Chancery Court was the arrest location, not the conduct that generated the warrant.

The documents establish that the Galveston toxicology testing did not show alcohol and that the DWI prosecution was dismissed on May 24, 2024. They also establish that a federal magistrate later wrote that Osteen lied to Judge Tollison. They do not permit me to call that finding a criminal conviction for perjury, and this book no longer does.

The documents establish that the U.S. Marshals Service was circulating information about me in June 2025, including material labeling me a First Amendment auditor, before the August 25 Lafayette arrest. They do not establish that the BOLO itself caused that arrest. The January 2026 federal judgment separately found that on August 25 I blocked courthouse doors and refused an instruction to move my tripod before I was arrested. Both records belong in the same book.

The documents establish that the New Orleans RTCC camera did not capture the physical altercation at City Hall. They do not establish that the footage was deliberately lost. They establish that New Orleans later withheld requested RTCC and 911 material under a pending-criminal-litigation exemption while offering an initial report for a fee. That is different from proving that the City created the criminal case in order to hide the evidence.

The documents also forced corrections to me.

At the Mississippi Governor's Mansion in July 2025, the contemporaneous recording has me telling the supervisor that the trooper did not physically touch me. An earlier manuscript said he struck me, knocked down my phone, and stepped on it. That version is gone.

At sentencing in August 2026, I told the court that I moved my courthouse equipment when Nugent ordered me to do so and was arrested while complying. The written trial findings say I refused, was warned, heard a countdown, and was arrested after failing to move it. This book reports that conflict instead of quietly choosing the version most useful to me.

I also described the government's October 2025 protective-order motion too broadly in public. The filing sought restrictions on dissemination of sensitive discovery, including Marshal-judge communications. It did not itself prove an effort to conceal misconduct. That correction is now part of the manuscript as well.

That is what accountability has to mean if I am going to demand it from anyone else.

I remain the narrator of this book. I am also an interested party in much of the litigation it describes. Those facts make source discipline more important, not less. Memory can explain why an event mattered to me. It cannot be allowed to override a transcript, a signed order, a laboratory report, or a contemporaneous recording when the two disagree.

There are still unresolved matters in this record. Some cases remain subject to further review or proceedings. Some documents have not been located. Some recordings still need direct verification before quotations should be treated as publication-grade. Where the evidence stops, this book stops with it.

I chose the title *American Injustice* because the question running through these pages is larger than whether every accusation I made was right. The question is what happens when a citizen keeps demanding records, hearings, review, and accountability from institutions that possess far more

money, legal expertise, and coercive power than he does—and what those same institutions owe him even when he is angry, profane, difficult, or wrong about part of his own case.

The Constitution does not require a citizen to be likable before the government has to obey it.

It also does not excuse a citizen from telling the truth about his own conduct.

That is the standard I am leaving on the page.

LEGAL ANALYSIS

A note on what this section is. This is an explanation of the legal doctrines that shaped the events described in the manuscript. It is written for a reader, not as a brief and not as legal advice. Where a doctrine cuts against my position, I say so. Where the law remains unsettled or the record is incomplete, I do not convert uncertainty into a holding.

I. RETALIATORY ARREST: PROBABLE CAUSE, NIEVES, AND GONZALEZ

A central allegation running through this book is retaliation: that protected speech, recording, reporting, and criticism influenced decisions to investigate, arrest, charge, or restrict me. Federal law makes that kind of claim difficult even when motive evidence exists.

In *Nieves v. Bartlett*, 587 U.S. 391 (2019), the Supreme Court held that a retaliatory-arrest plaintiff generally must plead and prove the absence of probable cause. The Court recognized a narrow exception where objective evidence shows that the plaintiff was arrested while otherwise similarly situated people not engaged in the protected speech were not.

That exception was clarified in *Gonzalez v. Trevino*, 602 U.S. 653 (2024). The Supreme Court rejected the Fifth Circuit’s demand for virtually identical, individually identified comparators. Objective evidence can take other forms. In *Gonzalez*, a survey showing that a longstanding criminal statute had never been used for comparable conduct was the kind of evidence a court could consider.

That matters to my own civil-rights litigation. The lesson is not simply that I needed a list of named people who did the exact same thing and were not arrested. The stronger lesson is that retaliation claims need objective proof of differential enforcement. Motive evidence may matter, but under *Nieves* it often does not carry the claim by itself when probable cause exists.

II. QUALIFIED IMMUNITY: A CLAIM THAT SURVIVED ONE STEP AND STILL LOST

Earlier versions of this book said I “won” a Fourth Amendment seizure claim on the merits in *Reardon v. Osteen*. That overstated the ruling.

Magistrate Judge Andrew Edison wrote that because impounding my vehicle was unreasonable on the facts alleged, I had **stated a constitutional claim for unreasonable seizure**. That was a pleading-stage determination in a Report and Recommendation addressing motions to dismiss. It was not a final merits judgment and it did not establish damages liability.

Edison nevertheless recommended qualified immunity because I had not carried the separate burden of identifying clearly established law sufficient to overcome the defense. Judge Jeffrey V. Brown later adopted the recommendation and entered final judgment against me.

Qualified immunity therefore creates two distinct questions: whether the alleged conduct states a constitutional violation, and whether the right was clearly established with sufficient specificity at the time of the conduct. A plaintiff can clear the first question and lose on the second. In my case, the court concluded that my pleading cleared the constitutional-claim threshold on the impoundment issue but did not overcome qualified immunity.

My objections invoked *Hope v. Pelzer*, 536 U.S. 730 (2002), and its warning that officials can have fair notice even without a prior case containing identical facts. The district court adopted the R&R despite those objections. Whatever I may argue on review, the publication record must describe the actual result: I did not obtain a merits judgment in my favor.

III. WHY AN EARLY PRO SE §1983 CASE FAILED

One of my earlier federal cases arising from Olive Branch was dismissed for failure to state a claim. I have sometimes folded that dismissal into a broader story of institutional resistance. The pleading itself shows more ordinary legal problems.

Section 1983 does not provide damages against a state simply because a state actor is alleged to have violated federal rights. States generally retain sovereign immunity from federal damages suits absent waiver or valid congressional abrogation, and a State is not a “person” for ordinary §1983 damages purposes. Prospective relief against an appropriate state official presents a different question, but that was not how I framed the case.

Municipal liability presents another barrier. Under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), a city is not automatically liable under §1983 for every constitutional wrong committed by an employee. The plaintiff must connect the violation to a municipal policy, custom, or qualifying decision by a final policymaker. My early pleading did not do that adequately.

I also used a “federal corporation” theory that had no sound basis in §1983 doctrine. That language weakened the pleading instead of helping it.

Those defects matter because they distinguish a lost constitutional claim from a complaint that never pleaded the required legal elements. A fair account of my litigation has to admit when procedure and pleading—not a factual finding against me—ended the case.

IV. JUDICIAL IMMUNITY AND THE OLIVE BRANCH CONTEMPT ARREST

Judges generally have absolute immunity from damages for judicial acts performed within their jurisdiction, even where the act is alleged to have been erroneous, malicious, or in excess of authority. *Stump v. Sparkman*,

435 U.S. 349 (1978); *Mireles v. Waco*, 502 U.S. 9 (1991). Immunity does not extend to nonjudicial acts or acts taken in the complete absence of jurisdiction.

That doctrine makes a damages claim arising directly from a courtroom contempt ruling exceptionally difficult. The stronger constitutional issue in my Olive Branch episode concerned impartiality. *In re Murchison*, 349 U.S. 133 (1955), and *Mayberry v. Pennsylvania*, 400 U.S. 455 (1971), recognize that due process can require a different judge when the presiding judge has become personally embroiled in the contempt controversy.

The contempt charge against me was later dismissed. That disposition does not itself establish civil liability, and judicial immunity does not disappear because a charge was dismissed. The episode therefore illustrates a distinction repeated throughout this book: conduct can be subject to serious constitutional criticism while a damages remedy remains unavailable.

V. THE GALVESTON BLOOD WARRANT: THE ISSUE IS VALIDITY, NOT WHETHER A WARRANT EXISTED

Earlier drafts treated the August 2023 blood draw as though the existence of a warrant were unresolved. The present record does not support that framing.

Osteen signed a blood-warrant affidavit. The case record reflects that a magistrate signed a warrant at approximately 2:49 a.m., and Osteen later testified under oath that he filed a blood warrant that was signed by a judge. I was not shown the warrant at the hospital, but failure to hand me a copy at the moment of the draw is not the same thing as absence of a warrant.

The legal dispute is therefore closer to *Franks v. Delaware*, 438 U.S. 154 (1978): whether an affidavit contained deliberately or recklessly false material statements or omissions, and, if so, whether the corrected affidavit would still establish probable cause.

The contradictions are documented. Osteen's affidavit marked a moderate odor of alcohol on my breath and described dilated pupils. Later testimony said he could not smell alcohol coming from me once I was outside the vehicle and described my pupils as very small or pinpoint. The laboratory

reported **no alcohol detected**. At the July 2024 Mississippi hearing, Osteen nevertheless testified that alcohol had been detected. The same laboratory production separately reported methamphetamine at 0.13 mg/L. No expert testimony at that revocation hearing established that the reported concentration caused impairment.

My attorney later sought a *Franks* hearing in the Texas misdemeanor case. That hearing was not held. In the subsequent federal civil case, Edison concluded that probable cause remained even after addressing disputed portions of the affidavit, but he also wrote that “the record shows that Osteen lied to Judge Tollison.” Those are separate propositions. The federal court’s use of the word *lied* is not a criminal adjudication of perjury, and the absence of alcohol does not erase the separate methamphetamine result.

The publication-safe legal conclusion is therefore narrow: the blood draw was warrant-based; the affidavit and later testimony contain documented contradictions; materiality was contested; and no Texas *Franks* hearing resolved that dispute before the criminal matter ended.

VI. THE TEXAS FELONY ENHANCEMENT AND ITS DISMISSAL

The Texas indictment charged DWI third or more and alleged two prior offenses. That enhancement therefore did not appear from nowhere. The dispute was whether the alleged priors could legally support the felony level.

One of the alleged predicates was the Lafayette County misdemeanor DUI conviction that I had been trying to appeal since December 2021. The later MacArthur Justice Center PCR petition cited Texas authority for the proposition that an appealed prior conviction used for enhancement does not become final until the appellate mandate issues. The same petition attached the Texas motion to dismiss and described the State’s stated reason as that it “cannot prove up jurisdictional enhance[ment]s.”

The felony prosecution in Cause No. 23-CR-2981 was dismissed without prejudice on May 24, 2024. The later record reflects that a misdemeanor DWI matter arising from the same August 11 stop remained pending and became the vehicle for the February 2025 *Franks* motion.

That chronology is stronger than the old rhetoric. I do not need to call the felony a fabricated enhancement or infer why prosecutors acted beyond what their filing says. The documentary point is that Texas indicted the felony, later moved to dismiss because it could not prove the jurisdictional enhancements, and the felony case was dismissed.

VII. THE 2017 COVENANT NOT TO SUE

The signed covenant is not missing. It is in the appellate record for LK17-295. It states that, as a specific condition of the guilty plea, I agreed not to file civil claims against Lafayette County, the sheriff and deputies, the City of Oxford and its officials, and Todd and Ashley Lynch for matters through the arrest.

Release-dismissal agreements are not automatically unenforceable. *Town of Newton v. Rumery*, 480 U.S. 386 (1987), requires a case-specific inquiry that includes voluntariness, prosecutorial overreaching, and the public interest.

That is the proper framework for the facts I describe: a \$150,000 bond, a negotiated guilty plea, banishment, and a covenant signed as part of the disposition. My later account is that I accepted the bargain under intense pressure. The plea record also contains my sworn answers at the time denying coercion and acknowledging the rights I was giving up. Both pieces belong in any honest analysis.

The book cannot adjudicate whether the covenant would be enforceable in a later civil action. It can document that criminal disposition and civil release were linked in the same bargain and identify the doctrine that would govern a challenge.

VIII. NOTICE AND ACCESS TO THE ACCUSATION

The Sixth Amendment guarantees a criminal defendant the right to be informed of the nature and cause of the accusation. How that right applies depends on the stage of the case and the documents at issue.

Several episodes in this manuscript involve my complaint that I could not obtain the document being used against me when I believed I needed it: the initiating paperwork in the 2017 Lafayette case; charging material in the

2020 Olive Branch matter; and affidavit-related filings in Galveston. The records do not support collapsing those episodes into a single judicial finding that three courts denied notice in the same legal sense.

The stronger way to present the pattern is evidentiary rather than conclusory: identify what I requested, when I requested it, what the court or agency produced, and what remained unavailable. A reader can then see the recurring access problem without the manuscript declaring a constitutional violation that no court decided.

IX. MISSISSIPPI REVOCATION PROCESS: 72 HOURS, 21 DAYS, 30 DAYS, AND TECHNICAL VIOLATIONS

Morrissey v. Brewer, 408 U.S. 471 (1972), established minimum due-process protections for parole revocation, and *Gagnon v. Scarpelli*, 411 U.S. 778 (1973), extended that framework to probation.

Mississippi now states important timing rules directly in Miss. Code Ann. § 47-7-37. For an offender arrested on a probation-violation warrant, the Department must ordinarily hold an informal preliminary hearing within seventy-two hours unless an exception or waiver applies. If reasonable cause is found, detention pending the revocation hearing is generally limited to twenty-one days; if the hearing is not held in that period, the statute directs release back to probation status. A separate subsection provides that the revocation charge shall be dismissed if the revocation hearing is not held within thirty days of the warrant's issuance unless good cause for delay is established in the record.

The same statute caps incarceration for technical violations: up to ninety days for a first technical revocation, 120 days for a second, 180 days or the remainder for a third, and up to the remainder for a fourth or later revocation.

Those distinctions correct one of the most important errors in earlier editions. The January 21, 2025 post-conviction order did **not** vacate my underlying 2022 aggravated-stalking conviction. It vacated the July 2024 two-year revocation sentence, treated the violation as technical, resentenced me to 120 days, ordered my immediate release because I had served more than that, and reinstated the original unsupervised probation and banishment terms. The MacArthur petition separately argued that the

earlier November 2022 one-year technical-revocation sentence exceeded the statutory first-revocation cap, but that already-served sentence was not the relief granted by the January 2025 order.

The timing issues surrounding my 2024 detention still require exact arrest, warrant, continuance, and hearing dates. The statute supplies the clocks. The record supplies the dates. The manuscript should not invent tolling rules or call a violation established until those two are matched precisely.

X. MISSING OR UNPRESERVED EVIDENCE

The law distinguishes evidence that is exculpatory from evidence that is merely potentially useful.

Brady v. Maryland, 373 U.S. 83 (1963), concerns suppression of material exculpatory evidence in the government's possession. *California v. Trombetta*, 467 U.S. 479 (1984), addresses evidence whose exculpatory value was apparent before destruction. *Arizona v. Youngblood*, 488 U.S. 51 (1988), generally requires a showing of bad faith when the State fails to preserve only potentially useful evidence.

That framework matters because missing video cannot honestly be described as proof of what the video would have shown. The December 2020 security-camera dispute, the Lafayette sallyport/dash-camera questions, the New Orleans RTCC camera that did not capture the City Hall altercation, and the federal courthouse preservation issue are not interchangeable.

The safe rule for this book is simple: if a camera did not cover the event, say so; if footage once existed but was not preserved, say that; if a request produced only part of what was sought, identify what was produced; and never write the contents of footage that nobody has seen.

XI. THE RIGHT TO RECORD AND ITS LIMITS

In *Turner v. Driver*, 848 F.3d 678 (5th Cir. 2017), the Fifth Circuit recognized a First Amendment right to record police officers performing official duties in public, subject to reasonable time, place, and manner restrictions. That decision predates the May 2017 events in this book and governs Mississippi, Louisiana, and Texas.

The scope matters. *Turner* does not establish an unlimited right to film anywhere government business occurs. It does not eliminate neutral security rules, obstruction laws, restricted areas, or reasonable facility regulations. Recording a police officer on a public sidewalk and placing equipment in a federal courthouse entrance present different legal questions.

That distinction is especially important in the 2025 federal courthouse case. My First Amendment activity formed part of the factual context, but the conviction was for conduct under 41 C.F.R. § 102-74.390(b). The trial court found prohibited conduct at the courthouse. Whether that conviction survives review is a separate question from the general existence of a right to record police in public.

XII. COMMUNICARE AND THE STATE-ACTION QUESTION

Section 1983 reaches conduct under color of state law. Private entities do not become state actors merely because they participate in a heavily regulated field or use a state-created procedure.

Cases such as *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982), and *West v. Atkins*, 487 U.S. 42 (1988), show that state action can exist where private conduct is fairly attributable to the State—through joint participation, delegation of a public function, or other sufficiently close connection. But the inquiry is fact-specific.

My commitment history involved affidavits, chancery-court process, and execution of writs by law enforcement. Rachel Alcorn also told me in a recorded call that Communicare was not a county agency and described its relationship to the Mississippi Department of Mental Health. Those facts do not by themselves answer whether Communicare or a particular employee acted under color of state law for a particular act.

That question remains unresolved in the present source archive. The publication version therefore should not label Communicare a government agency or announce that §1983 liability is established. It should document what each actor did and leave the legal classification where the evidence leaves it: open.

XIII. CIVIL COMMITMENT AND DUE PROCESS

Civil commitment is not criminal punishment, but it is a serious deprivation of liberty. *O'Connor v. Donaldson*, 422 U.S. 563 (1975), limits confinement of a nondangerous person capable of living safely in freedom. *Addington v. Texas*, 441 U.S. 418 (1979), requires clear and convincing evidence for civil commitment. Other cases recognize procedural protections appropriate to the nature of the confinement.

My December 7, 2021 recording documents a narrower issue: the deputy serving the writ told me he did not have the accompanying affidavit and the paperwork in hand did not identify who had signed it. Later court records show that an affidavit did exist.

That evidence supports saying the service packet I received did not include the affidavit. It does **not**, without a statute or controlling case requiring contemporaneous service of that affidavit, establish by itself that the seizure was unconstitutional. Earlier drafts crossed that line. This version does not.

XIV. FAVORABLE TERMINATION AFTER THOMPSON v. CLARK

Thompson v. Clark, 596 U.S. 36 (2022), held that for the favorable-termination element of the Fourth Amendment claim recognized there, a plaintiff need show that the criminal prosecution ended without a conviction; an affirmative indication of innocence is not required.

That rule can matter to proceedings in this book that actually terminated without a conviction—for example, a charge that was dismissed or refused. It does not convert every procedural success into favorable termination.

The February 24, 2026 decision in *Reardon v. State* is a good example. The Mississippi Court of Appeals reversed the Circuit Court's dismissal of my misdemeanor appeal and remanded. It did **not** reverse the underlying Justice Court convictions. Likewise, the January 2025 PCR order corrected a revocation sentence; it did not terminate the underlying 2022 stalking conviction.

A remand, a sentence correction, and a dismissal are legally different dispositions. The manuscript now keeps them separate.

XV. PROSECUTORIAL IMMUNITY

Under *Imbler v. Pachtman*, 424 U.S. 409 (1976), prosecutors generally have absolute immunity from §1983 damages for advocative conduct intimately associated with the judicial phase of a prosecution. *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993), distinguishes investigative or administrative functions, and *Kalina v. Fletcher*, 522 U.S. 118 (1997), recognizes that personally swearing to facts can place a prosecutor in the role of a complaining witness rather than an advocate.

That functional distinction matters more than the prosecutor's title. Filing and arguing a motion to revoke are ordinarily advocative acts. Investigating facts before probable cause, administering policy, or personally attesting to facts can present different questions.

The careful conclusion is not that prosecutors are categorically beyond accountability. It is that §1983 damages are generally unavailable for core prosecutorial advocacy, even when the plaintiff alleges serious misconduct in presenting the case.

XVI. BANISHMENT AS A SENTENCING CONDITION

The 2022 sentencing order imposed five years of unsupervised probation and banishment from Lafayette County, subject to stated exceptions. I accepted that condition in a negotiated plea.

Banishment conditions are not automatically unconstitutional, and Mississippi has permitted them in appropriate circumstances. Their validity can depend on the relationship between the condition and legitimate sentencing purposes, the scope of the restriction, and the record supporting it.

The November 2022 revocation transcript adds an important factual limit to my own argument. Deputy Beavers confirmed that I told the Sheriff's Department in advance that I intended to go to the FBI office. Advance notice is documented. But the order did not say that notice alone automatically authorized entry into Lafayette County for any purpose. Judge Tollison found that my presence fell outside the permitted purposes and revoked the suspended sentence.

I continue to dispute that outcome and the evidence used to reach it. The manuscript no longer claims that the phone call itself conclusively established legal authorization under the order.

XVII. PRESERVATION, SPOLIATION, AND WHAT A MISSING RECORD PROVES

The word *spoliation* can hide several different legal problems. Criminal due process, civil discovery sanctions, evidentiary inferences, and a court's inherent authority do not all use the same test.

In the criminal context, *Trombetta* and *Youngblood* set demanding standards for destroyed or unpreserved evidence. In civil litigation, rules governing discovery and sanctions can operate differently. And sometimes the factual answer is simpler: a requested camera never recorded the relevant area in the first place.

That last point changed the New Orleans chapters. The RTCC record did not establish that footage of the actual altercation was destroyed. It established that the camera produced did not capture the altercation itself. Calling that "lost footage" would create evidence that the source does not contain.

The same discipline applies everywhere else: absence of evidence may matter, but it does not supply the missing evidence's contents.

XVIII. SPEEDY TRIAL AND REVOCATION DEADLINES ARE DIFFERENT QUESTIONS

Constitutional speedy-trial claims are governed by *Barker v. Wingo*, 407 U.S. 514 (1972), which balances length of delay, reason for delay, assertion of the right, and prejudice. Pretrial incarceration is one recognized form of prejudice, along with anxiety and impairment of the defense. Delay attributable to the defense also matters in the balance.

Mississippi's 72-hour, 21-day, and 30-day revocation rules are statutory deadlines addressing probation-revocation procedure. They should not be blended into a *Barker* analysis merely because both concern delay.

Earlier versions of my arguments sometimes mixed those frameworks. The corrected manuscript keeps them separate: *Barker* for constitutional speedy-trial analysis; § 47-7-37 for Mississippi probation-revocation timing; and the actual docket for which party requested which continuance.

XIX. WHAT THE RECORD TAUGHT ME ABOUT CIVIL-RIGHTS LITIGATION

The clearest lessons from my own cases are narrower than the conclusions I once drew.

First, motive evidence is not enough by itself in many retaliatory-arrest cases. Objective enforcement evidence matters, especially after *Nieves* and *Gonzalez*.

Second, stating a constitutional claim is not the same as obtaining a judgment that a constitutional violation occurred, and neither is the same as overcoming qualified immunity.

Third, immunities and pleading rules can end civil-rights cases without a trial on the underlying factual dispute.

Fourth, precise documents are stronger than grand theories. A signed order, a transcript line, a laboratory report, a docket notice, or a dated recording can survive adversarial review in a way an inferred motive often cannot.

Fifth, favorable termination, reversal, remand, vacatur of a sentence, vacatur of a conviction, and dismissal are not synonyms. This manuscript once used some of them as if they were. It no longer does.

Sixth, many of my pro se losses turned on procedure, jurisdiction, immunity, or pleading sufficiency. That does not prove the underlying grievances were meritless. It also does not entitle me to rewrite those losses as victories.

That distinction—between what I believe happened, what the documents establish, what a court actually held, and what the law permits me to infer—is the discipline this book ultimately required.

APPENDIX

A source-and-record guide to the preceding narrative. The purpose of this appendix is not to repeat every allegation in the book. It is to identify the principal proceedings, documents, recordings, unresolved source gaps, and corrections necessary to understand what the record actually establishes.

A. CASES AND CAUSE NUMBERS

Mississippi — Lafayette County

Cause	Court	Matter
CV2016-422(W)	Chancery Court	Paternity, custody, and support litigation involving Phyllis Crowder and Matthew Reardon.
CV2017-217A	Chancery Court	<i>Robyn M. Tannehill and J. Rhea Tannehill Jr. v. Matthew Reardon</i> — petition for temporary and permanent restraining relief filed May 22, 2017.

Cause	Court	Matter
LK17-295	Circuit Court	2017 aggravated-stalking prosecution involving Todd and Ashley Lynch. Guilty plea July 6, 2017; plea materials, Criminal Information, transcript, sentence, and covenant not to sue are preserved in the appellate record.
L17-233	Circuit Court	Habeas-corpus/bail-reduction proceeding filed during the 2017 detention; later dismissed as a stale case on November 30, 2018.
L20-316 / LK20-316	Circuit Court	Post-conviction proceedings challenging the 2017 plea and conviction. The file naming varies in later records; it is separate from LK17-295 itself.
9291202	Justice Court	D.U.I. 1st Offense arising from the February 2021 stop; conviction entered November 24, 2021.
36CI1:21-cv-00494-JKL / L21-494	Circuit Court	De novo appeal from Lafayette County Justice Court convictions. Initiated in December 2021; Circuit Court dismissed the appeal June 28, 2024 for failure to perfect. The Mississippi Court of Appeals later reversed that dismissal and remanded.
LK22-358	Circuit Court	2022 aggravated-stalking prosecution. Guilty plea September 30, 2022; five-year suspended sentence/ unsupervised probation, banishment, and no-contact terms. First revocation proceeding followed in November 2022; a second revocation proceeding followed in 2024.

Cause	Court	Matter
L24-388 / 36C11:24-cv-00388-JKL	Circuit Court	Post-conviction relief concerning the 2024 revocation sentence in LK22-358. Order entered January 21, 2025 vacated the two-year revocation sentence, resentenced Reardon to 120 days for a technical violation, ordered immediate release because more than 120 days had been served, and reinstated the original probation and banishment terms. The underlying 2022 aggravated-stalking conviction was not vacated.
2024-KM-00839-COA	Mississippi Court of Appeals	<i>Matthew D. Reardon v. State of Mississippi</i> . Decision February 24, 2026 reversed the Circuit Court’s dismissal of the Justice Court appeal and remanded. It did not reverse the underlying Justice Court convictions. The opinion directed appointment of counsel on remand if Reardon still qualified as indigent.

Mississippi — other proceedings

Cause	Court	Matter
LK2022-310MISC	Third Judicial District / Holly Springs	Competency/commitment-related proceeding referenced in the source archive.
—	Olive Branch Municipal Court	Phyllis Crowder false-reporting prosecution. No-contest disposition September 22, 2020. The municipal order assesses a \$1,000 fine plus a \$149.25 assessment, \$1,149.25 total.

Cause	Court	Matter
S2020-0024(CD)	DeSoto County Court	Crowder's appeal from the Olive Branch disposition. Formal appeal filed after the deadline; County Court dismissed it November 23, 2020 and returned the matter to Municipal Court for execution of judgment.
—	Olive Branch Municipal Court	Contempt proceeding involving Reardon in October 2020; later dismissed.

Federal

Cause	Court	Matter
3:22-cv-00050-SA-JMV	N.D. Mississippi	<i>Reardon v. Lafayette County, Mississippi, et al.</i> Civil-rights action. The handwritten More Definitive Statement filed March 20, 2023 is a major source for the author's then-current allegations and chronology. The action was dismissed with prejudice June 28, 2023.
1:25-cv-00041	District of Utah	<i>Reardon v. Layton City, et al.</i> Civil-rights case filed March 31, 2025. The author later sought voluntary dismissal without prejudice after relocating.
3:25-cv-00203	S.D. Texas, Galveston Division	<i>Reardon v. Osteen, et al.</i> Magistrate Judge Andrew M. Edison's Memorandum Opinion, Order, and Recommendation entered July 14, 2026 (Dkt. 90); Judge Jeffrey V. Brown adopted the recommendation and entered final judgment August 10, 2026 (Dkts. 93–94).

Cause	Court	Matter
6:25-cr-00227	W.D. Louisiana	<i>United States v. Reardon</i> , 41 C.F.R. § 102-74.390(b). Guilty verdict entered January 16, 2026 after a bench trial. At sentencing August 7, 2026, the court imposed two years of unsupervised probation and clarified that prior custody would be credited if probation were later revoked and resentencing occurred; no fine was imposed and the special assessment was waived.

Texas

Cause	Court	Matter
23-CR-2981	56th District Court, Galveston County	Felony DWI-third-or-more prosecution arising from the August 11, 2023 stop. Indictment filed December 7, 2023. The State moved to dismiss and the court dismissed the felony case May 24, 2024; the later Mississippi PCR record quotes the stated reason as inability to prove the jurisdictional enhancements.
MD-0417962	Galveston County Court No. 3	Later misdemeanor DWI matter arising from the same August 11, 2023 stop, identified in the February 25, 2025 defense motion requesting a <i>Franks</i> hearing.

Georgia

Cause	Court	Matter
13T15752	Cobb County State Court	DUI offense dated December 25, 2012; conviction entered November 3, 2014.

B. PRINCIPAL PEOPLE

The book names public officials and other adults when their conduct is documented in the record and relevant to the narrative. It does not treat being named as proof of wrongdoing.

Lafayette County / Oxford: Deputy Timmy Pruitt; Scott Mills; Alan Wilburn; Jared Bundren; Sheriff Joseph “Joey” East; Deputies Courtney Dixon, Ethan Tidwell, Jacob Williford, Kandis Beavers, Hoby James, and Joe Quarles; MBI Lt. Joey Mauney; OPD Chief Jeff McCutchen; Capt. Hildon Sessums; Lt. Kevin Parker; and other officials identified in the cited records.

Judicial officers: Judge Carolyn Bell; Chancellor Glenn Alderson; Circuit Judges John Kelly Luther, Kent E. Smith, Gray Tollison, and others identified in the docket and transcripts; Olive Branch Municipal Judge Leslie Shumake.

Attorneys: J. Rhea Tannehill Jr.; Brennan Horan; Kristian A. McCray; Mitchell Driskell; Christi McCoy; Bela J. Chain III; Dustin Talbot; Benjamin Campagna; and Jacob W. Howard of the MacArthur Justice Center.

Texas: Galveston Police Officer Larry Murph, who initiated the August 11, 2023 traffic stop; Officer William Osteen, who conducted the DWI investigation and signed the blood-warrant affidavit; Sgt. Jack Doraty; and other participants identified in the Texas records.

Federal: Deputy U.S. Marshal Hayden Nugent; Magistrate Judge Andrew M. Edison; District Judge Jeffrey V. Brown; Magistrate Judge Carol B. Whitehurst; and other federal officials identified in the public docket or produced records.

Private parties central to the record: Phyllis “Liz” Crowder; Todd Lynch; Ashley Lynch; Robyn Tannehill; and J. Rhea Tannehill Jr. where acting as a private petitioner or attorney.

The author’s children are identified by first name only where the dedication or chronology makes that identification necessary. Details about them are limited to information the author chose to include because it bears directly on the events being described; unrelated private information is omitted.

C. KEY DOCUMENTS AND RECORDINGS

2017 prosecution and related civil proceedings

- Tannehill Petition for Emergency, Temporary Restraining Order and Permanent Restraining Order, filed May 22, 2017, with affidavits and exhibits.
- Lafayette County Sheriff's Office May 24/May 30 narrative concerning the Lynch complaint.
- Major John Hill's May 30, 2017 Sheriff's Office narrative documenting the post-hearing hallway confrontation with Rhea Tannehill.
- Criminal Information in LK17-295 filed July 6, 2017, alleging aggravated stalking involving "an AR15 rifle" and the handwritten date "or before May 8, 2017."
- July 6, 2017 plea and sentencing transcript.
- Guilty-plea petition and sentence documents.
- Signed Covenant Not To Sue, executed as a specific condition of the plea.
- Private bill of sale dated May 20, 2017 for a Del-Ton AR-15, serial S086662, purchased from Larry D. Watkins for \$550. The document dates that particular transaction; it does not by itself prove that no other AR-pattern rifle existed before that date.

Crowder / Olive Branch

- Olive Branch Police Department investigation of Crowder's November 2018 rape allegation and the later false-reporting case.
- September 22, 2020 Municipal Court order assessing \$1,149.25 total.
- DeSoto County Court order dismissing Crowder's untimely appeal November 23, 2020.
- Chancery filings and communications in CV2016-422(W).

2021–2022 Lafayette proceedings

- Justice Court orders, filings, and later Circuit Court record concerning the December 2021 appeal.
- December 7, 2021 commitment writ and the author’s contemporaneous recording of service.
- Recorded call with Communicare employee Rachel Alcorn.
- MBI Case No. 22-00000897, including the June 20, 2022 City Hall allegations, June 23 referral, and June 27 warrant process.
- Lafayette County Sheriff’s Office June 28, 2022 warrant-service report showing the MBI arrest warrant already existed when deputies encountered Reardon at Chancery Court.
- LK22-358 plea/sentence records and November 2022 revocation transcript.

Galveston and later Mississippi revocation

- Osteen’s August 11, 2023 blood-warrant affidavit/application and related DWI reports.
- Texas DPS Houston laboratory report HOU-2308-10286: **“No alcohol detected.”**
- Separate confirmation analysis reporting methamphetamine at 0.13 mg/L.
- July 18, 2024 certified Mississippi revocation transcript.
- November 26, 2024 MacArthur Justice Center petition for post-conviction relief and exhibits.
- January 21, 2025 Order & Judgment granting post-conviction relief as to the 2024 revocation sentence.
- February 25, 2025 *Franks* motion filed by attorney Benjamin Campagna in the Texas misdemeanor case.

2025–2026 federal and interstate record

- U.S. Marshals Service FOIA/records production concerning alerts and inter-office communications.

- Federal criminal docket in 6:25-cr-00227 and the August 7, 2026 sentencing recording/transcript source used in Chapter 38.
- *Reardon v. Osteen* Dkt. 90, Dkt. 93, and Dkt. 94.
- Mississippi appellate clerk notices concerning delinquent assembly of the record in the Justice Court appeal, including the October 2, 2024 delinquency notice and October 21, 2024 show-cause notice to Circuit Clerk Jeff Busby.
- Mississippi Court of Appeals opinion of February 24, 2026 reversing the Circuit Court’s dismissal and remanding.
- New Orleans records concerning the November 2025 City Hall incident, NextRequest production, January 2026 booking, and April 2026 disposition.

Recordings

Contemporaneous audio and video are primary sources throughout the book, including recordings of arrests, courthouse encounters, telephone calls, hearings where recording was permitted, and published livestreams. Machine transcription is used as a research aid, not automatically as a verbatim source. Quotations intended to be verbatim should be checked against the underlying audio or an official/certified transcript whenever available.

D. CONDENSED CHRONOLOGY

2008 — Marine infantry-training period and the Camp Devil Dog event discussed in the Prologue.

2011 — End of Marine Corps service.

2012–2014 — Georgia DUI offense and later conviction.

2016 — Paternity/custody proceeding begins; Mississippi flag petition.

May 1, 2017 — Lafayette County sidewalk/flag arrest.

May 20, 2017 — Dated private bill of sale for the Del-Ton AR-15.

May 22, 2017 — Tannehill restraining-order petition filed.

May 24, 2017 — Bundren begins Lynch investigation according to the surviving Sheriff’s Office narrative.

May 25, 2017 — FBI meeting; final Marine Corps legal demand later that

day.

May 26, 2017 — Marine Corps FOIA request receives full-grant disposition; Reardon arrested later that day for aggravated stalking.

May 30, 2017 — Initial appearance; \$150,000 bond; Tannehill Chancery hearing and the hallway confrontation documented by Major John Hill.

June 2017 — Habeas/bail-reduction proceeding filed; Board of Aldermen agenda places Reardon on June 6 agenda while he remains jailed.

July 6, 2017 — Criminal Information filed; guilty plea; banishment and covenant not to sue.

2018–2020 — Crowder false rape allegation, investigation, false-reporting prosecution, and no-contest disposition; related family-court litigation.

December 28, 2020 — Lafayette County parking-lot arrest.

February 2021 — DUI stop during winter weather.

November 24, 2021 — Justice Court convictions entered.

December 2021 — Appeal initiated; first civil commitment.

June 20, 2022 — Oxford City Hall visit later used in MBI stalking investigation.

June 23–27, 2022 — OPD referral to MBI and warrant process.

June 28, 2022 — Arrested on the preexisting MBI warrant while arriving at Chancery Court.

September 30, 2022 — Guilty plea in LK22-358; suspended sentence, unsupervised probation, banishment, and no-contact terms.

November 2022 — First revocation proceeding; one-year sentence imposed.

August 1, 2023 — Released from Mississippi custody.

August 11, 2023 — Galveston traffic stop and DWI investigation; blood warrant executed.

August 17, 2023 — Rearrest/overlapping Mississippi revocation process.

December 7, 2023 — Texas felony DWI indictment filed.

May 24, 2024 — Texas felony DWI prosecution dismissed.

June 28, 2024 — Lafayette Circuit Court dismisses Justice Court appeal.

July 18, 2024 — Second Mississippi revocation hearing.

January 21, 2025 — Two-year revocation sentence vacated; resentenced to 120 days; immediate release ordered; underlying probation/banishment reinstated.

March 31, 2025 — Utah federal civil-rights complaint filed.

June–August 2025 — U.S. Marshals/court-security alert and BOLO communications documented in later productions.

August 25, 2025 — Arrest at John M. Shaw United States Courthouse in Lafayette, Louisiana.

November 12, 2025 — New Orleans City Hall incident.

January 16, 2026 — Guilty verdict in the federal petty-offense case.

January 24–28, 2026 — Louisiana arrest and later Orleans Parish booking on the New Orleans warrant.

February 24, 2026 — Mississippi Court of Appeals reverses dismissal of Justice Court appeal and remands.

April 16, 2026 — New Orleans battery prosecution disposed of as “Refused — Law Enforcement Issue” in the produced case record.

April–June 2026 — Union County/Aberdeen events described in Chapter 36.

July 14, 2026 — Edison R&R entered in *Reardon v. Osteen*.

August 7, 2026 — Federal sentencing: two years unsupervised probation; no fine; special assessment waived; prior custody addressed as credit in event of later revocation/resentencing.

August 10, 2026 — District court adopts Edison R&R and enters final judgment in *Reardon v. Osteen*.

E. SELECTED LEGAL AUTHORITIES

This list is a reader’s guide, not an exhaustive table of authorities.

Retaliatory arrest: *Nieves v. Bartlett*, 587 U.S. 391 (2019); *Gonzalez v. Trevino*, 602 U.S. 653 (2024).

Right to record: *Turner v. Driver*, 848 F.3d 678 (5th Cir. 2017).

Qualified immunity: *Harlow v. Fitzgerald*, 457 U.S. 800 (1982); *Pearson v. Callahan*, 555 U.S. 223 (2009); *Hope v. Pelzer*, 536 U.S. 730 (2002).

Municipal liability / state action: *Monell v. Department of Social Services*, 436 U.S. 658 (1978); *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982); *West v. Atkins*, 487 U.S. 42 (1988); *Will v. Michigan Department of State Police*, 491 U.S. 58 (1989).

Judicial / prosecutorial immunity: *Stump v. Sparkman*, 435 U.S. 349 (1978); *Mireles v. Waco*, 502 U.S. 9 (1991); *Imbler v. Pachtman*, 424 U.S.

409 (1976); *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993); *Kalina v. Fletcher*, 522 U.S. 118 (1997).

Contempt and impartial adjudication: *In re Murchison*, 349 U.S. 133 (1955); *Mayberry v. Pennsylvania*, 400 U.S. 455 (1971).

Blood-warrant affidavit: *Franks v. Delaware*, 438 U.S. 154 (1978); *Missouri v. McNeely*, 569 U.S. 141 (2013); *Birchfield v. North Dakota*, 579 U.S. 438 (2016).

Preservation / disclosure: *Brady v. Maryland*, 373 U.S. 83 (1963); *California v. Trombetta*, 467 U.S. 479 (1984); *Arizona v. Youngblood*, 488 U.S. 51 (1988).

Revocation process: *Morrissey v. Brewer*, 408 U.S. 471 (1972); *Gagnon v. Scarpelli*, 411 U.S. 778 (1973); Miss. Code Ann. § 47-7-37.

Favorable termination: *Thompson v. Clark*, 596 U.S. 36 (2022).

Release-dismissal agreements: *Town of Newton v. Rumery*, 480 U.S. 386 (1987).

Constitutional speedy trial: *Barker v. Wingo*, 407 U.S. 514 (1972).

Earlier drafts and filings also invoked legal theories that this edition withdraws. In particular, Section 802 of the USA PATRIOT Act is not a civil cause of action against a county sheriff, and 26 U.S.C. § 7214 concerns federal revenue officers rather than Mississippi county officials. Those theories are not relied upon here.

F. SOURCE GAPS AND DELIBERATE LIMITS

The following are genuine gaps or publication limits. They should not be confused with documents that have now been located.

1. **The original pre-arrest affidavit, complaint, or warrant application underlying the May 26, 2017 Lynch arrest has not been located in the present archive.** The July 6 Criminal Information and plea transcript independently establish the later “on or before May 8, 2017” allegation. The book therefore does not attribute that May 8 allegation to the May 26 arrest warrant unless the pre-arrest instrument is produced.
2. **The signed Texas blood-warrant instrument itself has not been located in the present archive.** Osteen’s affidavit/application and

his later sworn testimony establish that a judge signed a blood warrant; the book therefore does not characterize the blood draw as warrantless.

3. The project does not possess the FBI 302 from the May 25, 2017 meeting.
4. Some audio/video sources survive only through published or archived copies and machine transcripts. Where exact wording matters, official transcripts or direct audio verification take precedence over ASR.
5. Several recordings or camera angles requested in earlier proceedings were not produced or have not been located, including portions of the December 2020 and February 2021 video record. Their absence does not establish what they would have shown.
6. Communicare's precise legal status for federal state-action purposes remains unresolved in the source archive.
7. The sealed portions of the 2025–2026 federal criminal record are intentionally not reproduced or narrated beyond what the public docket and permitted sources establish.
8. The book does not claim that an unidentified source, a missing recording, or an unproduced document proves a conspiracy merely because the record is incomplete.

The following documents were once listed as missing but have now been located and are **not** source gaps: the July 2017 plea transcript, plea petition, signed covenant not to sue, and Major John Hill's May 30, 2017 Sheriff's Office report.

G. RECORDING AND TRANSCRIPTION METHOD

The manuscript uses contemporaneous recordings extensively. Their evidentiary value depends on how they are handled.

- An official or certified court transcript controls over an automatic transcript of the same proceeding.
- A direct recording controls over later recollection where the two conflict.

- Automatic speech recognition is treated as a search and drafting aid. It is not treated as verbatim merely because software produced quotation marks around it.
- Proper names, dates, and legally significant quotations are checked against the underlying recording or another primary source whenever possible.
- A gap in a recording is described as a gap. A camera that did not cover an event is not described as having “lost” footage of that event.
- A document generated after an arrest is not described as the pre-arrest probable-cause instrument unless the record establishes that it served that function.

H. HOW TO CHECK THE BOOK’S CENTRAL DOCUMENTARY CLAIMS

Claim	Principal record
The 2017 formal charging paper alleged an AR-15 offense “on or before May 8, 2017”	July 6, 2017 Criminal Information and plea transcript, LK17-295
The identified Del-Ton rifle was purchased May 20, 2017	Dated private bill of sale for serial S086662
Major John Hill documented a threat by Rhea Tannehill after the May 30 Chancery hearing	Hill’s May 30, 2017 Sheriff’s Office narrative
Crowder’s false-reporting disposition totaled \$1,149.25	September 22, 2020 Olive Branch Municipal Court order
Crowder’s County Court appeal was untimely and dismissed	November 23, 2020 DeSoto County Court order
The June 28, 2022 arrest warrant existed before Reardon arrived at Chancery Court	MBI file and Lafayette County Sheriff’s Office June 28 warrant-service report
What Beavers actually said at the November 2022 revocation hearing	Certified revocation transcript
The Texas laboratory found no alcohol	Texas DPS report HOU-2308-10286
The same toxicology production separately reported methamphetamine at 0.13 mg/L	Confirmation analysis in the Texas/ Mississippi exhibit record
Osteen later testified alcohol had been detected	July 18, 2024 certified revocation transcript

Claim	Principal record
The January 2025 order corrected a revocation sentence, not the underlying conviction	January 21, 2025 L24-388 Order & Judgment
The Mississippi Court of Appeals reversed the dismissal of the Justice Court appeal, not the convictions themselves	February 24, 2026 opinion in 2024-KM-00839-COA
Edison wrote that “the record shows that Osteen lied to Judge Tollison”	July 14, 2026 Dkt. 90 in <i>Reardon v. Osteen</i>
Edison also concluded that the complaint stated an unreasonable-seizure claim before recommending qualified immunity	Dkt. 90, read together with Dkts. 93–94
The New Orleans RTCC camera did not capture the actual altercation	Produced RTCC/NOPD records discussed in Chapters 32–33
The federal sentencing court imposed probation and later clarified the role of prior custody	August 7, 2026 sentencing recording/transcript source

I. STANDING CORRECTIONS FROM EARLIER EDITIONS

This section records claims that earlier drafts made too strongly or incorrectly. They remain listed because silent correction would defeat the archival purpose of the book.

1. **Rachel Alcorn did not identify Sheriff Joey East by name as her source.** The recorded call refers to local law enforcement. Any attribution to a particular officer requires separate evidence.
2. **The November 2022 revocation cannot accurately be summarized as “Beavers committed perjury and that sent me to prison.”** Her testimony contained disputed and hearsay-based assertions, but she also confirmed that Reardon called the Sheriff’s Department in advance, and the court’s ruling rested on its interpretation of the banishment condition and Reardon’s presence.
3. **Reardon was not simply denied counsel at the 2022 revocation hearing.** The transcript shows a waiver of counsel after questioning by the court.

4. **No evidence connects a docket-assignment irregularity to ballot tampering.** That inference is withdrawn.
5. **The USA PATRIOT Act domestic-terrorism provision and 26 U.S.C. § 7214 theories previously asserted against county officials were legally misplaced.** They are withdrawn.
6. **Emails following the 2017 Marine Corps records dispute do not establish implied threats merely because their timing was suspicious to the author.** That characterization is withdrawn absent direct evidence.
7. **The author did not know PFC Bradley Foust personally.** The Prologue now separates the author's recollection of the training environment from Jay Andrews's independent affidavit and the Marine Corps records.
8. **Communicare is not described as a proven governmental or quasi-governmental entity.** Its federal state-action status remains an unresolved legal and factual question.
9. **The January 21, 2025 PCR order did not vacate the 2022 aggravated-stalking conviction.** It vacated the 2024 two-year revocation sentence, resentenced the technical violation to 120 days, ordered release, and reinstated the original probation/banishment terms.
10. **The February 24, 2026 Mississippi Court of Appeals decision did not reverse the underlying Justice Court convictions.** It reversed the Circuit Court's dismissal of the appeal and remanded.
11. **The New Orleans City Hall case does not contain proof that RTCC footage of the altercation was destroyed or "lost."** The produced camera material did not capture the altercation itself.
12. **Magistrate Judge Edison's statement that Osteen "lied to Judge Tollison" is not a criminal adjudication of perjury.** The manuscript uses the judge's actual word and no stronger one.
13. **Edison's unreasonable-seizure discussion was not a final merits judgment for Reardon.** The R&R said the complaint stated a constitutional claim, then recommended qualified immunity; the district court adopted the recommendation and entered judgment against Reardon.

14. **The federal record does not establish that Circuit Clerk Jeff Busby personally transmitted the March 25, 2024 letter to Texas.** The R&R relied on evidence that Assistant District Attorney Steven Jubera transmitted it. Earlier claims of literal falsity in Busby's affidavit are withdrawn to the extent they depended on Busby personally sending the letter.
15. **The August 7, 2026 federal sentence should not be described simply as "time served plus probation."** The judge clarified that Reardon was placed on two years of unsupervised probation and that prior custody would be credited if probation were later revoked and resentencing occurred.
16. **The "on or before May 8, 2017" AR-15 allegation is documented, but not in a pre-arrest affidavit presently in the archive.** It appears in the July 6 Criminal Information and plea record. Earlier versions wrongly treated it as a fact sworn into the May 26 arrest warrant.
17. **Major John Hill's May 30, 2017 report has been located.** It records Reardon's profanity, Rhea Tannehill approaching with a water bottle and saying "I'LL BASH YOUR HEAD IN," and Hill stepping in front of Rhea and telling him to leave. It does not say Hill physically restrained Rhea or that an assault occurred.
18. **Brennan Horan and Rhea Tannehill are not established to have attended law school together.** A June 27, 2020 message from attorney Christi McCoy states that Brennan graduated roughly ten years before Rhea and that they were not in law school together. The contrary claim is withdrawn.
19. **The Galveston toxicology did not establish "zero drugs."** It reported no alcohol and separately reported methamphetamine at 0.13 mg/L. The author disputes the significance and reliability of that result, but the laboratory result itself is not omitted.
20. **The roughly eleven months of custody following the August 2023 Galveston arrest cannot be attributed solely to Osteen's affidavit or a single Texas bond.** Texas and Mississippi proceedings, including the Mississippi revocation hold, overlapped.

J. SOURCE HIERARCHY USED FOR THIS EDITION

When sources conflict, this edition uses the following order of confidence:

1. Signed court orders, certified transcripts, filed pleadings, official agency records, laboratory reports, and authenticated public-record productions.
2. Contemporaneous audio/video recordings and contemporaneous written communications.
3. Later sworn statements and later recorded recollections, identified as such.
4. The author's unsworn recollection where no stronger source exists.
5. Secondary summaries, prior manuscript drafts, AI-generated analyses, news coverage, and internal timelines as research leads—not as substitutes for the underlying record.

A later document can be more complete without being more trustworthy. A recent upload date does not make an old summary authoritative. Where the book cannot resolve a conflict from the source record, the conflict is left visible rather than silently reconciled.